

U.P. Building And Other Construction Workers (Regulation Of Employment And Conditions Of Service) Rules, 2009

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State of Uttar Pradesh - Act

U.P. Building And Other Construction Workers (Regulation Of Employment And Conditions Of Service) Rules, 2009

UTTAR PRADESH

India

U.P. Building And Other Construction Workers (Regulation Of Employment And Conditions Of Service) Rules, 2009

Rule

U-P-BUILDING-AND-OTHER-CONSTRUCTION-WORKERS-REGULATION-OF-EMPLOYMENT-AND-CONDITIONS-OF-SERVICE-RULES-2009 of 2009

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U.P. Building And Other Construction Workers (Regulation Of Employment And Conditions Of Service) Rules, 2009

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UP85

In exercise of the powers conferred under Section 62 read with Section 40 of the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996 (Act No. 27 of 1996), the Governor is pleased to make the following rules namely Tire Uttar Pradesh Building and Other Construction (Regulation of Employment and

Conditions of Service) Workers Rules, 2009.

Part-I Chapter I

Preliminary

1.

Short title, extent and commencement.

(1)

These rules may be called the Uttar Pradesh Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Rules, 2009.

(2)

They shall apply to all buildings or other construction work relating to any establishment throughout the State except those, in relation to which appropriate Government is the Central Government under the Act.

(3)

These rules shall come into force with effect from the date of their publication in the Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires -

(a)

"Act" means the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996 (Act No. 27 of 1996);

(b)

"access" or "egress" means passageways, corridors, stairs, platforms, ladders and any other means to be used by a building worker for normally entering or leaving the workplace or for escaping in case of danger;

(c)

"approved" means approved in writing by the Chief Inspector or the State Government as the case may be;

(d)

"base plate" means a plate for distributing the load from a Standard in the case of metal scaffolds;

(e)

"bay" in relation to scaffolds, means that portion of the scaffold between horizontal or vertical supports whether standards or supports from which the portion is suspended, are adjacent longitudinally;

(f)

"brace" means a member incorporated diagonally in a scaffold for stability;

(g)

"bulkhead" means an airtight structure separating the working chamber from free air or from another chamber under a lower pressure than the working pressure;

(h)

"caisson" means an air and watertight chamber in which it is possible for person to work under air pressure greater than atmospheric pressure at sea level to excavate material below water level;

(i)

"cofferdam" means a structure constructed entirely or in part below water level or below the level of the water level in the ground and intended to provide a place for work that is free of water;

(j)

"competent person" means a person so approved by the State Government, who belongs to a testing establishment in India, possessing adequate qualification, experience and skill for the purpose of testing, examination or annealing and certification of lifting appliances, lifting gears, wire ropes or pressure plant or equipment;

(k)

"compressed air" means air mechanically raised to a pressure higher than atmospheric pressure at sea level;

(l)

"construction site" means any site at which any of the processes or operations, related to building or other construction work, are carried on;

(m)

"conveyor" means a mechanical device used in building or other construction work for transport of building material,

articles, or packages or solid bulk from one point to another point;

(n)

"danger" means the rapid decompression of persons in a man-lock to atmospheric pressure at sea level followed promptly by their recompression table in accordance with approved decompression procedures;

(o)

"decanting" means the rapid decompression of persons in a man-lock to atmospheric pressure at sea level followed promptly by their recompression in a decant lock, where they are then decompressed according to the appropriate decompression table in accordance with approved decompression procedures;

(p)

"demolition work" means the work incidental to or connected with the total or partial dismantling or razing of a building or a structure other than a building and includes the removing or dismantling of machines or other equipment;

(q)

"excavation" means the removal of earth, rock or other material in connection with construction or demolition work;

(r)

"falseworks" means the structural supports and bracing for formworks or forms;

(s)

"flashpoint" means the minimum liquid temperature at which a spark or flame causes an instantaneous flash in the vapour space above the liquid;

(t)

"form" means a form appended to the rules;

(u)

"frame or modular scaffold" means a scaffold manufactured in such a way that the geometry of the scaffold is pre-determined and the relative spacing of the principal members are fixed;

(v)

"guardrail" means a horizontal rail secured to uprights and erected along the exposed sides of scaffolds, floor openings, runways and gangways to prevent persons from falling;

(w)

"hazard" means danger or potential danger;

(x)

"hazardous substance" means any substance which due to its explosiveness, inflammability, radioactivity, toxic or corrosive properties, or other similar characteristics, may -

(i)

cause injury; or

(ii)

affect adversely the human system; or

(iii)

cause loss of life or damage to property on work-environment, while handling, transporting or storing and classified as such under the national standards or in case such national standards do not exist to the generally accepted international standards;

(y)

"high pressure air" means air used to supply power to pneumatic tools and devices;

(z)

"independent tied scaffold" means a scaffold, the working platform of which is supported from the base by two or more rows of standards and which apart from the necessary ties stands completely free of the building;

(za)

"ledger" means a member spanning horizontally and tying scaffolding longitudinally and which acts as a support for putlogs or transoms;

(i)

for the passage of building workers or materials to or from a tunnel or

(i)

when a wall shows signs of bulging out due to bad workmanship;

(i)

relevant standards approved by Bureau of Indian Standards;

(i)

split heads;

(ii)

folding;

(iii)

step-ladder;

(iv)

tripods; or

(v)

movable contrivances similar to any of the foregoing.

(zzr)

"tubular scaffold" means a scaffold constructed from tubes and couplers;

(zzs)

"tunnel" means a subterranean passage made by excavating beneath the over burden into which a building worker enters or is required to enter to work;

(zzt)

"underground" means any space within the confines of a shaft, tunnel, caisson or cofferdam,

(zzu)

"vehicle" means a vehicle propelled or driven by mechanical or electrical power and includes a trailer, traction engine, tractor, road-building machine and transport equipment;

(zzv)

"working chamber" means the part of the construction site where work in a compressed air environment is carried out, but does not include a man-lock or medical-lock;

(zzw)

"working platform" means a platform which is used to support building workers or materials and includes a working stage;

(zzx)

"working pressure" means pressure, in working chamber, to which building worker is exposed;

(zzy)

"workplace" means all places where building workers are required to be present or to go for work and which are under the control of an employer.

(ii)

national building code;

(iii)

manufacturer's instructions on safe use of equipment and machinery;

(iv)

code of practice on safety and health in construction industry published by International Labour Organization and amended from time to time.

(zzk)

"steel rib" includes all steel beams and other structural members shaped to conform to the requirements of a particular tunnel cross section, used for the purpose of supporting and stabilizing the excavated areas;

(zzl)

"suspended scaffold" means a scaffold suspended by means of ropes or chains and capable of being raised or lowered but does not include a boatswain's chair or similar appliance;

(zzm)

"testing establishment" means an establishment with testing and examination facilities, as approved by the Central Government or State Government in India for carrying out testing, examination, annealing or similar other test or certification of lifting appliances or lifting gear or wire rope as required under these rules;

(zzn)

"tie" means an assembly used to connect a scaffold to a rigid anchorage;

(zzo)

"toe board" means a member fastened above a working platform, access landing, access way, wheel barrow run, ramp or other platform to prevent building workers and materials falling therefrom;

(zzp)

"transom" means a member placed horizontally and used to tie transversely one ledge to another, or one standard to another in an independent tie scaffold;

(zzq)

"trestle scaffold" includes a scaffold in which the supports for the platform are any of the following, which are self-supporting, namely -

(ii)

when a wall cracks due to unequal settlement of foundation, and the cracked wall needs repair;

(iii)

when an adjacent structure is to be dismantled; and

(iv)

when opening are to be made or enlarged in the wall;

(zzf)

"sole plate" means a member used to distribute the load from the base plate or the standard of wooden scaffolds to the supporting surface;

(zzg)

"sound or good construction" means construction conforming to the relevant National or State standard whichever is applicable or in case such national standards do not exist, to other generally accepted international engineering standards or code of practices;

(zzh)

"sound or good material" means materials of a quality conforming to the relevant national or state standards whichever is applicable or in case such national standards do not exist, to other generally accepted international engineering standards or code of practices;

(zzi)

"standard" in relation to bay in Rule 2(e) means a member used as a vertical support or column in the construction of scaffolds which transmits a load to the ground or to the solid construction;

(zzj)

"standard safe operating practices" means the practice followed in building and other construction activities for the safety and health of workers and safe operation of machineries and equipment used in such activities and such practices conforms to all or any of the following, namely -

(ii)

leading to an existing tunnel;

(zzd)

"shield" means a movable frame which supports the working face of a tunnel and the ground immediately behind it and includes equipment designed to excavate and support the excavated areas in a tunnel;

(zze)

"shoring" means the construction of a temporary structure to support temporarily an unsafe structure. These render lateral support to walls and are used under the following circumstances -

(zb)

"lifting appliance" means a crane, hoist, derrick, winch, gin pole, sheer legs, jack, pulley block or other equipment used for lifting materials, objects or building worker;

(zc)

"lifting gear" means ropes, chains, hooks, slings and other accessories of a "lifting appliance";

(zd)

"lock attendant" means the person in charge of a man-lock or medical lock and who is immediately responsible for controlling the compression, recompression or decompression of persons in such locks;

(ze)

"low pressure air" means air supplied to pressurize working chambers and man-locks and medical locks;

(zf)

"magazine" means a place in which explosives are stored or kept, whether above or below ground;

(zg)

"man lock" means any lock, other than a medical lock, used for the compression or decompression of persons entering or leaving a working chamber;

(zh)

"material hoist" means a power or manually operated and suspended platform or bucket operating in guide rails and used for raising or lowering material exclusively and operated and controlled from a point outside the conveyance;

(zi)

"materials lock" means a chamber through which materials and equipment pass from one air pressure environment into another;

(zj)

"medical lock" means a double compartment lock used for the therapeutic recompression and decompression of persons suffering from the ill-effects of decompression;

(zk)

"national standards" means standards as approved by the Bureau of Indian Standards and in the absence of such standards, the standards approved by the State Government or the State Government (sic Central Government) for a specific purpose;

(zl)

"outrigger" means a structure projecting beyond the facade of a building with the inner end being anchored and includes a cantilever or other support;

(zm)

"plant or equipment" includes any plant, equipment, gear, machinery, apparatus or appliance, or any part thereof;

(zn)

"pressure" means air pressure in bars above atmospheric pressure;

(zo)

"pressure plant" means the pressure vessel along with its piping and other fittings operated at a pressure greater than the atmospheric pressure;

(zp)

"putlog" means a horizontal member on which the board, plank or decking of a working platform are laid;

(zq)

"responsible person" means a person appointed by the employer to be responsible for the performance of specific duty or duties and who has sufficient knowledge and experience and the requisite authority for the proper performance of such duty or duties;

(zr)

"reveal tie" means the assembly of a tie tube and fittings used for tightening a tube between two opposite surfaces;

(zs)

"right angle coupler" means a coupler, other than a swivel or putlog coupler, used for connecting tubes at right angles;

(zt)

"rock bolt" means a mechanical expansion bolt or a bolt used with cementitious or resin anchoring system which is set in drilled hole in the arch or wall of a tunnel to improve rock competency;

(zu)

"roofing bracket" means a bracket used in sloped roof construction and having sharp points or other means for fastening to prevent slipping;

(zv)

"safety screen" means an air and water tight diaphragm placed across the upper part of a compressed air tunnel between the face and bulkhead, in order to prevent flooding the crown of the tunnel between the safety screen and the bulkhead to provide a safe means of refuge and exit from a flooding or flooded tunnel;

(zw)

"safe working load" in relation to an article of lifting gear or lifting appliances, means the load which is the maximum load

that may be imposed on such article or appliance with safety in the normal working conditions as assessed and certified by a competent person;

(zx)

"scaffold" means any temporarily provided structure on or from which building workers perform work in connection with building or other construction work to which these rules apply, and any temporarily provided structure which enables building workers to obtain access to or which enables materials to be taken to any place at which such work is performed, and includes any working platform, gangway, run, ladder or stepladder (other than a ladder or stepladder which does not form part of such structure) together with any guardrail, toe board or other safeguards and all fixings, but does not include lifting appliance or a lifting machine or a structure used merely to support such an appliance or such a machine or to support other plant or equipment;

(zy)

"section" means a section of the Act;

(zz)

"schedule" means a Schedule appended to these rules;

(zza)

"segment" includes a cast iron or precast concrete segmented structure formed to the curvature of the tunnel cross-section and used to support the ground surrounding the tunnel;

(zzb)

"service shaft" means a shaft for the passage of building workers or materials to or from a tunnel under construction;

(zzc)

"shaft" means an excavation having a longitudinal axis at an angle greater than forty-five degree from the horizontal -

3.

Interpretation of words not defined.

- Words and expressions not defined on these rules but defined or used in the Act shall have the same meaning as assigned to them in the Act.

4.

Savings.

- The provisions of these rules shall be in addition to and not in substitution for or in diminution of the requirements imposed by the Act.

Chapter II

Responsibilities And Duties Of Employers, Architects, Project Engineers And Designers, Building Workers, Etc.

5.

Duties and responsibilities of employers, employees and others.

(1)

It shall be the duty of every employer who is undertaking any of the operations or works related to or incidental to building or other construction work to which these rules apply ;

(a)

to comply with such of the requirements of these rules as are related to him:

Provided that the requirements of this clause shall not affect any building worker if and so long as his presence in any place of work is not in the course of performing any work on behalf of his employer and he is not expressly or impliedly authorized or permitted by his employer to do the work; and

(b)

to comply with such of the requirements of these rules as are related to him in relation to any work, act or operation performed or about to be performed by him.

(2)

It shall be the duty of every employer who erects or alters any scaffold to comply with such of the requirements of the provisions of these rules as relate to the erection or alteration of scaffolds having regard to the purpose or purposes for which the scaffold is designed at the time of erection or alteration; and such employer, who erects, installs, works or uses any plant or equipment to which any of the provisions of these rules apply, shall erect, install work or use such plant or equipment in a manner which complies with those provisions.

(3)

Where a contractor, who is undertaking any of the operations or works to which these rules apply, appoints any artisan, tradesman or other person to perform any work or services under a contract for services, it shall be the duty of the contractor to comply with such of the requirements of these rules as affect that artisan, tradesman or other person and for this purpose any reference in these rules to an employee shall include a reference to such artisan, tradesman or other person and the contractor shall be deemed to be his employer.

(4)

It shall be the duty of every employee to comply with the requirements of such of these rules as are related to the performance of or the refraining from an act by him and to co-operate in carrying out these rules.

(5)

It shall be the duty of every employer not to permit an employee to do anything not in accordance with the generally accepted principles of standard safe operating practices connected with building and other construction work as specified by the Central Government or by the State Government.

(6)

No employee shall do anything which is not in accordance with the generally accepted principles of standard safe operating practices connected with building and other construction work as specified by the Central Government or by the State Government.

(7)

No person related with any building and other construction work shall wilfully do any act which may cause injury to himself or to others.

(8)

It shall be the duty of every employer not to allow lifting appliance, lifting gear, lifting device, transport equipment, vehicles or any other device or equipment to be used by the building workers which does not comply with the provisions given in these rules.

(9)

It shall be duty of the employer to maintain the latrines, urinals, washing facilities and canteen in a clean and hygienic condition. The canteen shall be located in a place away from the latrines and urinals and polluted atmosphere and at the safe time be easily accessible to the building workers.

(10)

It shall be the duty of the employer to abide by the dates fixed and notified by him for payment of wages for a period in accordance with these rules and no change in such dates and such period shall be effected without notice to the building workers and the Inspector. The employer shall ensure timely payment of wages as specified under these rules and at the place and time notified by him. Where the employer is a contractor, he shall ensure that the wages of building workers are paid in the presence of a representative of the employer of establishment or owner of premises from whom he has taken the work on contract and obtain signatures of such representative in token of having witnessed the payment of wages.

(11)

It shall be the duty of the employer to ensure that the lifting appliance, lifting gear, earth moving equipment, transport equipment or vehicles used in the buildings or other construction work undertaken by him conforms to the requirements relating to testing, examination and inspection of such equipment as provided under these rules. It shall be the duty of every person in the service of the Government or any local or other public authority to comply with the requirements relating to him as given in these rules.

6.

Responsibilities of architects, project engineers and designers.

(1)

It shall be the duty of the architect, project engineer or designer responsible for the design of any project or part thereof or any building or other construction work to ensure that, at the planning stage, due consideration is given to the safety and health aspects of the building workers who are employed in the erection, operation and execution of such projects and structures as the case may be.

(2)

Adequate care shall be taken by the architect, project engineer and other professionals involved in the project, not to include anything in the design which would involve the use of dangerous structures or other processes workers during

the course of erection, operation and execution as the case may be.

(3)

It shall also be the duty of the professionals, involved in designing the buildings, structures or other construction projects, to take into account the safety aspects associated with the maintenance and upkeep of the structures and buildings where maintenance and upkeep may involve special hazards.

7.

Responsibilities of the persons in the service of the State Government and the Board.

- It shall be the duty of every person in the service of the Government of any State or a Board to comply with the directions given by the State Government from time to time to carrying into execution in that State the provisions of the Act and these rules.

8.

Duties and responsibilities of workers.

(1)

It shall be the duty of every building worker to comply with the requirements of such of these rules as relate to him, and act and co-operate in carrying out the requirements of these rules and if he discovers any defects in the lifting appliances, lifting gear, lifting device, concerning any transport equipment or other equipment, to report such defects without unreasonable delay to his employer or Forman or other person in authority.

(2)

No building worker, shall unless duly authorised or except in case of necessity, remove or interfere with any fencing, gangway, gear, ladder, hatch covering, life saving appliances, lighting or other things whatsoever required by the Act and these rules to be provided. If any of aforesaid things is removed, such thing shall be restored at the end of the period during which its removal was necessary by the persons engaged in that work.

(3)

Every building worker shall use only means of access provided in accordance with these rules and no person shall authorise or order another to use means of access other than such means of access.

(4)

It shall be the duty of a building worker to keep the latrines, urinals, washing points, canteen and other facilities provided by the employer for securing his welfare in a clean and hygienic condition.

9.

Exemption.

- The State Government may, by order in writing and subject to such conditions and for such period, as may be specified therein, exempt from all or any of the requirements of these rules :

(a)

any building or other construction work, if such Government is satisfied that such building work is confined to such workers, where it is not convenient to take measures as provided in these rules; or

(b)

any appliance, gear, equipment, vehicle or other device if such Government is satisfied that the requirement of such appliance, gear, equipment, vehicle or other device is not necessary for use or equally elective measures are taken in lieu thereof :

Provided that such Government shall not grant exemption under this rule unless it is satisfied that such exemption would not adversely affect the safety, health and welfare of building workers.

Chapter III

State Advisory Committee

(Section 4)

10.

Constitution of State Advisory Committee.

- The State Building and Other Construction Worker's Advisory Committee (hereinafter referred to as the State Advisory Committee) shall consist of -

(a)

A chairperson to be appointed by the State Government;

(b)

Two members of the State Legislature to be elected from the State Legislature - Members;

(c)

A member to be nominated by State Government;

(d)

Labour Commissioner, Uttar Pradesh - Member;

(e)

The Chief Inspector - Member ex officio;

(f)

Director General of Factory Advice Service and Labour Institutes, Government of India, Mumbai - Member;

(g)

Two persons, (sic out of) whom one shall be a woman to be nominated by the State Government representing the building workers - Members;

(h)

Two persons, out of whom one shall be a woman to be nominated by the State Government for representing the employers connected with the building and other construction work - Members;

(i)

One Officer of the rank of Chief Engineer of the Public Works Department to be nominated by the State Government - Member;

(j)

One Officer of the rank of Special Secretary to the Government from the Department of Housing to be nominated by the State Government - Member;

(k)

Two persons to be nominated by the State Government representing one from the Association of Architects or Engineers and one from Accident Insurance Institution - Member; and

(l)

Director, State Building Research Institute, Roorkee - Member.

11.

Terms of office.

(1)

The Chairperson of the State Advisory Committee shall hold office as such for a term of three years from the date on which his appointment is notified in the Official Gazette.

(2)

Each member referred to in clause (b) of Rule 10 shall hold the office for a term of three years or till he remains a member of the State Legislature, whichever is earlier.

(3)

Each of the members referred to in clause (g) and (h) of Rule 10 shall hold office as such for a term of three years with effect from the date of appointment as notified in the Official Gazette :

Provided that where the appointment of the successor of any such member has not been notified in the Official Gazette on or before the expiry of the term of his office, notwithstanding the expiry of the term of his office, such member shall continue to hold the office until the appointment of his successor is notified in the Official Gazette.

(4)

If a member of the Committee is unable to attend a meeting of the Committee the State Government may, after notice in writing to such member and Chairperson of the said Committee, nominate a substitute in his place to attend that meeting. Such a substitute member shall have all the rights of a member in respect of that meeting.

(5)

The State Advisory Committee shall be reconstituted after every three years.

12.

Resignation.

(1)

A member of the State Advisory Committee, not being Ex-officio Member, may resign his office by a letter in writing addressed to the State Government through its Secretary in the Department of Labour, with prior information to the

Chairperson of such Committee.

(2)

The seat of such a member shall fall vacant from the date on which his resignation is accepted by the State Government, or on the expiry of thirty days from the date of receipt of the letter of resignation by the State Government whichever is earlier.

13.

Cessation of membership.

- If any member of the State Advisory Committee, not being an Ex-officio Member, fails to attend three consecutive meetings of such Committee, without obtaining the leave of the chairperson of such committee for such absence, he shall cease to be a member of such committee :

Provided that the State Government may, if it is satisfied that such member was prevented by sufficient cause from attending three consecutive meetings, direct that such cessation shall not take place and on such direction being made, such member shall continue to be a member of such committee.

14.

Disqualification for membership of the State Advisory Committee.

(1)

A person shall be disqualified for being a member of the State Advisory Committee -

(i)

if he is of unsound mind and stands so declared by a Competent Court;

(ii)

if he is an un-discharged insolvent; or

(iii)

if he has been convicted of an offence which, in the opinion of the State Government, involves moral turpitude.

(2)

Where a question arises as to whether a disqualification has been incurred under sub-rule (1), the State Government shall decide such question whose decision thereon shall be final.

15.

Removal from membership.

- The State Government may remove from office any member of the State Advisory Committee, if in its opinion such member has acted contrary to the provisions of the Act or these rules or has incurred any of the disqualification as specified in Rule 14 :

Provided that no such member shall be removed unless a reasonable opportunity is given to him of making a representation against the proposed action under this rule.

16.

Manner of filling vacancies.

- When a vacancy occurs or is likely to occur in the membership of the Committee, the State Government shall take steps to fill up the vacancy by making an appointment from amongst the category of persons to which the person vacating membership belonged and the person so appointed shall hold office for the remainder of the term of office of the member in whose place he is appointed.

17.

Staff of State Advisory Committee.

(1)

(i)

The State Government may appoint one of its Officers not below the rank of Deputy Secretary to the State Government as Secretary to the State Advisory Committee and appoint such other staff, as it may think necessary to enable the committee to carry out its functions.

(ii)

The salaries and allowances payable to these staff and other conditions of service of such staff shall be such as may be determined by the State Government from time to time.

(2)

The Secretary of the State Advisory Committee -

- (i)
shall assist the chairperson of such committee in convening meetings of the committee;
- (ii)
may attend the meetings of such committee but not .entitled to vote at such meetings;
- (iii)
shall keep a record of the minutes of the meetings of such committee; and
- (iv)
shall take necessary measures to carry out the decisions taken at the meetings of such committee.

18.

Allowances of members.

(1)

The travelling allowances of an official member shall be governed by the rules applicable to him for journey performed by him on official duties and shall be paid by the authority paying his salary.

(2)

The non-official members of the State Advisory Committee shall be paid travelling allowances for attending a meeting of the Committee at such rates as are admissible to Group-A Officers of the State Government and daily allowances shall be calculated at the maximum rate admissible to Group-A Officers of the State Government in their respective places.

19.

Disposal of business.

(1)

Every matter which the State Advisory Committee is required to take into consideration shall be considered at a meeting of that committee, or if the chairperson of such committee so directs, by sending the necessary papers to every member for opinion, and the matter shall be disposed of in accordance with the decision of the majority :

Provided that where there is no opinion of majority on a matter and the members of such committee are equally divided person presiding the meeting of such committee shall have a second or a casting vote.

(2)

No act or proceedings of the State Advisory Committee shall be invalid merely for reasons of any vacancy or defect in constitution of the committee.

20.

Meetings.

(1)

The State Advisory Committee shall meet at such places and at such times as may be decided by the chairperson of such Committee and it shall meet at least once in six months or as and when any matter is referred to it by the State Government for advice.

(2)

The chairperson of such committee shall preside over every meeting of the committee in which he is present and in his absence he may nominate a member of the committee to preside over such a meeting in his place and in the absence of such nomination by the chairperson, the members of such committee present in such meeting may choose from amongst themselves a member to preside over such a meeting.

21.

Notice of Meetings and list of Business.

(1)

Ordinarily, two weeks notice shall be given to the members' of the State Advisory Committee of a proposed meeting :

Provided that the chairperson of such committee, if he is satisfied that it is expedient to do so, may give notice for a period for such meetings which shall not be less than one week.

(2)

No business except which is included in the list of Business for a meeting of such committee shall be considered at such meeting without the permission of the chairperson of the committee.

22.

Quorum.

- No business shall be transacted at any meeting of the State Advisory Committee unless at least six members of such

committee are present in that meeting, which shall include at least one member of State Legislature ;

Provided that if in any meeting of such committee less than six members are present, the chairperson of such committee may adjourn the meeting to another date informing members present and giving notice to the other members that he proposes to dispose of the business at the adjourned meeting whether there is prescribed quorum or not, and it shall thereupon be lawful for him to dispose of the business at the adjourned meeting irrespective of the number of members attending.

Chapter IV

Registration Of Establishments

(Sections 6 and 7)

23.

[Manner of making application for registration of establishments.

[Substituted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

- The application for registration of an establishment referred to in sub-section (1) of Section 7 shall be made in Form I annexed to these rules, to Registering Officer of the area appointed under Section 6 of the Act in such manner and process notified by State Government in which the building or other construction work is to be carried on by the establishment.

24.

Grant of certificate of registration.

(1)

Registering Officer shall within 1 day of receipt of application under sub-rule (1) of Rule 23 shall register the establishment and issue a certificate of registration in Form-2 to the applicant; if such applicant has complied with all the requirements as laid down in these rules and has made the application within such period specified under clause (a) and clause (b) of Section 7 of the Act, registering officer can grant or refuse to grant or object to grant otherwise the registration shall be deemed to be granted.

Applicant may submit his application on departmental web portal along with necessary documents and payment of fee. In such case automatic registration shall be done by web portal, provided application is complete in all respects and applicant is eligible, registration certificate shall be sent to applicant through e-mail:

Provided if registration is obtained by misrepresentation of facts or concealment of facts or on the basis of forged document, such registration shall be deemed null and void and can be cancelled by registering officer and legal action may be taken against applicant.

(2)

The Registering Officer shall maintain a register in Form- III annexed to these rules showing the particulars of establishments in relation to which certificates of registration have been issued, in such manner and procedure as directed by State Government.

(3)

If in relation to an establishment, any change occurs in the ownership or management or other particulars specified in certificate of registration, the employer of the establishment shall intimate the Registering Officer in such manner and procedure as directed by State Government within 30 days from the date when such changes take place along with amendment fee, the date and particulars of such change, and the reasons thereof.]

25.

Payment of additional fee and amendment of register etc.

(1)

Where on receipt of the intimation under sub-rules (3) and (4) of Rule 24 an amount higher than the amount, which has been paid by the employer as fee for the registration of the establishment is payable, the Registering Officer shall require such employer to pay the requisite additional fee.

(2)

Where on receipt of the intimation referred to in sub-rule (3) of Rule 24, the registering officer is satisfied that there has occurred a change in the particulars of the establishment, as entered in the register in Form-III annexed to these rules, he shall amend the said register and record therein the change which has occurred.

26.

Loss of Certificate of Registration.

- Where a certificate of registration granted under the rules is lost, mutilated or accidentally destroyed, a duplicate certificate of registration may be granted on payment of a fee of rupees ten.

27.

Conditions of registration.

(1)

Every certificate of registration issued under Rule 24 shall be subject to the following conditions, namely :-

(a)

the certificate of registration shall be non-transferable;

(b)

the number of workmen employed as building workers in an establishment shall not, on any day, exceed the maximum number specified in the certificate of registration; and

(c)

save as provided in these rules, the fees paid for the grant of a certificate of registration shall be non-refundable.

(d)

[Since the certificate is issued on the basis of self-declaration of applicant so if issued on the basis of misrepresentation of facts or concealment of facts or forged documents such certificate shall be deemed to be null and void and cancellation of certificate and legal action may be taken against the applicant.]

[Inserted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

(2)

The employer shall intimate the change, if any, in the number of workmen or the conditions of work to the registering officer within seven days.

(3)

The employer shall, before fifteen days of the commencement and completion of any building or other construction work, submit a written notice to the Inspector, having jurisdiction in the area where the proposed building and other construction work is to be executed, intimating the actual date of the commencement or, as the case may be, completion of such building or other construction work in Form-IV annexed to these rules.

(4)

The certificate of registration of an establishment shall be valid only for such building and other construction work carried out by such establishment for which intimation required under sub-rule (3) has been given.

(5)

A copy of the certificate of registration shall be displayed at a conspicuous place at the premises where the building and other construction work is being carried on.

28.

Fee for registration.

(1)

The fee to be paid for the grant of a certificate of registration under Rule 24 shall be as specified below, namely :-

If the number of workers proposed to be employed as building workers, for a building or other construction work on one day :-

(a) Is up to 100

Rs. 1,000.00

(b) Exceeds 100 but does not exceed 500

Rs. 5,000.00

(c) Exceeds 500

Rs. 10,000.00

Chapter V

Appeals, Copies Of Orders, Payment Of Fees Etc.

29.

Filing of appeal before the appellate officer.

(1)

Every appeal under sub-section (I) of Section 9 of the Act shall be preferred in the form of a memorandum signed by the aggrieved person or his authorised advocate and presented to the appellate officer in person or sent to him by

registered post.

(2)

The memorandum shall be accompanied by a certified copy of the order appealed against and a demand draft for rupees one hundred.

(3)

The memorandum shall set forth concisely and under distinct heads the grounds of the appeal.

(4)

Where the memorandum of appeal does not comply with the provisions of sub-rule (2) and sub-rule (3), it may be returned to appellant for the purpose of being amended within a time to be fixed by the appellate officer, which shall not exceed thirty days from the date on which the order appealed against has been communicated to the appellant.

(5)

Where the memorandum of appeal is in order, the appellate officer shall admit the appeal, endorse thereon the date of hearing of such appeal, and shall register the appeal in a book to be kept for the purpose called the register of appeals.

(6)

(i)

When the appeal has been admitted under sub-rule (5), the appellate officer shall send the notice of the appeal to the registering officer against whose order the appeal has been preferred and the registering officer shall thereupon send the record of the case to the appellate officer.

(ii)

On receipt of the record, the appellate officer shall send a notice to the appellant to appear before him at such date and time as may be specified in the notice for the hearing of the appeal.

30.

Failure to appear on the date of hearing.

- If on the date fixed for hearing, the appellant does not appear, the appellate officer may dismiss the appeal for default of appearance of the appellant.

31.

Restoration of appeals.

- Where an appeal has been dismissed under Rule 29, the appellant may apply to the appellate officer for the restoration of the appeal and if the appellate officer is satisfied that the appellant was prevented by sufficient cause from appearing the appellate officer shall restore the appeal on its original number :

Provided that an application for restoration under this rule shall not be entertained by the appellate officer after thirty days from the date of such dismissal.

32.

Hearing of appeals.

(1)

If the appellant is present when the appeal is called on for the hearing, the appellate officer shall proceed to hear the appellant or his authorised advocate and pass an order on the appeal, either confirming, reversing or varying the order appealed against.

(2)

The order of the appellate officer shall state the points for determination, the decisions thereon and reasons for such decisions.

(3)

The order shall be communicated to the appellant and copy thereof shall be sent to the registering officer against whose order the appeal has been preferred.

33.

Copy of order of registration or of order in appeal.

- Copy of the order of the registering officer under Section 8 or of the appellate officer may be obtained by the person concerned or a person authorized by him on payment of fee of rupees fifty for each order on making application to the registering officer or the appellate officer, as the case may be, specifying the date and other particulars of the order made by the officer concerned. A copy of the certificate of registration on loss or mutilated or accidentally destroyed, a duplicate certificate of registration may be granted on payment of a fee of rupees ten.

34.

Payment of fee.

- All amounts of money payable on account of registration, appeal, supply of copies or duplicate copies of certificate of registration shall be paid in such manner as may be directed by the State Government from time to time.

Chapter VI

Hours Of Work, Wages And Welfare

(Section 28)

35.

Hours of work.

- No building worker employed in building or other construction work shall be required or allowed to work for more than nine hours a day or 48 hours a week.

36.

Interval of rest.

- No building worker employed in building or other construction work shall be required or allowed to work continuously for more than five hours unless he had an interval of rest of not less than half an hour.

37.

Spread over.

- The working day of a building worker employed in building or other construction work shall be so arranged that inclusive of the intervals of rest, if any; shall not spread over more than twelve hours on any day.

38.

Weekly rest.

- Each building worker employed in building and other construction work shall be allowed a day of rest every week thereafter referred to as the rest day which shall ordinarily be Sunday, but the employer may fix any other day of the week as the rest day ;

Provided that the building worker shall be informed of the day fixed as the rest day and of any subsequent change in such rest day before the change is effected, by display of a notice to that effect in the place of employment at the place specified by the Inspector having jurisdiction in this behalf.

39.

Over time (Section 29).

- When a building worker works in any building or other construction work for more than nine hours on any day or for more than forty-eight hours in any week, he shall, in respect of overtime work, be entitled to wages at double the ordinary rate of wages and a register of overtime works shall be maintained in Form-5.

40.

Substituted rest day and payment for work done on the rest day.

(1)

No building worker employed in building or other construction work shall be required or allowed to work on a rest day unless he already had or will have a substituted rest day for a whole day on one of the five days immediately before or after such rest day :

Provided that no substitution shall be made which results in a building worker working for more than ten days consecutively without a rest day for a whole day.

(2)

Where a building worker employed in building or other construction work has worked on a rest day and has been given a substituted rest day on any one of the five days before or after the rest day, as provided in Rule 38 and sub-rule (i) of this rule, such rest day shall, for the purpose of calculating the weekly hours of work, be included in the week in which such substituted rest day occurs.

(3)

A building worker employed in building or other construction work shall be granted wages for a rest day, calculated at the rate applicable to the day preceding such rest day and in case he has Worked on a rest day and has been given a substituted rest day he shall be paid wages for such rest day on which he worked, at the overtime rate and wages for such substituted rest day at the rate applicable to the day preceding such substituted rest day.

Explanation I. - For the purpose of this rule "preceding day" means the last day preceding a rest day or a substituted rest

day, as the case may be, on which a building worker had worked and where such substituted rest day falls on a day immediately after such a rest day such "preceding day" means the last day preceding such rest day on which such building worker had worked.

Explanation II. - For the purposes of this rule, "week" shall mean a period of seven days beginning at midnight on a Saturday night.

41.

Night shifts.

- Where a building worker employed in building or other construction work works on a shift which extends beyond midnight -

(a)

[A rest day for the purposes of Rule 38 and Rule 40 shall mean a period of twenty-four consecutive hours beginning from the time when such shift ends;]

[Substituted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

(b)

the hours after midnight during which such building worker has worked shall be counted towards the previous day; and

(c)

the following day shall be deemed to be the period of twenty-four hours beginning from the time when such shift ends.

42.

Working hours for female workers.

(1)

No female building worker shall be employed by the employer in a building or other construction work before 6.00 am or after 7.00 p.m. ;

Provided that the provision of this rule shall not apply to the employment of women in creches and canteens and other emergent work which, for technical reason is required to be done within a time limit or which once started has to be carried on till it is finished.

(2)

The State Government may, by notification in the Official Gazette, in respect of building or other construction work vary the limits laid down in sub-rule (1), but so that no such variation shall authorize the employment of any female workers between the hours of 10 p.m. and 5 a.m.

43.

Application of foregoing provisions.

- The provisions of this chapter shall apply to the classes of building workers specified under clauses (a) to (d) of sub-section (2) of Section 28 of the Act subject to the following, namely -

(1)

no building worker employed in building or other construction work shall be required or allowed to work continuously for more than fifteen hours a day inclusive of intervals of rest or sixty hours in a week:

Provided that intervals of rest not less than half an hour are given after every five hours of continuous work as per Rule 36.

(2)

no building worker employed in building and other construction work shall be required or allowed to work for more than fourteen consecutive days unless a rest of twenty-four hours is given for rest to such worker;

(3)

where the working hours in respect of a building worker employed in building or other construction work have exceeded the hours of work as laid down in Rule 35 or where such worker has been deprived of a rest day due to application of sub-rules (1) and (2) of this rule, such worker shall be paid at double the rate of normal wages in respect of the work done in excess of such daily or weekly hours and for work done on such rest-day.

44.

Notice of wage period [Section 30(2)].

- Notice of rates of wage, date of payment of wage and names and address of the inspectors of concerned region to such establishment and date of payment of unpaid wages to such workers, in English, Hindi or in the local language understood by the majority of such building workers shall be displayed by the employer at the conspicuous place in each

establishment by every employer.

45.

Notice of commencement and completion of work [Section 46(1)].

- Every employer shall, at least thirty days before the commencement of any building or other construction work under his control, send or cause to be sent to the Inspector having jurisdiction, a written notice intimating the actual date of the commencement, the probable date of completion and other such particulars as referred to in sub-section (1) of Section 46 of the Act relating to such building or other construction work in Form-4 annexed to these rules.

46.

Display of abstract of Act and Rules.

- Every employer shall display at the conspicuous place of the work site where he employs building workers, an abstract of the Act and these Rules in English and in Hindi and in a language understood by the majority of such building workers.

47.

Register of building workers [Section 30(1)].

- Every employer shall maintain in respect of each registered establishment, where he employs building workers, a register in Form-6 annexed to these rules.

48.

Muster roll, wages register and deduction register [Section 30(1)].

- Every employer shall maintain in respect of each work on which he employs building workers -

(a)

Muster roll and a register of wages in Form-7 and Form-8, respectively -

Provided that a combined register of wage-cum-muster roll in Form-9 annexed to these rules shall be maintained by the employer where the wage period for such building worker is a fortnight or less;

(b)

a register of deductions for damage or loss, register of fines and register of advances in Form-10, Form-11, and Form-12, respectively annexed to these rules.

49.

Payment of wages.

(1)

The wage of every building worker employed as such construction site where less than one thousand such building workers are employed are paid before the expiry of the seventh day and in other cases before the expiry of tenth day after the last day of the period in respect of which such wages are payable.

(2)

In case the employment of such building worker is terminated by or on behalf of such employer, the wages earned by such building worker are paid before the expiry of the second working day from the day on which employment of such building worker is terminated.

(3)

All payments of wages are made on a working day at such construction site and during the working time and on a date notified in advance and in case he work is completed the final payment of wages is made within forty-eight hours of such completion of work.

50.

Wage Books and service certificate.

(a)

Every employer, in respect of each work on which he engages building workers shall issue, where the wage period of one week or more wage book to each of such building worker in Form-13.

(b)

The employer shall issue a service certificate to each of such building workers in Form-14 on termination of his service on account of completion of such work or for any other reason.

51.

Maintenance of records in respect of establishment [Section 30(1)].

(1)

In respect of an establishment to which the Payment of Wages Act, 1936 (4 of 1936) or Minimum Wages Act, 1948 the Contract Labour (Regulation and Abolition) Act, 1970 applied the following registers and records required to be maintained by an employer under any of such Acts or the rules made thereunder, shall be deemed to be the registers and records maintained by the employer under these rules, namely -

- (i)
muster roll;
- (ii)
register of wages;
- (iii)
register of deductions;
- (iv)
register of overtime;
- (v)
register of fines;
- (vi)
register of advances;
- (vii)
combined register of wages-cum-muster roll.

(2)
Notwithstanding anything contained in these rules, where a combined or alternative Form, in lieu of any Form specified under these rules, is sought to be used by an employer to avoid duplication of work for compliance with the provisions of any other Act or the Rules framed thereunder or for administrative convenience, such combined or alternative Form may be used with the prior approval of the State Government.

(3)
Every register or other record shall be preserved by the employer, with whom such register or other record belongs, in original for a period of three calendar years from the date of last entry therein.

52.
Production of registers and records.

- Every register, record or notice maintained under the Act or these rules shall be produced or caused to be produced by the employer concerned on demand before the Inspector or any other authority under the Act or any other person authorized by the State Government for such purpose.

53.
Returns.

- Every employer of a registered establishment shall send, annually, a return relating to such establishment in duplicate in Form-15 annexed to these rules to the registering officer so as to reach him not later than the fifteenth February following the end of each calendar year with a copy to the Inspector of the concerned region.

54.
Latrine and urinal : accommodation (Section 33).

- Latrines or urinals, as the case may be required to be provided under Section 33 of the Act shall be of the types as specified below namely :

- (a)
every latrine shall be under cover and so partitioned off as to secure privacy and shall have a proper door and fastenings;
- (b)
sufficient latrine and urinal accommodation of prescribed types shall be provided conveniently situated and accessible to workers at all times while they are at work -
 - (i)
where both male and female building workers are employed, there shall be displayed outside each block of latrines or urinals a notice containing therein "For Men Only" or "For Women Only" as the case may be written in the language understood by the majority of such workers;
 - (ii)

such notice shall also bear the figure of a man or of a woman, as the case may be.

(c)
every latrine or urinal shall be conveniently situated and accessible to building workers at all times;

(d)
every latrine or urinal shall be adequately lighted and shall be maintained in clean and sanitary condition at all times;

(e)
water shall be provided by means of a tap or otherwise so as to be conveniently accessible in or near every latrine or urinal;

(f)
every latrine or urinal other than those connected with a flush sewage system shall comply with the requirements of the public health authorities;

(g)
the walls, ceilings and partitions of every latrine or urinal shall be white washed or colour washed once in every period of four months.

55.

First aid facilities (Section 36).

- [(a) Sufficient number of first aid boxes or cupboards are provided and maintained for providing first aid to the building workers and every such box or cupboards is distinctly marked "First Aid" and is equipped with the articles specified in Schedule III.]

[Substituted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

(b)
Nothing except appliances or requisites for first aid is kept in first aid box or cupboard and such box or cupboard is so kept as to protect it against contamination by dust or other foreign matter and against penetration of moisture and such box or cupboard is kept in the charge of a person trained in first aid and is always readily available during working hours.

56.

Canteen (Section 37).

- (i) In every place wherein not less than 250 building workers are ordinarily employed, the employer of such building workers shall provide an adequate canteen in the manner as specified in this rule for the use of such building workers.

(ii)
The canteen referred to in sub-rule (i) shall consist of a dining hall with furniture sufficient to accommodate building workers using such canteen, a kitchen, a storeroom, pantry and washing places separately for building workers and for utensils and shall be sufficiently lighted at all times when any person has access to it.

(iii)
The floor of such canteen shall be made of smooth and impervious material and inside walls of such canteen shall be lime-washed or colour washed at least once in every six months :

Provided that inside walls of the kitchen of such canteen shall be lime-washed once in every three months.

(iv)
Waste water from such canteen shall be carried away in suitable covered drains and shall not be allowed to accumulate-in the surroundings of such canteen.

(v)
Building of the canteen referred to in sub-rule (i) shall be situated at the distance not less than 15.20 metres from any latrine or urinal or any source of dust, smoke or obnoxious fumes.

(vi)
Suitable arrangement shall be made for the collection and disposal of garbage from such canteen.

57.

Foodstuff to be served in the canteen.

- The foodstuffs and other items to be served in the canteen, referred to in sub-rule (i) of Rule 56, shall be in conformity with the normal dietary habits of the building workers.

58.

Serving of tea and snacks at the work places.

- At a building or other construction work where a work place is situated at a distance of more than 200 meter from the

canteen provided under sub-rule (1) of Rule 56, arrangement shall be made by the employer employing building workers at such place for serving tea and light refreshment to such building workers at such place.

59.

Charges of foodstuff.

(a)

The charges of foodstuffs, beverages and other items served in the canteen provided under sub-rule (i) of Rule 56, shall be based on "no profit no loss" and the price list of such items shall be conspicuously displayed in such canteen.

(b)

In arriving at the prices of items referred to in sub-rule (1) the following shall not be taken into consideration as expenditure, namely :-

(i)

the rent for land and building of such canteen;

(ii)

the depreciation and maintenance charges for the building and equipment provided in such canteen;

(iii)

the cost of purchase repairs and replacement of equipment including furniture, crockery, cutlery, utensils and uniforms provided to the employees of such canteen;

(iv)

the water charges and other charges incurred for lighting and ventilation of such canteen; and

(v)

the interest on the amounts spent for providing and maintaining furniture and other equipment for such canteen.

(c)

[At such places, where more than fifty building construction workers are employed, the employer shall establish a kitchen. The Board, may provide one time grant for equipments, which may include furniture, crockery, cutlery and utensils for kitchen.

[Inserted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

(d)

Being such number of building construction workers, the employer shall provide subsidised food. The quantum of subsidy will be decided by the Board and its burden would be borne by the employer.]

Chapter VII

Construction Safety And Health (Section 40)

Scaffold

[Section 40(2)(a)]

60.

Scaffold construction.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

every scaffold and its component shall be of good construction made of sound materials and free from defects and is safe for the purposes for which it is intended for use;

(b)

in case bamboo is used for scaffolding, such bamboo is of suitable quality, good condition, free from protruding knots and stripped off to avoid any injury to building workers during handling such bamboo:

(c)

all metal scaffolds used in building or other construction work conform to the relevant national standards.

61.

Supervision by a responsible person.

- The employer shall ensure at a construction site of a building or other construction work that no scaffold is erected, added, altered or dismantled except under the supervision of a responsible person for such erection, addition, alteration or dismantling.

62.

Maintenance of scaffolds.

- The employer shall ensure at a construction site of a building or other construction work that :

(1)

the scaffold used in building or other construction work is maintained in good repairs and the measures are taken against its accidental displacement or any other hazard;

(2)

no scaffold or part thereof is partly dismantled and allowed to remain in such a condition unless :-

(i)

the stability or safety of the remaining portion of such scaffold has been ensured by a responsible person for the safety of such scaffolds;

(ii)

in case the remaining part of such scaffold cannot be used by the building workers, necessary warning notice written in Hindi and in a language understood by the majority of the building workers that such scaffold is unfit for use, is displayed at the place where such scaffold is erected.

63.

Standards and ledgers.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

Standards of a scaffold are -

(i)

plumb, where practicable; fixed sufficiently close together to secure the stability of such scaffold having regard to all the possible working situations and conditions for the intended use of such scaffold;

(ii)

spaced as close as practicable to ensure safety and stability of such scaffold;

(b)

Adequate measures are taken to prevent displacement of a standard of a scaffold either by providing sole plate or a base plate, as necessary;

(c)

Ledgers of metal scaffold are placed at vertical intervals with due regard to safety and stability of such scaffold;

(d)

Bamboo ledgers are kept as nearly as possible and are placed and fastened to the standards of a scaffold with due regard to the stability of such scaffold.

64.

Working platform.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

working platform is provided around the face or edge of a building adjoining at every upper most permanent floor of such building under construction and at any level where construction work of such building is carried out;

(b)

a platform is designed to suit the number of building workers to be employed on each bay of a scaffold work on such platform and the materials or articles and tools to be carried with them in such bay;

(c)

the safe working load and the number of building workers to be employed in each bay of a scaffold are displayed for the information of all the building workers employed at such construction site.

65.

Board, plank and decking.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

board, plank and decking used in the construction of a working platform is of uniform size and strength and is capable of supporting the load and number of building workers in accordance with the relevant national standards keeping in view the safety of such building workers;

(b)

metal decking, which forms part of a working platform, is provided with non-skid surface;

(c)

no board or plank which forms the working platform is projected beyond its end support unless it is effectively prevented from tripping or lifting;

(d)

board, plank or decking is fastened and secured;

(e)

at any one time, not more than two working platforms per bay, are used to support building workers or materials or articles at such bay;

(f)

adequate measures are taken to prevent injury which may be caused by falling material and objects by using safety nets or other suitable means;

(g)

concrete, other debris or materials are not allowed to accumulate at any platform on a scaffold;

(h)

where a work is to be done at the end of a wall, working platform at such workplace is faced or, wherever practicable, at least 60 centimeter beyond the end of such wall.

66.

Repair of damaged scaffold.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

no building worker is permitted to work on a scaffold which has been damaged or weakened unless adequate safety measures have been taken to ensure the safety of such building worker;

(b)

necessary warning signs are displayed at such places where repairs of scaffold are undertaken.

67.

Opening.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

No opening is allowed in any working platform except for access to such working platform;

(b)

Wherever opening on a platform is unavoidable, necessary measures for protection against falling of objects or building workers from such platform are taken by providing suitable safety nets, belts or any other similar means;

(c)

Access from one working platform to another platform on a scaffold, if required, is provided with suitable and safe ladder for the use of building workers working on such platforms.

68.

Guardrails.

- Every side of a working platform from which a person is liable to fall is provided with suitable and safe guardrails and to board of adequate strength to prevent fall of any building worker, material or tools from such platform.

69.

Scaffold used by building workers of different employers.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

Where a scaffold or a part of scaffold is used, which has previously been used by another employer for his building workers, such scaffold or part thereof is used only after its inspection and examination by a responsible person for its use that such scaffold or part is safe and fit for such use;

(b)

If any rectification, alteration or modification in a scaffold or part thereof is needed to suit its use, such rectification, alteration or modification is made in consultation with the responsible person referred to in clause (a) before using such scaffold or part.

70.

Protection against electric power line.

- The employer shall ensure at a construction site of a building or other construction work that all necessary and practical measures for protection of a building or other construction works are taken to prevent any building worker, working on a scaffold from coming into contact with the electric wires dangerous equipment.

71.

Screening net and wire nets.

- The employer shall ensure at a construction site of a building or other construction work that where a scaffold is erected in an area where the construction activities may pose hazards to pedestrians or vehicular traffic nearby from the falling of objects, wire nets or screening nets are used to envelope such scaffold.

72.

Tower scaffold.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

the height of every tower scaffold used in building or other construction work is not more than eight times, the lesser of a base dimension of such scaffold;

(b)

a tower scaffold is lashed to a building or a fixed structure before being used by the building workers;

(c)

any tower scaffold which can be moved or castered is :

(i)

constructed with due regard to the stability and, if necessary, adequately weighted at the base;

(ii)

used only on plain and even surface; and

(iii)

has casters provided with positive locking devices to hold such scaffold in position.

(d)

no building worker remains on board scaffold, tools, material when it is being shifted from one position to another position.

73.

Gear for suspension of scaffold.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

chains, ropes or lifting gears used for suspension of a scaffold are of adequate strength, made of sound material and suitable for the purposes of their use and are maintained in good repairs;

(b)

chains, wire ropes or metal tubes used for the suspension of a scaffold are -

(i)

properly and securely fastened to every anchorage point and to the scaffold ledgers of other main supporting members use for the support of such scaffold; and

(ii)

so positioned as to ensure stability of the scaffold.

74.

Trestle scaffold.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

no trestle scaffold is constructed with more than three tiers or if its working platform is more than 4.50 metres above the ground or floor or other surface upon which such scaffold is erected, such trestle scaffold is designed by professional engineer and has the approval of Chief Inspector before being taken into use;

(b)

no trestle scaffold is erected on a suspended scaffold.

75.

Cantilever scaffold.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

no cantilever or jib scaffold is used unless it is adequately supported, fixed and anchored on opposite side of its support has out-riggers of adequate length and where necessary sufficiently supported and braced to ensure safety and stability of such scaffold;

(b)

no working platform resting on bearers let into a wall at one end and without other support is used unless such bearers are of adequate strength, braced through the wall and securely fastened on the other side.

76.

Scaffold supported by building.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

no part of a building is used as support or part of a scaffold unless such part of the building is made of sufficient strength and made of sound material to afford safe support;

(b)

overhanging eaves gutters are not used for supporting scaffold;

(c)

suspended scaffold is made of in accordance with the relevant national standards before being used by the building workers.

77.

Use of winches and climbers for suspended scaffold.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

no suspended scaffold is raised or lowered by winches or climbers unless such scaffold is made of sound material, adequate strength and has been tested and certified safe for use of winches or climbers for such raising or lowering by a competent person before being taken into use;

(b)

all suspended scaffolds counter balanced by counter weights are of types, approved by the Chief Inspector before being taken into use for building or other construction work;

(c)

the working platform of a suspended scaffold is securely fastened to the building or structure as to be safe and to prevent such platform from swing;

(d)

The safe working load which a suspended scaffold can carry, is displayed where such scaffold is being used.

78.

Safety devices for suspended scaffold.

- The employer shall ensure at a construction site of a building or other construction work that every suspended scaffold, raised or lowered by the winches or climbers, is provided at each of its suspension point with a safety rope with automatic safety device mounted on each of such rope so that such safety rope with such automatic safety device supports the platform of such scaffold in the event of failure of a primary suspension wire ropes, winches, climbers or any part of the mechanism used for raising or lowering such suspended scaffold :

Provided that this rule shall not apply :-

(a)

where the platform of such scaffold is supported at two independent suspension wire rope at or near each end of such platform so that in the event of failure of one of such suspension wire rope, the other wire rope is capable of sustaining the weights of such platform and its load and prevent it from tilting; or

(b)

where a system is incorporated which operates automatically to support the platform of such scaffold and its load in the event of failure of the primary suspension wire rope of such scaffold.

Ladders

[Section 40(2)(a)]

79.

Construction and use of ladders.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

every ladder or step-ladder used in building or other construction work is of good construction, made of sound material and of adequate strength for the purpose for which such ladder or step- ladder is used;

(b)

when a ladder is used as a means of communication, such ladder is lashed to a fixed structure so that while working on such ladder it does not slip;

(c)

a ladder or step-ladder does not stand on loose bricks or other loose packing and has a level and firm footing;

(d)

where it is required, in case of use of fixed ladders, sufficient foothold and hand-hold are provided for use by the building worker;

(e)

every ladder is -

(i)

secured so as to prevent undue swaying;

(ii)

equally and properly supported on each of its upright;

(iii)

so used as not to cause undue sagging; and

(iv)

placed as nearly as possible at an inclination of four in one.

(f)

the use of all ladders and step-ladders conform to the relevant national standards for their use.

80.

Rungs.

- No ladder is used which has a missing or defective rung or a rung which depends for its support solely on nails, spikes or other similar fixing.

81.

Materials for ladders.

- The employer shall ensure at a construction site of a building or other construction work that all wooden ladders used in building work -

(a)

are constructed upright of adequate strength and are made of straight-grained wood, free from defects and having the grain of such wood running lengthwise;

(b)

have rungs made of straight-grained wood free from defects and mortised or securely notched into the upright; and

(c)

have reinforcing metal ties, if the tenons of such ladders are not secured by wedges.

Catch Platform And Hoardings Chutes

82.

Catch platforms.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

catch platform is not used for storage of material or as a working platform and is at least two metres wide and is inclined so that the position of outer edge of such platform is 1.50 metres higher than the inner edge;

(b)

the open end of catch platform is properly fenced to the height not less than one meter.

83.

Hoardings.

- The employer shall ensure at a construction site of a building or other construction work that hoardings are constructed when the Chief Inspector considers it necessary for protection of building workers and directs such employer to construct such hoardings.

84.

Construction and use of chutes.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

wooden or metal chutes which are at an angle of more than forty-five degrees to the horizontal and used for the removal of materials are closed on all sides except at their openings used for receiving or discharging of materials or articles;

(b)

all openings of chutes except their top openings are closed when not in use;

(c)

every chute :-

(i)

is constructed of sound material adequate strength and is suitable for the purpose it is intended for use;

(ii)

exceeding twelve metres in height is constructed in accordance with the design and drawings of a professional engineer for such construction and approval of the Chief Inspector.

(d)

a suitable warning notice is displayed at conspicuous location, written in Hindi and in a local language, at the discharge end of every chute;

(e)

every chute is cleared when debris has accumulated to a height which can pose danger to building worker but such clearance is done in no case less frequently than once a day.

Demolition

[Section 40(2)(b)]

85.

Preparations before demolition.

- The employer shall ensure at a construction site of a building or other construction work that -

(1)

all glass or similar material or article in exterior openings are removed before commencing any demolition work;

(2)

all demolition operation shall be performed in presence of a responsible supervisor;

(3)

all water, steam, electric, gas and other similar supply lines are put-off and suitably capped and the concerned department of appropriate Government or local authority is informed and wherever permission is required will be obtained from the such authority before commencement of such demolition work;

wherever it is necessary to maintain water, gas, electric line or power during such demolition work such line shall be protected with substantial covering to afford safety to the building workers and the general public so as to protect it from damage;

(4)

demolition work shall not be carried out unless remedial measures like sheet piling, shoring, bracing or similar other means so as to ensure safety and stability of unsafe adjacent structure from collapsing are taken.

86.

Protection of adjacent structures.

- The employer responsible for a demolition work at a construction site of a building or other construction work shall, during demolition process of such demolition work, examine the wall structures adjacent to the structure to be demolished to determine the thickness, method or support to such adjacent structures and in case, such employer has

reason to believe that any of such adjacent structure is unsafe or may become unsafe during such demolition process, he shall not perform demolition activity affecting such unsafe adjacent structure unless and until remedial measures like sheet piling, shoring, bracing, or similar other means so as to ensure safety and stability to such unsafe adjacent structure from collapsing are taken.

87.

Demolition of walls-Partitions etc.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

any demolition of walls or partitions is proceeded in a systematic manner as per the standard safe operating practices and all work above each tier of any floor beams is completed before the safety of the supports of such beam is impaired;

(b)

masonry is neither loosened nor permitted to fall in such masses or volume or weight as to endanger the structural stability of any floor or structural support;

(c)

no wall, chimney or other structure or part of a structure is left unguarded in such a condition that it may fall, collapse or weaken due to wind pressure or vibration;

(d)

in the case of demolition of exterior walls by hand, safe footing is provided for the building workers employed for such demolition, in the form of sound flooring or scaffolds;

(e)

walls or partitions which are to be demolished by hand are not left standing more than one storey high above the uppermost floor on which persons are working.

88.

Demolition of structural steel.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

all steel structure are demolished column by column and tier by tier and every structural member which is being demolished is not under any stress and such structural member is suitably lashed to prevent it from any uncontrolled swinging or dropping or falling;

(b)

large structural members are not thrown or dropped from the building but are carefully lowered by adopting suitable safe method;

(c)

where a lifting appliance like a derrick is used for demolition, the floor on which such lifting appliance rests is completely planked over or supported and such floor is of adequate strength to sustain bearing load for such lifting appliance and its operation.

89.

Method of operation.

- The employer shall ensure at a construction site of a building or other construction work that debris, bricks and other materials or articles are removed :-

(i)

by means of chutes;

(ii)

by means of buckets or hoists;

(iii)

through openings in the floors; or

(iv)

by any other safe means.

90.

Floor openings.

- The employer shall ensure at a construction site of a building or other construction work that every opening used for

the removal of debris from every floor which is not closed to access, except the top or working floor is provided with an enclosure from such floor to its ceiling, or such opening is so barricaded that no building worker has access to within a horizontal distance of six metres from such opening through which debris is being dropped.

91.

Inspection of demolition work.

- The employer shall ensure at a construction site of a building or other construction work that a person responsible for demolition work makes continuous inspections during demolition process of such demolition work so as to detect any hazard resulting from weakened or deteriorated floors or walls or loosened materials or articles during such demolition process and that no building worker is permitted to work where such hazard exist unless remedial measures like shoring or bracing are taken to prevent such hazards.

92.

Access to floor.

- The employer shall ensure at a construction site of a building or other construction work that safe access to and egress from every building is provided at all times in course of demolition by means of entrances, hallways, stairways or ladder runs which are so protected as to safeguard the building worker using such means from falling material or articles.

93.

Storage of materials or articles.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

all materials or articles are not stored or kept on platform floor or stairways of building being demolished :

Provided that this clause shall not apply to the floor of a building when such floor is of such strength as to support safely the load to be superimposed by storing such materials or article;

(b)

an access to any stairway or passageway is not affected or blocked by storing any material or article;

(c)

suitable barricades are provided so as to prevent materials or articles from sliding or rebounding into any space used by the building workers.

94.

Entry restriction.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

Barricades and warning signs are erected along every side throughout the length and breadth of a building or other construction work to be demolished to prevent unauthorized persons from entering into the site of such building or other construction work during demolition operations;

(b)

During the demolition of an exterior masonry wall or a roof from a point more than twelve metres above, the adjoining ground level of such wall or roof, if persons below such wall or roof are exposed to falling objects, suitable and safe catch platforms shall be provided and maintained at a level not more than six metres below the working level except where an exterior built-up scaffold is provided for safe and adequate protection of such persons;

(c)

suitable and standard warning signs in accordance with national standards are displayed or erected at conspicuous places or position at the workplace.

95.

Mechanical method of demolition.

- The employer shall ensure at a construction site of building or other construction work that the following requirements are fulfilled in case the mechanical method of demolition like use of swinging weight, clamshell bucket, power shovel, bulldozer or other similar mechanical methods are used for the purpose of demolition, namely :

(a)

that the building or structure or remaining portion thereof shall be not more than twenty-four metres in height;

(b)

that where a swinging weight is used for demolition, a zone of such demolition having a radius of at least one and a half

times the height of the structure or portion thereof being so demolished shall be maintained around the points of impact of such swinging weight;

(c)

where a clamshell bucket is being used for demolition, a zone of demolition shall be maintained within eight metres of the line of travel of such bucket;

(d)

that where other mechanical methods are being used to affect total or partial collapse of a building or other construction work, there shall be maintained, in the area into which the affected portion of such building or other construction work may fall, a zone of demolition at least one and a half times the height of such affected portion thereof; and

(e)

no person other than building workers or other persons essential to the operation of demolition work shall be permitted to enter a zone of demolition referred to in clause (a) which shall be provided with substantial barricades.

Erection Or Dismantling Of Steel Structures

[Section 40(2)(b)]

96.

General provision.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

The trained building worker under the direct supervision of a person, responsible for structural frame and form work, are employed for erection of such structural frame or form work, dismantling of building and structure and performance of an engineering work form work, false work and shoring work;

(b)

Adequate measures are taken to guard against hazards arising from any temporary state of weakness or unsuitability of structure.

97.

Form work, false work and shoring.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

form work and false work are so designed, constructed and maintained that such form work and false work support the load that may be imposed on them;

(b)

such formwork is so erected that working platform, means of access, bracing, means of handling and stabilizing could easily be fixed with such form work.

98.

Erection or dismantling of steel and prefabricated structure.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

the safety of building workers employed for the erection or dismantling of steel structures and prefabricated structures is ensured from danger by using appropriate means such as the following, namely :-

(i)

ladders, gangways or fixed platforms;

(ii)

platforms, buckets, boatswain's chair or other appropriate means suspended from lifting appliances;

(iii)

safety harness, life lines, catch net or catch platform;

(iv)

power-operated mobile working platforms.

(b)

the work of erection or dismantling of buildings or structures or form work or false work or shoring or any other civil engineering work is carried out by trained building workers under the supervision of a person responsible for such work;

(c)

steel or prefabricated structures are so designed and made that such structures can be safely transported or erected and weight of each unit of such structures is clearly marked on such unit;

(d)

the design of each such part maintains stability of each part of the structures referred to in clause (a), clause (b) and clause (c), when erected and to prevent danger, the design shall explicitly take in account -

(i)

the relevant conditions and methods of attachment in the operations of stripping, transport, storing and temporary support during erection of such parts; and

(ii)

safeguards, such as provision of railings with working platforms and for mounting such railings and platforms easily on the structural steel or prefabricated parts.

(e)

the hooks and other devices built in or provided on the structural steel or prefabricated parts that are required for lifting and transporting such parts are so shaped, dimensioned and positioned to withstand the stresses to which such hooks or other devices are subjected.

(f)

prefabricated parts made of concrete are not stripped or erected before such concrete has set and hardened sufficiently to the extent provided for in the plans, and such parts are examined by the responsible person for any sign of damage before their use;

(g)

store places are so constructed that -

(i)

there is no risk of structural steel or prefabricated parts falling or overturning;

(ii)

storage conditions generally ensure stability and avoid damage having regard to the method of storage and atmospheric conditions; and

(iii)

racks are set on firm ground and designed so that units cannot move accidentally in such store places.

(h)

structural steel or prefabricated parts are not subjected to Stress prejudicial to their stability while they are stored or transported or raised or set down.

(i)

tongs, clamps and other appliances for lifting structural steel and prefabricated parts are :

(a)

in such shape and dimensions as to ensure a secure grip without damaging such parts; and

(b)

marked with the maximum permissible load in the most unfavourable lifting conditions.

(j)

structural steel or prefabricated parts are lifted by such methods and appliances that prevent them from spinning accidentally;

(k)

structural steel or prefabricated parts are provided with railings and working platforms before raising such parts to prevent any danger of falling of building workers, materials or articles at the time of any work with such parts;

(l)

all reasonably practical measures are taken to avoid injury to building workers, building structure or equipment while structural steel or prefabricated parts are handled or stored or transported or raised or lowered;

(m)

structures are not worked on during violent storms or high winds or any other such hazardous situation;

(n)

the risk of falling to which building workers, moving on high or sloping girders, may be exposed is limited by all means of adequate collective protection or by the use of a safety harness which is well secured to a sufficiently strong support;

(o)

structural steel parts which are to be erected at a great height are, as far as practicable, assembled on the ground;

(p)

when structural steel or pre-fabricated parts are being erected, a sufficiently extended area underneath the workplace shall be barricaded or guarded;

(q)

steel trusses which are being erected are adequately shored, braced or guyed until they are permanently secured in position;

(r)

structural members are not forced into place by the hoisting machine while any building worker is in such a position that he is likely to be injured by such operation.

99.

Form work.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

all form work are properly designed keeping in view the safety of building workers, building or structures;

(b)

A responsible person for structural frame and form work-

(i)

inspects and examines the material, timber, structural steel and scaffolding for its strength and suitability before being taken into use;

(ii)

lays-down procedures to cover all stages of such structural frame and form work;

(iii)

supervises such structural frame and form work;

(iv)

[take all necessary steps or measures to correct any situation with a view to prevent accident or dangerous occurrence during performances of such structural frame and form work that]

[Ed. : Since the matter is not clear in the Gazette, the Hindi version is being reproduced below :-]

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100.

Deshoring.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

when shoring is removed, sufficient props are left in place of such shoring to prevent any possible hazard; and

(b)

deshoring is adequately braced or tied together with support to prevent any hazard.

Explosives

[Section 40(2)(c)]

101.

Handling of explosives.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

all explosives are handled, used or stored in accordance with the instructions and the material data sheet supplied by the manufacturer of such explosives;

(b)

the use of explosives is carried out in safe manner to avoid injury to any person and under the direct supervision of a responsible person;

(c)

before using any explosive, necessary warning and danger signals are erected, at conspicuous places of such use to warn the building workers and the general public of the danger involved in such use.

102.

Precautions.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

notwithstanding the provisions of Rule 101 the following precautions are observed at that those places of transporting, handling, storage and use of such explosives, namely -

(i)

prohibition of smoking, naked lights and other sources of ignition in the vicinity where explosives are handled, stored and used;

(ii)

to keep safe distance and to use non-sparking tools while opening packages containing explosives;

(iii)

to stop the use of explosive and handling thereof while the weather conditions are not suitable for such use or handling.

(b)

in addition to the provisions of this chapter all above provisions, all such measure and precautions required to be observed for use, handling, storing or transportation of explosives under the rule framed under the Explosives Act, 1884 (Act No. 4 of 1884) are observed.

Transport And Earth Moving Equipment

[Section 40(2)(d)]

103.

Earth moving equipment and vehicles.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

all vehicles and earth moving equipment are made of good material, proper design and sound construction and are sufficiently strong for the purpose for which such equipment are used and are maintained in good state of repair and are properly used in accordance with standard safe operating practices :

Provided that the truck or trailer employed for transporting freight containers are of the size sufficient to carry the containers, without overhanging and are provided with twist locks conforming to national standards, at all the four corners of each of such truck or trailers and such truck or trailers are certified for such use by an authority under the relevant law for the time being in force and is inspected by a responsible person, at least once in a month and record of such inspection is maintained

(b)

all transport or earth moving equipment and vehicles are inspected at least once a week by a responsible person and in case any defect is noticed in such equipment or vehicle, it is immediately taken out of use;

(c)

power trucks and tractors are equipped with effective brakes, head lights and tail lamps and are maintained in good repair and working order;

(d)

side stanchions on power trucks and trailers for carrying heavy and long objects are -

(i)

of sound construction and free from defects;

(ii)

provided with the chains attached to the top across the loads for preventing such stanchions from spreading out; and

(iii)

kept in position while loading and unloading;

(e)

safe gangways are provided for to and fro movement of building workers engaged in loading and unloading of lorries, trucks, trailers and wagons;

(f)

trucks and other equipment are not loaded beyond their safe carrying capacity which shall be clearly marked on such trucks and other equipment;

(g)

handles of hand trucks are so designed as to protect the hands of the building workers working on such trucks, or such handles are provided with knuckle guards;

(h)

no unauthorized person rides the transport equipment employed in such work;

(i)

a driver of a transport equipment handovers such equipment under the direction of a signaller;

(j)

adequate precaution such as isolating the electric supply or erecting overhead barriers of a safe heights is taken when earth moving equipment or vehicles are required to operate in dangerous proximity to any live electric conductor;

(k)

vehicles and earth moving equipments are not left on a slope with the engine of such vehicles or equipment running;

(l)

all earth moving equipments, vehicles or other transport equipment are operated only by trained persons who are adequately trained and possess such skill as are required for safe operation of such equipment, vehicle or other transport equipment.

104.

Power shovels and excavators.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

a shovel or an excavator whether operated, by steam or electric or by internal combustion used for such work is constructed, installed, operated, tested and examined as required under any law for the time being in force and the relevant national standards;

(b)

excavator equipped for use as a mobile crane is -

(i)

examined and tested in accordance with the requirements for such mobile crane under these rules; and

(ii)

fitted with an automatic safe working load indicator.

(c)

buckets of grabs of power shovels are propped to restrict the movement of shovel buckets or grabs while being repaired or while the teeth of such buckets or grabs are being changed.

105.

Bulldozers.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

an operator of a bulldozer before leaving such bulldozer :

(i)

applies the brakes;

(ii)

lowers the blade and sipper; and

(iii)

puts the shift lever into neutral.

(b)

a bulldozer is left on level ground at the close of the work for which such bulldozer is used;

(c)

The blade of bulldozer is kept low when such bulldozer is moving uphill;

(d)

The bulldozer blades are not used as brakes except in an emergency.

106.

Scrapers.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

a tractor and scraper is joined by safety line at the time of its operation;

(b)

the scraper bowls are propped while blades of such scraper are being replaced;

(c)

a scraper moving downhill is left in gear.

107.

Mobile asphalt layers and finishers.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

a mixture elevator is within a wooden or sheet metal enclosure with a window for observation, lubrication and maintenance;

(b)

bitumen scoops have adequate covers;

(c)

when asphalt plants are working on a public road, adequate traffic control is established on such road and the building workers working with such plant are provided with reflecting jackets;

(d)

a sufficient number of fire extinguishers are kept in readiness on such work place where fire hazards may exist;

(e)

the materials are loaded on the elevator after the drying drum has warmed up of such elevator;

(f)

no open light is used for ascertaining the level of asphalt;

(g)

inspection opening is not opened till there is a pressure in the boiler which may cause injury to a building worker.

108.

Pavers.

- The employer shall ensure at a construction site of a building or other construction work that pavers are equipped with guards suitable to prevent building workers from walking under the skip of such pavers.

109.

Road rollers.

- The employer shall ensure at a construction site of a building or other construction work that the bearing capacity of ground is examined before a road roller is used on such ground and a roller is not allowed to move downhill with the engine out of gear.

110.

General safety of vehicles and earth moving equipment.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

every vehicle and earth moving equipment is equipped with :

(i)

silencers;

(ii)

tail lights;

(iii)

power and hand brakes;

(iv)

reversing alarm; and

(v)

search light facilities for forward and backward movement which are required for safe operation of such vehicle and earth moving equipment.

(b)

the cab of vehicle earth moving equipment shall be at least 1.00 meter from the adjacent face of a ground being excavated;

(c)

when a crane or shovel is travelling, the boom of such crane or shovel is in the direction of such travel and the bucket or scoop attached to such crane or shovel is raised and without load, except when such travelling is downhill.

Lifting Appliances And Gear

[Section 40(2)(e)]

111.

Construction and maintenance of lifting appliances.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

all lifting appliances, including their parts and working gear, whether fixed or movable and any plant or gear used in anchoring or fixing of such appliances, are -

(i)

of sound construction, sound material and of adequate strength and shall be free from patent defects, and maintained in good repair and working condition.

(b)

(i)

every drum or pulley around which the rope of any lifting appliance is carried, is of adequate diameter and sound construction in relation to such rope;

(ii)

any rope which terminates at the winding drum of a lifting appliance is securely attached to such drum and at least three dead turns of such rope remain on such drum in every operating position of such lifting appliance;

(iii)

the flange of a drum projects twice the rope diameter beyond the last layer of such rope and if such projection is not available, other measures like anti-slackness guards shall be provided to prevent such rope from coming off such drum.

(c)

every lifting appliances is provided with adequate and efficient brakes which:

(i)

are capable of preventing fall of a suspended load (including any test load) and of effectively controlling such load while it is being lowered;

(ii)

act without shock;

(iii)

have shoes that can be easily removed for running; and

(iv)

are provided with simple and easily accessible means of adjustment :

Provided that nothing contained in this clause shall apply to steam winch which can be operated as safety as with brakes as provided in accordance with this clause.

(d)

controls of every lifting appliances -

(i)

are so situated that the driver of such appliance at his stand or seat has ample room for operating and has an unrestricted view of building or other construction work, as far as practicable, and that he remains clear of the load and ropes, and that no load passes over him;

(ii)

are positioned with due regard to ergonomic considerations for proper operation of such appliances;

(iii)

are so located that the driver of such appliance remains above the height of the heel block during the whole operation of such appliance;

- (iv)
have upon them or adjacent to them clear markings to indicate their purpose and mode of operations;
- (v)
are provided where necessary with a suitable locking device to prevent accidental movement or displacement;
- (vi)
move, as far as practicable, in the direction of the resultant load movement; and
- (vii)
wherever automatic brakes are provided, automatically come to the neutral position in case of power failure.

112.

Test and periodical examination of lifting appliances.

- The employer shall ensure at a construction site of a building or other construction work that -

- (a)
all lifting appliances including all parts and gears thereof whether fixed or movable are tested and examined by competent person before being taken in use for the first time or after it has undergone any alterations or repairs liable to affect its strength or stability or after erection on a construction site and also once at least in every five years, in the manner specified in Schedule-I annexed to these rules;
- (b)
all lifting appliances are thoroughly examined by a competent persons at least once in every twelve months wherein the opinion of competent persons that the lifting appliances or gears cannot continue to function safely he shall forthwith give notice in writing to the owner of the such appliances.

Explanation. - For the purpose of this rule, thorough examination means a visual examination, supplemented, if necessary, by other means such as hammer test, carried out as carefully as the conditions permit, in order to arrive at a reliable conclusion as to the safety of the parts examined; and, if necessary, for such examination, parts of the lifting appliance and gear, shall be dismantled.

113.

Automatic safe load indicators.

- The employer shall ensure at a construction site of a building or other construction work that :

- (a)
 - (i)
every crane, if so constructed that the safe working load may be varied by raising or lowering of the jib or otherwise, is attached with an automatic indicator of safe working loads which gives a warning to the operator wherever the load exceeds the safe working load;
 - (ii)
cut out is provided which automatically arrests the movements of the lifting parts of every crane if the load exceeds the safe working load, wherever possible.
- (b)
the provisions of sub-clause (i) of clause (a) apply, except where it is not possible to install an automatic safe load indicator, in which case, provision of a table showing the safe working loads at the corresponding inclinations or radi of the jib on the crane shall be considered sufficient.

114.

Installation of lifting appliances.

- The employer shall ensure at a construction site of a building or other construction work that :

- (a)
Fixed lifting appliances are installed -
 - (i)
by competent persons;
 - (ii)
in a manner that such appliances cannot be displaced by the load, vibration or other influences;
 - (iii)
in a manner that the operator of such appliances is not exposed to danger from loads, ropes or drums; and
 - (iv)

in a manner that the operator can either see over the zone of operation or communicate with all loading and unloading points by signal or other communications systems.

(b)

Adequate clearance is provided between parts or loads of lifting appliances and -

(i)

fixed objects such as walls, posts; or

(ii)

electrical conductors;

(c)

the lifting appliances, when exposed to wind loading are given sufficient additional strength, stability and rigidity to withstand such loading safely;

(d)

no structural alterations or repairs are made on any part of the lifting appliances that affect the safety of such appliances without obtaining the opinion of the competent person to this effect.

115.

Winches.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

(i)

Winches are not used if control levers operate with excessive friction or play;

(ii)

double gear winches are not used unless a positive means of locking the gear shift is provided;

(iii)

there is no load other than the fall and the hook assembly on the winch while changing gears on a two gear winch;

(iv)

adequate protection is provided to winch operator against abnormal weather;

(v)

temporary seats or shelters for winch operators which may pose hazard to the winch operator or any other building workers are not allowed to be used;

(vi)

control levers are secured in the neutral position and, whenever possible, the power is shut off whenever winches are left unattended.

(b)

in use of every steam winch -

(i)

measures are taken to prevent escaping steam from obscuring any part of the construction site or other work place or from otherwise hindering or injuring any building worker;

(ii)

extension control levers which tend to fall of their own weight are counter balanced;

(iii)

winch operators are not permitted to use the winch control extension levers except for short handles on wheel type controls and that such levers are of adequate strength, secured and fastened with metal connections at the fulcrum and at the permanent control lever;

(c)

in use of every electric winch, a building or other construction worker is not permitted to transfer, alter or adjust electric control circuits in case of any defect in such winch.

(d)

electric winches are not used for building work where -

(i)

the electro-magnetic brake is unable to hold the load; or

(ii)

one or more control points, either hoisting or lowering, are not operating properly.

(e)
test and examination of winches, derricks and their accessory gears is maintained in Form-16.
116.

Marking and display of safe working load.

- The employer shall ensure at a construction site of building or other construction work that :

(a)
every lifting appliance and loose gear is clearly marked and displayed for its safe working load by stamping and other suitable means;

(b)

(i)

every derrick (other than derrick crane) is clearly marked for its safe working load when such derrick is used either in single purchase with a lower block or in union purchases in all possible block position;

(ii)

the lowest angle to the horizontal, to which the derrick may be used, is legibly marked.

(c)

every lifting appliance having more than one working load is fitted with effective means to enable the operator to determine safe working load at each point under all conditions of use.

(d)

means to ascertain the safe working load for lifting gears under such conditions in which such gears may be used or provided to enable a worker using such gears and such means shall consist of -

(i)

marking the safe working load in plain figures or letters upon the sling or upon a tablet or ring of durable material attached securely thereto in case of chain slings; and

(ii)

either the means specified in sub-clause (i) or notices so exhibited as can be easily read by any concerned building worker stating the safe working load for the various sizes of the wire rope slings used in case of wire rope slings.

117.

Loading of lifting appliances and gears.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

no lifting appliance, lifting gear or wire rope is used in an unsafe way and in such a manner as to involve risk to life of building workers and that they are not loaded beyond their safe working load except for testing purposes under the direction of the competent person in the manner specified in Schedule-I annexed to these rules;

(b)

no lifting appliance, lifting gear or any other material handling appliance is used, if -

(i)

the Inspector having jurisdiction is not satisfied with reference to a certificate of test or examination or to an authenticated record maintained as provided under these rules; and

(ii)

in the view of such Inspector, the lifting appliances, lifting gear or any other material handling appliance is not safe for use in building or other construction work;

(iii)

no pulley block is used in building or other construction work unless the safe working load and its identification are clearly marked on such block.

118.

Operator's cab or cabin.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

the operator of every lifting machine in outdoor service is provided with a cab or cabin which -

(i)

is made of fire-resistant material;

(ii)

has a suitable seat, a footrest and protection from vibration;

(iii)

affords the operator an adequate view of the area of operation;

(iv)

affords the operator adequate protection against the weather;

(v)

is adequately ventilated; and

(vi)

is provided with a suitable fire extinguisher.

119.

Operation of lifting appliances.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

every crane driver or lifting operator possess adequate skill and training in the operation of the particular lifting appliances;

(b)

no person under eighteen years of age is in control of any lifting appliance, scaffold winch, or to give signals to the operator;

(c)

precaution is taken by the trained operator to prevent lifting appliance from being set in motion;

(d)

the operation of lifting appliance is governed by signals, in conformity with the relevant national standards;

(e)

the lifting appliance operator's attention is not distracted while he is working;

(f)

no crane, hoist, winch or other lifting appliance or any part of such crane, hoist, winch or other lifting appliance is, except for testing purposes, loaded beyond the safe working load;

(g)

during the hoisting operations effective precaution is taken to prevent any person from standing or passing under the load in such operations;

(h)

operator does not leave lifting appliance unattended while power is on or load is suspended to such appliance;

(i)

no person rides on a suspended load or on any lifting appliance;

(j)

every part of a load in course of being hoisted or lowered is adequately suspended and supported to prevent danger;

(k)

every receptacle used for hoisting bricks, tiles, slates or other materials is suitably enclosed so as to prevent the fall of any such materials;

(l)

the hoisting platform is enclosed when loose materials or loaded wheel-barrows are placed directly on such platform or lowering, such materials or wheel-barrows;

(m)

no material is raised, lowered or slowed with any lifting appliance in such a way as to cause sudden jerks to such appliance;

(n)

in hoisting a barrow, any wheel of such barrow is not used as a means of support unless adequate steps are taken to prevent the axle of such wheel from slipping out of its bearings;

(o)

long objects like planks of girders are provided with a tag line to prevent any possibility of danger while raising or lowering such objects;

(p)

during the process of landing of material, a building worker is not permitted to lean out into empty space for finding out the loading and unloading of such material;

(q)

the hoisting of loads at places where there is regular flow of traffic is carried out in an enclosed space, or in case such hoisting is impracticable in enclosed space, measures are taken to hold up or divert the traffic during the time of such hoisting;

(r)

adequate steps are taken to prevent a load, in the course of being hoisted or lowered from coming into contact with any object to avoid any displacement of such load;

(s)

appliances are provided and used for guiding heavy loads when raising or lowering heavy loads to avoid crushing of hands of building workers during such raising or lowering of loads.

120.

Hoist.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

hoist towers are designed according to relevant national standards;

(b)

hoist shafts are provided with rigid panels or other adequate fencing -

(i)

at the ground level on all sides of such shafts; and

(ii)

at all other levels on all sides of the access to such shafts.

(c)

the walls of hoist shafts, except at approaches, extend at least two metres above the floor or platform of access to such shafts;

(d)

approaches to a hoist are provided with gates which are -

(i)

gridded to maintain visibility;

(ii)

at least 2.00 metre height; and

(iii)

equipped with a device which requires such gate to be closed before the platform of such hoist can leave the landing and prevents the gate from being opened unless such platform, is at the landing.

(e)

approaches to a hoist are adequately lit;

(f)

the guides of hoist platforms offer sufficient resistance to bending and, to bucking, in the case of jamming by providing a safety catch;

(g)

overhead beams and their supports are capable of holding the total maximum live and dead loads that such beams and supports will be required to carry, with a safety factor of at least five;

(h)

a clear space is provided -

(i)

above the highest stopping place of a cage or platform to allow sufficient unobstructed travel of such case or platform in case of over winding; and

- (ii)
below the lowest stopping place of such cage or platform,
- (i)
adequate covering is provided above the top of hoist shafts to prevent materials from falling into such shafts;
- (j)
outdoor hoist towers are erected on adequately firm foundations and are securely braced, guyed and anchored;
- (k)
a ladderway extends from the bottom to the top of every outdoor hoist tower in case no other ladderway exists within easy reach and such ladderway comply with the relevant national standards;
- (l)
the rated capacity of a hoisting engine is at least one and half times of the maximum load that such engine will be required to move;
- (m)
all gearing on a hoisting engine is securely enclosed;
- (n)
steam piping of a hoisting engine is adequately protected against accidental contact of such piping with a building worker;
- (o)
electrical equipment of a hoisting engine is effectively earthed;
- (p)
a hoist is provided with suitable devices to stop a hoisting engine as soon as the platform of such hoist reaches its highest stopping place;
- (q)
a hoisting engine is protected by a suitable cover against weather and falling objects;
- (r)
a hoisting engine set up in a public thoroughfare is completely enclosed:
- (s)
all exhaust steam pipes discharge steam in such a manner that the steam so discharged does not scald any person or obstruct the operator's view;
- (t)
the motion of hoist shall not be reversed without first bringing it to rest to avoid any harm from such reverse motion;
- (u)
a hoist, not designed for the conveyance of person, is not set in motion from the platform of such hoist;
- (v)
pawls and ratchet wheels of a hoist, requiring disengagement of such pawls from such ratchet wheels, before the platform of such hoist is lowered, are not used;
- (w)
a platform of a hoist is capable of supporting such maximum load, that such platform may carry, with a safety factor of at least three;
- (x)
a platform of a hoist equipped with suitable safety gears which can hold such platform with its maximum load in case its hoisting rope breaks;
- (y)
on platform of a hoist, the wheelbarrows or truck are efficiently blocked in a safe position;
- (z)
a cage of a hoist or a platform where the building workers are required to enter into such cage or to go on such platform at landing level, is provided with a locking arrangement to prevent such cage or platform from moving during the time a worker enters or leaves such cage or platform;
- (za)
the sides of a platform of a hoist which, are not used for loading or unloading, are provided with toe-board and enclosures of a wire mesh or any other suitable means to prevent the fall of any part of a load from such platform;

- (i)
a conspicuous place of the platform of a hoist and such notice states the maximum carrying capacity of such hoist in kilograms;
- (ii)
a conspicuous place on the hoisting engine and that such notice states that maximum lifting capacity of such hoist in kilograms;
- (iii)
a conspicuous place on a hoist authorized and certified for the conveyance of the person on the platform or cage and such notice states the maximum number of persons to be carried on such hoist at one time;
- (iv)
a conspicuous place on a hoist carrying goods and other materials and such notice states that such hoist is not meant for carriage of persons.
- (zb)
a platform of a hoist, which has any probability of falling and part of load from it, is provided with an adequate covering with such fall;
- (zc)
the counter-weights of a hoist consisting of an assemblage of several parts are so constructed that such parts are rigidly connected together;
- (zd)
the counter-weights of a hoist run between guides;
- (ze)
at every level of work the building workers are provided with adequate platforms for performing such work;
- (zf)
a legible notice in Hindi as well as in local language is displayed at:

121.

Access to lifting appliances.

- The employer shall ensure at a construction site of a building or other construction work that every crane or tip driven by mechanical power is securely fenced and is provided with safe means of access and where access to such platform is by a ladder -

The height of such ladder exceeds 6 metres, the resting platforms are provided on such ladder at every six metres of its height and where the distance between last platform so provided and the top end of such ladder is more than two metres then on such top end.

122.

Rigging of derricks.

- The employer shall ensure at a construction site of a building or other construction work that every derrick has current and relevant rigging plans and any other information necessary for the safe rigging of such derricks and its gear.

123.

Securing of derrick foot.

- The employer shall ensure at a construction site of a building or other construction work that appropriate measures are taken to prevent the foot of a derrick being lifted out of its socket or support.

124.

Construction and maintenance of lifting gear.

- The employer shall ensure at a construction site of a building or other construction work that -

- (a)
every lifting gear is -

- (i)
of good design and construction, sound material and adequate strength to perform the work for which it is used,
- (ii)
free from patent defects, and
- (iii)
properly maintained in good repair and working order.

(b)

components of the loose gear, at the time of its use, are renewed if one of its dimensions at any point has decreased by ten per cent or more by user.

(c)

a chain is withdrawn from use when it is stretched and increased in length which exceeds five per cent of its length or when a link of such chain is deformed or is otherwise damaged or raised scarfs of defective welds is appeared on it;

(d)

rings, hooks, swivels and end links attached to a chain are of the same material as that of such chain;

(e)

the voltage of electric supply to any magnetic lifting device does not fluctuate by more than plus ten per cent or minus ten per cent.

125.

Test and periodical examination of lifting gears.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

[A lifting gear is initially tested for the manufacturer by a competent person in a manner specified in Schedule I annexed to these rules before taking into use or after undergoing any substantive alternations which renders it's any part liable to affect its safety and such gear alerts such test shall subsequently be re-tested for the use of its owner at least once in every five years.]

[Substituted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

(b)

a lifting gear in use is thoroughly examined once at least in every twelve months by a competent person;

(c)

a chain in use is thoroughly examined once at least every month by a responsible person for its use;

(d)

certificate of initial and periodical tests and examinations of loose gears under these rules are maintained in Form-17.

126.

Ropes.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

no rope is used for building or other construction work unless -

(i)

it is of good quality and free from patent defects; and

(ii)

in the case of wire rope, it has been tested and examined by a competent person in the manner specified in Schedule-I annexed to these rules.

(b)

every wire rope of lifting appliance or lifting gear used for building or other construction work is inspected by a responsible person for such use, once at least in every three months :

Provided that after any such wire is broken in such rope, it shall thereafter be inspected once at least in every month by the responsible person;

(c)

no wire rope is used for building or other construction work if in any length of eight diameters of such wires, the total number of visible broken wires exceed ten per cent of the total number of wares in such rope, or such rope shows sign of excessive wear, corrosion or other defects which in the opinion of the person who inspects it or Inspector, having jurisdiction, is unfit for use.

(d)

eye splices and loops of ropes for the attachment of hooks, rings and other such parts to wire ropes are made with suitable thimble;

(e)

a thimble or loop splice made in any wire rope sling conforms to the following standards, namely -

(i)
wire rope sling shall have at least three tucks with full strand of rope and two tucks with one-half of the wires cut out of each of such strand in all cases, such strands shall be tucked against the lay of the rope;

(ii)
protruding ends of such strands in any splice of wire rope slings shall be covered or treated so as to leave no sharp points;

(iii)
a fibre rope or a rope sling shall have at least four tucks; tail or such tuck being whipped in a suitable manner; and

(iv)
a synthetic fibre rope or rope sling shall have at least four tucks with full strand followed by further tuck with one-half filaments cut out of each of such strand and final tuck with one-half of the remaining filaments cut-out from such strands. Any portion of the splices containing such tucks, with reduced number of filaments, shall be securely covered with suitable tape or other materials :

Provided that nothing contained in this sub-clause shall apply where any other form of splice, which may be shown to be as efficient as the splice with above standards, is used.

127.

Heat treatment of lifting gears.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)
all chains other than bridle chains attached to derricks and all rings, hooks, shackles and swivels used in hoisting or lowering of such derricks are effectively annealed under supervision of a competent person at following intervals, namely -

(i)
such chains, rings, hooks, shackles and swivels which are not more than twelve and a half millimeter of length are so annealed at least once in every six months; and

(ii)
all other such chains, rings, hooks, shackles and swivels are so annealed at least once in every twelve months :
Provided that such annealing as referred to in sub-clause (i) and sub-clause (ii) shall not be required if the Inspector, having jurisdiction, after obtaining the approval of the Chief Inspector, directs that such chains, rings, hooks, shackles and swivels undergo some other treatment and in such cases the treatment directed by such Inspector shall be followed: Provided further that in case of such chains, rings, hooks, shackles and swivels used solely on such derricks and other hoisting appliances which are worked by hand, the provisions of sub-clause (i) and sub-clause (ii), as the case may be, shall apply as if for the period of six months and twelve months and two years have respectively been substituted therein :

Provided also that in case where the Inspector, having jurisdiction, is of the opinion that owing to the size, design, material or frequency of use of any such chains, rings, hooks, shackles and swivels, the requirement of this clause for annealing is not necessary for the protection of building worker, he may after obtaining the approval of the Chief Inspector, certify in writing to such employer that subject to the conditions specified in such certification, such chains, rings, hooks, shackles and swivels are exempted from such annealing and thereafter the provision of this clause shall apply subject to such exemption :

Provided also that this clause shall not apply to -

(i)
pitched chains, working on sprocket or sprocket ed wheels;

(ii)
rings, hooks and swivels permanently attached to pitched chains, pulley blocks or weighing machines; and

(iii)
hooks and swivels having ball bearings or other case hardened parts.

(b)
a chain or loose gear made of high tensile steel or alloy steel is plainly marked with a mark indicating that it is so made;

(c)
no chain or loose gear made of high tensile steel or alloy steel is subjected to any form of heat treatment except where

such treatment is necessary for the purpose of repair of such chain or loose gear and that such repair is made under the direction of competent person;

(d)

that the wrought iron gear, the past history of which is not traceable, is suspected of being heat treated at incorrect temperature, is normalized before using it on any building or other construction work.

128.

Certificate to be issued after actual testing and examination, etc.

- The employer shall ensure at a construction site of a building or other construction work that a competent person issues a certificate for the purpose of Rules 112, 117, 126 and 127 only after actual testing or, as the case may be, examination of the apparatus specified in the said rules.

129.

Register of periodical test, examination and certificates thereof.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

a register in Form-16 annexed to these rules, is maintained and particulars of such test and examination of lifting appliances, lifting gears and heat treatment as required under Rules 112, 117 and 127 are entered in such register;

(b)

certificate in respect of each of the following is obtained from competent person in the Forms as mentioned below, namely -

(i)

in case of initial and periodical test and examination under Rule 112 and Rule 126 for :

(a)

winches, derricks and their accessory gears in Form 16-A;

(b)

cranes or hoists and their accessory gears in Form-17.

(ii)

in case of test, examination and re-examination of loose gears under clause (d) of Rule 125 in Form-16;

(iii)

in case of test, and examination of wire rope under Rule 127 in Form-19;

(iv)

in case of test and examination of loose gears under Rule 125 in Form-18;

(v)

in case of annual thorough examination of the loose gears under clause (b) of Rule 125 except where required particulars of such exemption have been enclosed in the register referred to in clause (a), in Form-16 annexed to these rules and such certificates are attached to the register referred to in clause (a);

(c)

the register referred to in clause (a) and the certificates referred to in clause (b) attached to such register are -

(i)

kept at such construction site in case such register and certificate relate to lifting appliances, loose gear and wire ropes;

(ii)

produced on demand before an Inspector having jurisdiction; and

(iii)

retained for at least five years after the date of the last entry made in such register;

(d)

no lifting appliance or lifting gear in respect of which an entry is required to be made in register referred to in clause (a) and certificate of test and examination are required to be attached in such register in the manner as specified in clause (a) or clause (b), as the case may be, is used for building or other construction work unless the required entries have been made in such register and certificates.

130.

Vacuum and Magnetic Lifting Gear.

- The employer shall ensure at a construction site of building and other construction work that -

(a)

no vacuum lifting gear, magnetic lifting gear or any other lifting gear where the load on it is held by adhesive power is used while workers are performing operations beneath such gear;

(b)

a magnetic lifting gear used in connection with building or other construction work is provided with an alternative supply of power such as batteries which may come into operation immediately in the event of failure of the main power supply;

(c)

no building worker shall work within the swinging zone of the lifting gear or load or building or other construction material suspended to such lifting gear.

131.

Knotting of Chains and Wire Ropes.

- The employer shall ensure at a construction site of building and other construction work that no chain or wire rope with a knot in it is used in building or another construction work.

132.

Carrying of persons by means of lifting appliance, etc.

- The employer shall ensure at a construction site of a building or other construction work that -

(1)

no building worker is raised, lowered or carried by a power-driven lifting appliance, except :

(a)

on the driver's platform in the cage of a crane; or

(b)

on a hoist; or

(c)

on an approved suspended scaffold :

Provided that a building worker may be raised, lowered or carried by a power-driven lifting appliance -

(i)

in circumstances where the use of a hoist or of a suspended scaffold is not reasonably practicable and the requirements of sub-rule (2) are complied with; or

(ii)

on an aerial cableway or aerial ropeway in case where the requirements of sub-rule (2) are complied with;

(2)

The requirements referred to in proviso to sub-rule (1) are as below, namely:

(i)

that the appliance referred to in such proviso can be operated from one position only;

(ii)

that any winch used in connection with the appliance referred to in such proviso comply with the requirements of Rule 107;

(iii)

that no person shall be carried by the appliance referred to in such proviso except -

(a)

in a chair or cage, or

(b)

in a skip or other receptacle at least 90 centimetre deep which is suitable for safe carriage of a person and any such chair, cage, skip or other receptacle is made of good construction, sound material and has adequate strength and is properly maintained with suitable means to prevent any occupant therein from falling out of it and is free from any material or tools which may interfere with the handhold or foothold of such occupant or otherwise endanger him; and

(iv)

that suitable measures shall be taken to prevent the chair, cage, skip or other receptacle from spinning or tipping in a manner dangerous to any occupant therein.

133.

Hoists carrying persons.

- The employer shall ensure at a construction site of a building or other construction work that ;

(a)

no building worker is carried by a hoist unless it is provided with a cage which -

(i)

is so constructed as to prevent, when its gates are shut, any building worker carried by such hoist from falling out of it or from being trapped between any part of such cage and any fixed structure or the other moving part of such hoist or from being struck by articles or materials falling down the hoist way on which such hoist is moving; and

(ii)

is fitted on each of its side from which, access is provided to a landing place with a gate which has efficient interlocking or other devices to secure so that such gate cannot be opened except when such cage is at a landing place and that such cage cannot be moved away from any such place until such gate is closed.

(b)

every gate in the hoist way enclosure of such hoist used for carrying persons is fitted with efficient inter-locking or other devices to secure so that gate cannot be opened except when the cage of such gate is at the landing place, and that such cage cannot be moved away from the landing place until such gate is closed.

(c)

in every hoist used for carrying building workers these are provided suitable and efficient automatic devices to ensure that the cage of such hoist comes to rest at a point above the lowest point to which such cage may travel.

134.

Attachment of loads.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

when a sling is used to hoist long materials, a lifting beam is used to space the sling legs for proper balance and when a load is suspended at two or more points with slings, the eyes of the lifting legs of such slings are shackled together and such shackle or eyes of the shackles slings are placed on the hook or the eyes of such lifting legs shackled directly to the hoisting block, ball or balance beam, as the case may be;

(b)

every container or receptacle used for raising or lowering stone, bricks, tiles, slates or other similar objects is so enclosed with the hoist as to prevent the fall of such objects;

(c)

a loaded wheel-barrow placed directly on a platform of a hoist for raising or lowering of such wheel-barrow is so secured that such wheel-barrow cannot move and such platform is enclosed to prevent the fall of the contents kept in such wheel-barrow;

(d)

landings of a hoist are so designed and arranged that building workers on such hoist are not required to lean out into empty space for loading and unloading any material from such hoist.

135.

Tower cranes.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

no person other than the operator trained and capable to work at heights are employed to operate tower cranes;

(b)

the ground on which a tower crane stands has adequate bearing capacity;

(c)

bases for tower and trucks for rail-mounted tower cranes are firm and levelled and such cranes are erected at a reasonably safe distance from excavations and are operated within gradient limits as specified by the manufacturer of such cranes;

(d)

tower cranes are sited where there is a clear space available for erection, operation and dismantling of such cranes;

(e)

tower cranes are sited in such a way that the loads on such cranes are not handled over any occupied premises, public

thoroughfares, railways or near power cables, other than construction works for which such cranes are used;

(f)

where two or more tower cranes are sited and operated, every care is taken to ensure positive and proper communication between operators of such cranes to avoid any danger or dangerous occurrences.

(g)

tower cranes are used for loading magnet or demolition ball service, piling operations which could impose excessive load stresses on the crane structure of such cranes; and

(h)

the instructions of the manufacturer of a tower crane and standard safe practises regarding such crane are followed while operating or using such crane.

136.

Qualification of operator of lifting appliances.

- The employer shall ensure at a construction site of a building or other construction work that no person is employed to drive or operate a lifting appliance whether driven by mechanical power or otherwise or to give signals to driver or operator of such lifting appliances or to work as an operator of a rigger or derricks unless he -

(i)

is above eighteen years of age;

(ii)

is sufficiently competent and reliable;

(iii)

possesses the knowledge of the inherent danger involved in the operation of lifting appliances; and

(iv)

is medically examined periodically as specified in Schedule-VII by construction Medical Officer.

137.

Dust, gases, fumes etc. [Section 40-2(g)].

- An employer shall prevent concentration of dust, gases or fumes by providing suitable means to control their concentration within the permissible limit so that they may not cause injury or pose health hazard to a building worker at a building or other construction work.

138.

Eye protection [Section 40-2(g)].

- When a worker is engaged in operations like welding, cutting, chipping, grinding, breaking, dressing of stones, concrete or slag; or other similar operations which may cause injury to his eyes suitable personal protective equipment shall be provided by an employer for the use of building and other construction workers.

Stacking and Unstacking

[Section 40-2(h)]

139.

Stacking and unstacking of materials and articles.

- The employer shall ensure at a construction site of a building or other construction work that ;

(a)

where stacking, un-stacking, stowing or un-stowing of construction material or article, or handling in connection therewith cannot be safely (sic safely) carried out unaided, reasonable measures to guard against accident or dangerous occurrences are taken by shoring or otherwise to prevent any danger likely to be caused by such handling;

(b)

stacking of material or article is made on firm foundation not liable to settle and deviate such material or article and does not overload the floor on which such stacking is made;

(c)

the materials or articles are not stacked against partition or walls of a warehouse or store place unless it is known that such partition or the wall is of sufficient strength to withstand the pressure of such materials or articles;

(d)

the materials or articles are not stacked to such a height and in such a manner as would render the pile of such stack unstable and cause hazards to the building workers or the public in general;

(e)

where the building workers are working on, stack exceeding 1.50 metres in height, safe means of access to the stack is provided;

(f)

all stacking or unstacking operations are performed under the supervision of a responsible person for such stacking or unstacking;

(g)

the stacking of construction materials or articles is not made near the site of excavation, shaft, pit or any other such opening;

(h)

stacks which may lean heavily or become unstable or collapse are barricaded.

140.

Stacking of cement bags and materials.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

A stack pile is not more than ten bags in height unless such stack pile is stacked in a suitable enclosure or otherwise adequately supported;

(b)

While removing bags from the stack pile, the stability of such stack pile is ensured;

(c)

Bags containing cement or lime are stored in dry places;

(d)

The materials like bricks, tiles or blocks are stored on firm ground;

(e)

Reinforcing steel is stored according to its shape, size and length;

(f)

Stack of reinforcing steel is kept as low as possible;

(g)

No pipe is stored on rack or in stack where such pipe is likely to fall by rolling;

(h)

The angle of repose is maintained where loose materials are stacked;

(i)

When dust-laden material is to be stored or handled, measures are taken to suppress the dust produced by such storing or handling and able personal protective equipment are supplied to and used by the building workers working for such storing or handling.

141.

Fencing of moving part of plant or equipment etc. [Section 40-2(i)].

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

all motors, cogwheels, electric generator, rotary converter; transmission machinery, chains, friction gearing, flywheels, shafting, dangerous and moving parts of machinery (whether or not driven by mechanical power) shall be securely fenced by safeguards of substantial construction which shall be constantly maintained and kept in position while the parts of machinery, they are fencing are in motion or in use;

(b)

no part of any machinery, which is in motion and which is not securely fenced is examined, lubricated, adjusted or repaired except by a person trained for such examination, lubrication, adjustment or repairs;

(c)

moving parts of the elevators, hoists, screens, bunkers, chutes, grouting equipment used for concrete work and of other equipment used for storing, transport and other handling ingredients of concrete are securely, fenced to avoid contact of building workers with such moving parts;

(d)

screw conveyors used for cement, lime and other dusty materials are completely enclosed;

(e)

any part of machines shall not be cleaned or repaired unless such machine is stopped;

(f)

when a machine is stopped for servicing or repairing, adequate measures are taken to ensure that such machine does not re-start inadvertently.

142.

Pressure plant and equipment [Section 40-2(j)].

(a)

The employer shall ensure at a construction site of a building or other construction work that the pressure plant and equipment -

(i)

are examined and tested by the competent person before being put in use for such work;

(ii)

is of proper design and construction, sound material and adequate strength to perform the work for which it is used;

(iii)

is properly maintained in good repairs and working condition.

(b)

Tire pressure plant and equipment referred to in clause (a) is fitted with -

(i)

a suitable safety valve or other effective device to provide maximum safe discharge pressure from being exceeded at any time;

(ii)

a suitable pressure gauge with a dial range not less than one point five times and not exceeding twice the maximum working pressure, easily visible and designed to show at all times, the internal pressure in kilogram per square centimeter and marked with the maximum safe working pressure at such plant and equipment;

(iii)

a suitable stop valve or valves by which the pressure plant or the system of the pressure plant may be isolated from the source of supply of pressure or otherwise.

(c)

Every pressure plant or equipment shall be thoroughly examined by the competent person -

(i)

externally, once in every period of six months;

(ii)

internally, once in every period of twelve months; and

(iii)

by hydraulic test once in a period of four years;

(iv)

an examination of such pressure plant and equipment is maintained on Form-20.

143.

Fire protection [Section 40-2(k)].

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

Every building or other such construction site is provided with -

(i)

fire-extinguishing equipment sufficient to extinguish any probable fire at such construction site;

(ii)

an adequate water supply at ample pressure as per national standards;

(iii)

number of trained persons required to operate the fire-extinguishing equipment provided under sub-clause (i).

(b)

Fire-extinguishing equipment provided under sub-clause (i) of clause (a) is properly maintained and inspected at regular intervals of not less than once in a year by the responsible person and a record of such inspections is maintained.

(c)

In case of every launch or boat or other craft used for transport of building workers and the cabin of every lifting appliance including mobile crane, adequate number of portable fire-extinguishing equipment of suitable type shall be provided at each of such launch or boat or craft or lifting appliance.

144.

Lifting and carrying of excessive weights [Section 40].

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

[No building and other construction worker shall be permitted to lift by hand, carries overhead, over his back of shoulders any material, article, tool or appliances exceeding the maximum limits in weight set out in the following table to these rules :

[Substituted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

Person

Maximum weight of material, article, tool or
appliance

When the work is intermittent

When the work is continuous

Adult man

50kg

50kg

Adult woman

30kg

20kg

Adolescent male

25kg

20kg

Adolescent female

18kg

15kg

Unless aided by any other building worker or a mechanical device.]

(b)

No building worker aided by other building workers, lift by hand or carry overhead or over their back or shoulders, any material, article, tool or appliance exceeding in weight the sum total of maximum limits set out for each building worker separately under clause (a), unless aided by a mechanical device.

Work on Adjacent to Water

[Section 40-2(m)]

145.

Transport by water.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

When any building worker has to proceed to or from any working place by water for purposes of carrying on a building or other construction work, proper measures are taken to provide for his safe transportation and vessels used for such purpose are used in charge of responsible person and are properly equipped for safe navigation and maintained in good condition.

(b)

Maximum number of persons which can be safely carried in a vessel as certified under the relevant law in force is marked plainly and conspicuously on such vessel and such number is not exceeded during use of such vessel for carrying persons.

(c)

The vessel referred to in clause (a) shall conform to the following namely :

- (i)
that adequate protection is provided to the building workers in such vessel from inclement weather;
- (ii)
that such vessel is manned by adequate and experienced crew, as per the relevant law for the time being in force;
- (iii)
that in case the bulwarks of such vessel are lower than 60.0 centimetre from the level of the deck of such vessel, the open edge of such bulwarks are fitted with suitable fencing to a height of at least 1.00 metre above such deck and the post and stanchions and similar parts used in such fencing are not spaced more than 2.00 metres apart;
- (iv)
that the number of life buoys on deck of such vessel is at least equal to the number of crew members of such vessel and is not less than two;
- (v)
that all life buoys on deck of such vessel are kept in good state of maintenance and also so placed that if vessel sinks then they remain to float and one of such buoys (sic buoys) is within the immediate reach of the steersman of such vessel; and
- (vi)
that the position of the steersman of the vessel is such that he has a reasonably free view of all sides.

146.

Prevention from drowning [Section 40-2(m)].

- The employer shall ensure at a construction site of building or other construction work that where, on or adjacent to the work place of any construction site to which these rules apply, there is water into which a building worker employed for work on such site is, in the course of his employment, may fall and has the risk of drowning, suitable rescue equipment is provided and kept in an efficient state for ready use and measures are taken to arrange for the prompt rescue of such building worker from the danger of drowning and where there is a special risk of such fall from the edge of adjacent land or from a structure adjacent to or above the water or from floating stage on such water, secure fencing is provided near the edge of such land, structure or floating stage, as the case may be, to prevent such fall, and such fencing may be removed or allowed to remain unerected for the time and to the extent necessary for the access of building workers to such work or the movement of material for such work.

Electrical Safety

[Section 40-2(n)]

147.

Electrical hazards.

- Before commencement of any building or other construction work :

- (1)
The employer shall take adequate measures to prevent any worker from coming into physical contact with any electrical equipment or apparatus, machines or live electrical circuit which may cause electrical hazard during the course of his employment at a building and other construction work.
- (2)
The employer shall display and maintain suitable warning signs at conspicuous places at a building or other construction work in Hindi and in a local language understood by the majority of the building workers.
- (3)
In workplaces at a building and other construction work where the exact location of underground electric power line is not known, the building workers using jack hammers, crow bars or other hand-tools which may come in contact with a live electrical line, shall be provided by the employer with insulated protective gloves and foot-wear of the type of in accordance with the national standards.
- (4)
The employer shall ensure that, as far as practicable, no wiring, which may come in contact with water or which may be mechanically damaged, is left on ground or floor, at a building and other construction work.
- (5)
The employer shall ensure that all electrical appliances and current carrying equipment used at building and

construction work are made of sound material and are properly and adequately earthed.

(6)

The employer shall ensure that all temporary electrical installations at a building or other construction work are provided with earth-leakage circuit breakers.

(7)

The employer shall ensure that all electrical installations at a building or other construction work comply with the requirements of any law for time being in force.

Safety Belt and Nets

[Section 4)-2(o)]

148.

Safety belt and its use.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

safety belt, life lines and devices for the attachment of such life lines conform to the relevant national standards;

(b)

every building worker is supplied with safety belt and safety life lines for his protection and such building worker uses such belts and life lines during the performance of his work;

(c)

all building workers using safety belts and safety life lines have the knowledge of safe use and maintenance of such belts and life lines and are supplied with necessary instructions;

(d)

the responsible person for supervising the use of safety belt and safety life lines referred to in clause (a) inspects and ensures that such safety belts and life lines are fit for use before being taken into use at every time.

149.

Safety net and its use.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

every safety net is of adequate strength, made of sound material and is suitable for use and conforms to the relevant national standards;

(b)

the responsible person for maintenance of safety nets and their use ensures safe fixing of such safety nets and provides such safety nets with suitable and sufficient anchorage so that the purpose for which such safety net is intended for use, is served.

150.

Storage of safety belts and nets.

- The employer shall ensure at a construction site of a building or other construction work that proper arrangement is made for the safe storage of safety belts, safety life lines and safety nets when they are not in use and are protected against mechanical damage, and damages from chemicals and biological agents.

Runways and Ramps

[Section 40-2(p)]

151.

Use of runways and ramps by building workers.

- The employer shall ensure at a construction site of a building or other construction work that runways and ramps used for construction of building and other works shall be :

(a)

runways or ramps provided for use by building workers is not less than four hundred and thirty millimetres in width and is constructed of not less than twenty-five millimetres thick planking or any other material of adequate strength to withstand the required load supported substantially in relation to the span and braced of such runway or ramp and design and construction of such runways or ramp is in accordance with the relevant national standards;

(b)

every runway or ramp provided for use of building workers located more than three metres above the floor or ground is

on open sides provided with a guard rail of adequate strength and height of not less than one thousand millimetres.
152.

Use by vehicles.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)
all runways and ramps are of sound construction strength and are securely braced and supported;

(b)
every runway or ramp for the use of transport equipment like trailers, trucks or heavier vehicles has a width of not less than three point seven metres and is provided with timber curbs or any other material of adequate strength with not less than two hundred millimetres by two hundred millimetres in width placed parallel to and secured to the sides of such runways or ramps and are designed in accordance with the relevant national standards.

153.

Slope of ramps.

- The employer shall ensure at a construction site of a building or other construction work that every ramp has a slope not exceeding one in four and total rise of a continuous ramp used by building workers carrying material or using wheelbarrows does not exceed three point seven meter unless broken by horizontal landing of at least one point two meter in length are as provided in accordance with the national standards.

154.

Use by wheelbarrows etc.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)
every runway or ramp used for wheelbarrows, hand carts or hand trucks is not less than one meter in width and is constructed of not less than fifty millimetres thick planking and is supported and braced suitably for such use;

(b)
every runway or ramp located more than three metres above the floor or ground is provided on the open sides with suitable guard rails of adequate strength.

Piling

[Section 40-2(q)]

155.

General provisions of piling.

- The employer shall ensure at a construction site of a building or other construction work that ;

(a)
all pile-driving equipment are of good design and sound construction, taking into account the ergonomic principles and are properly maintained;

(b)
a pile driver is firmly supported on a heavy timber sill, concrete bed or other secured foundation;

(c)
in case of pile driver is required to be erected in dangerous proximity to an electrical conductor all necessary precautions are taken to ensure safety;

(d)
the hoses of steam and air hammer are securely lashed to such hammer so as to prevent them from whipping in case of connection or break;

(e)
adequate precaution is taken to prevent the pile driver from overturning;

(f)
all necessary precaution is taken to prevent hammer from missing the pile;

(g)
a responsible person for inspecting pile driving equipment, inspects such equipment before taking it into use and takes all appropriate measures as required for the safety of building workers before commencing piling work by such equipment.

156.

Stability of adjacent structure.

- The employer shall ensure at a construction site of a building or other construction work that where there is any question of stability of a structure for its adjoining areas to be piled, such structure is supported, where necessary, by underpinning, sheet piling, shoring, bracing or by other means to ensure safety and stability of such structure and to prevent injury to any person.

157.

Protection of operator.

- The employer shall ensure at a construction site of a building or other construction work that an operator of every pile-driving equipment is protected from falling objects, steam, cinders or water by substantially covering or otherwise or by other means.

158.

Instruction to and supervision of building workers working on a pile driving equipment.

- The employer shall ensure at a construction site of a building or other construction work that every building worker working on a pile-driving equipment is given instructions regarding safe work procedure to be followed in piling operation and is supervised by a responsible person throughout such work.

159.

Entry of unauthorized person.

- The employer shall ensure at a construction site of a building or other construction work that all piling areas where pile-driving equipment is in use are effectively cordoned off to prevent entry of unauthorized persons.

160.

Inspection and maintenance of pile-driving equipment.

- The employers ensure at a construction site of a building or other construction work that ;

(a)

pile-driving equipment is not taken into use until it has been inspected by a responsible person and found to be safe for such use;

(b)

pile-driving equipment is in use and is inspected by a responsible person for such inspection at suitable intervals to ensure safety to the building worker working on such equipment;

(c)

all pile lines and pulley blocks are inspected by a responsible person before the beginning of each shift of piling operations.

161.

Operation of pile-driving equipment.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

only experienced and trained building worker operates pile-driving so as to avoid any probable danger from such operation;

(b)

pile-driving operations are governed by generally prevalent and accepted signal so as to prevent any probable danger from such operations;

(c)

every building worker employed in pile-driving operation or in the vicinity of such pile-driving operation wears ear protection and safety helmet or hard hat and safety shoes;

(d)

piles are prepared at a distance, at least equal to twice the length of the longest pile, from the place of pile-driving operations;

(e)

when a pile driver is not in use, the hammer of such pile driver is blocked at the bottom of the heads of such pile driver.

162.

Working platform on piling frames.

- The employer shall ensure at a construction site of a building or other construction work that where a structural tower

supports the lead of a pile driver, suitable working platforms of adequate strength are provided on levels of such leads at which it is necessary for the building workers to work and such platforms are provided with a safety railing and two boards on each side of such platforms, except on the hammer of such pile driver or lead sides of such platform and where such platforms cannot be provided with such railing and two boards, a safety belt is provided to each such building worker.

163.

Pile testing.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)
the testing of pile is conducted under the supervision of a responsible person for such testing;

(b)
all practicable measures like displaying of warning notices, barricading the area and other similar measures are taken to protect the area where the pile testing is carried out;

(c)
entry to a pile testing area is prohibited to general public to ensure safety.

Concrete Work

[Section 40-2(q)]

164.

General provisions regarding use of concrete.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)
all construction with the use of concrete or reinforced concrete are based on plans as -

(i)
include specifications of steel and concrete and other material to be used in such construction;

(ii)
give technical details regarding methods for safe placing and handling of such materials as specified in sub-clause (i);

(iii)
indicate the type quality and arrangement of each part of a structure of such construction; and

(iv)
explain the sequence of steps to be taken for completion of such construction.

(b)
formwork and Shores used for concrete work are structurally safe and are properly braced or tied together so as to maintain position and shape of such formwork or shores;

(c)
formwork structure used for concrete work has sufficient catwalks and other secure access for inspection of such structure if such structure is in two or more tiers.

165.

Preparation and pouring of concrete.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)
a building worker handling cement or concrete -

(i)
wears close-fitting clothing, gloves, helmet or hard hat, safety goggles, proper foot wear and respirator or mask to protect him from danger in such handling;

(ii)
keeps as much of his body covered as is required to protect him from danger in such loading;

(iii)
takes all necessary precaution to keep cement and concrete away from his skin in such handling.

(b)
lime pits are fenced or enclosed;

(c)

lime pits are filled and emptied by such devices which do not require workers to go into the pit;

(d)

moving parts of the elevators, hoists, screens, bunkers, chutes, grouting equipment used for concrete work and of other equipment used for storing, transport and other handling ingredients of concrete are securely fenced to avoid contact of building workers with such moving parts;

(e)

screw conveyors used for cement, lime and other dusty materials are completely enclosed.

166.

Buckets.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

Concrete buckets used with cranes or aerial cableways, are free from projections from which accumulations of concrete could fall;

(b)

movements of concrete buckets are governed by signals necessary to avoid any danger by such movements;

(c)

tip-up buckets are equipped with a device that effectively prevents accidental tipping.

167.

Pipes and pumps.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

a scaffolding carrying a pipe for pumped concrete is strong enough to support such pipe at time when such pipe is filled with concrete or water or any other liquid and to bear all the building workers who may be on such scaffold at such time, safely;

(b)

every pipe for carrying pumped concrete is -

(i)

securely anchored at its end point and at each curve on it;

(ii)

provided near the top of such pipe with an air release valve; and

(iii)

securely attached to a pump nozzle by a bolted collar or other adequate means;

(c)

the operation of concrete pumps are governed by standard signals relevant in accordance with the relevant national standards;

(d)

building workers employed around a concrete pump wear safety goggles.

168.

Mixing and pouring of concrete.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

the concrete mixture does not contain any material which may unduly affect the setting of such concrete, weaken such concrete or corrode steel used with such concrete;

(b)

when dry ingredients of concrete are being mixed in confined spaces such as silos :

(i)

the dust shall be exhausted at the time of such mixing; and

(ii)

in case the dust cannot be exhausted, as specified in sub clause (i), the building workers shall wear respirators at the time of such mixing.

(c)

when concrete is being tipped from buckets, building workers are kept out of the range of any kickbacks of such buckets;

(d)
loads are not dumped or placed on settling concrete.

169.

Concrete panels and slabs.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)
all parts of a concrete panel or concrete slab are hoisted uniformly;

(b)
concrete panels are adequately braced in their final positions and such bracing shall remain in such position until such panels are adequately supported by other parts of the construction for which such panels are used;

(c)
temporary bracing of concrete panels are securely fastened to prevent any part of such panels from falling when such panels are being moved.

170.

Stressed and tensioned elements.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)
building workers do not stand directly over jacking equipment while stressing of concrete girders and beams is being done;

(b)
a pre-stressed concrete unit is not handled except at points on such unit and by the devices specified for such work by the manufacturer of such devices;

(c)
during transport, pre-stressed concrete girders or concrete beams are kept upright by bracing or other effective means;

(d)
anchor fittings for pre-tensioned strands of pre-stressed concrete girders or concrete beams are kept in a safe condition in accordance with the instructions of manufacturer of such anchor fittings;

(e)
building workers do not stand behind jacks or in line with tensioning elements and jacking equipment during tensioning operations of pre-stressed concrete girders or concrete beams;

(f)
building workers do not cut wires of pre-stressed concrete girders or concrete beams under tension before such concrete used for such girders or beams is sufficiently hardened.

171.

Vibrators.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)
a building worker, who is in good physical condition operates vibrators used in concreting work.

(b)
all practical measures are taken to reduce the amount of vibration transmitted to the operators working in concreting work;

(c)
when electric vibrators are used in concreting work shall be earthed, heavily insulated and current shall be switched off when such vibrators are not in use.

172.

Inspection and supervision.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)
a person responsible for a concreting work supervises the erection of the formwork, shores, braces and other supports

used for such concreting work;

(b)

a person responsible for a concreting work makes a thorough inspection of every formwork after erection of such form work in such concreting work to ensure that such formwork is safe;

(c)

a person responsible for a concreting work regularly inspects the formwork, shores, braces, reshores and other supports during the placing of concrete.

(d)

any unsafe condition which is discovered during the inspections mentioned under clause (b) and (c) is remedied immediately;

(e)

a person responsible for a concreting work keeps all records of inspections referred to in clause (a) and clause (b) at the work place relating to such inspection and produces them for inspection upon the demand of an Inspector having jurisdiction.

173.

Beams, floor and roofs.

- The employer shall ensure at a construction site of a building or other construction work that horizontal and diagonal bracing are provided in both longitudinal and transverse directions as may be necessary to provide structural stability to formwork used in concreting work and shores used in such concreting work are properly seated top and bottom and are secured in their places :

(a)

where shores used in concreting work rest upon the ground, base plates are provided for keeping such shores firm and in level;

(b)

where the floor to ceiling height of a concreting work exceeds nine metres or where the formwork deck used in such concreting work is supported by shores constructed in two or more tiers, or where the dead, live and impact loads on the formwork used in such concreting work exceed seven hundred kilogram per square meter, the structure of such formwork is designed by a professional engineer in the relevant field and the specifications and drawings of such formwork are kept at such construction site and produced on demand before the Inspector having jurisdiction;

(c)

where the structure of the formwork used in concreting work is designed by a professional engineer, such engineer shall be responsible for the supervision of construction and stability of such structure.

174.

Stripping.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

stripping of formwork used in concreting work commences until the concrete on such formwork is fully set, examined and certified to this effect by the responsible person and record of such examination and certification is maintained;

(b)

stripped forms concreting work are removed or stock-piled promptly after stripping from all areas in which building workers are required to work or pass;

(c)

protruding nails, wire ties and other formwork accessories not required for subsequent concreting work are pulled, cut or otherwise made safe.

175.

Reshoring.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

reshoring used in concreting work is provided to a slab or beam for its safe support after its stripping or where such slab or beam is subjected to superimposed loads due to construction above such slab or beam;

(b)

the provisions applicable to shoring in a concreting work under this chapter shall also be applicable to reshoring in such work;

Excavation and Tunneling Works

[Section 40-2(q)]

176.

Notification of excavation and tunneling work.

(a)

Tire employers shall be intimated prior to the thirty days before commencement of excavation or tunneling work in writing the detailed lay-out plans, procedure of construction and schedule of tunneling and excavation work to the Chief Inspector and Inspector of concerned region.

(b)

In case, compressed air is used for excavation or tunneling work the technical details and drawings of all man locks and medical locks with name and address of all medical officers as appointed for such excavation or tunneling work shall be sent to the Chief Inspector and Inspector of concerned region.

177.

Appointment of Project Engineer.

(1)

Every employer undertaking any excavation or tunneling work shall appoint a project engineer for safe operation of such projects of such excavation or tunneling work for which such engineer is appointed.

(2)

Such project engineer shall exercise overall control of the operations and the activities at such project and be responsible for carrying out the activities safely.

178.

Appointment of responsible person.

(1)

Every employer undertaking excavation or tunneling work at a construction site of a building or other construction work shall appoint a responsible person for safe operation for such excavation or tunneling work.

(2)

Duties and responsibilities of the responsible person referred to in sub-rule (1) shall include -

(a)

to carry out smoothly such excavation or tunneling work;

(b)

to inspect and rectify any hazardous situation relating to such excavation or tunneling work;

(c)

to take remedial measures to avoid any unsafe practice or conditions relating to such excavation or tunneling work.

(3)

The name and address of the responsible person referred to in sub-rule (1) shall be forwarded to the Chief Inspector by the employer.

179.

Display of notices at excavation or tunneling work.

- The employer shall ensure at a construction site of a building or other construction work that -

(1)

suitable warning notices or signs required for safety of workers employed in an excavation or tunneling work shall be displayed at conspicuous place in Hindi and in a language understood by majority of such building workers;

(2)

notice and warning signs regarding use of compressed air shall be displayed and such notice consists of fire, explosion and its danger involved with a control procedure which is to be followed in an emergency;

(3)

the standard audio or video signals are used in excavation or tunneling work and are located or displayed near entrance to the work place.

180.

Attendance register for excavation or tunneling work.

- The employer shall ensure at a construction site of a building or other construction work that a register of employment of building workers carrying an excavation or tunneling work is maintained in a register on day-to-day basis and such register shall be provided by the employer to the Inspector on his demand.

181.

Emergency generators.

- The employer shall ensure at a construction site of a building or other construction work that the employer shall provide an emergency generator on a site of excavation or tunneling work and on a system of compressed air to ensure adequate illumination and continuous supply of compressed air at all such places in case of power failure.

182.

Stability of adjacent structure.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

where there is any question of doubt as to the stability of any structure for it adjoining the workplace or other areas to be excavated or where tunneling work is to be carried out, the project engineer referred to in Rule 125 arranges for measures like underpinning, sheet piling, shoring, bracing or other similar means to support such structure and to prevent injury to any building worker working adjacent to such structure or damage to property or equipment adjacent to such structure;

(b)

where any building worker engaged in excavation is exposed to hazard of falling or sliding material or article from any bank or side of such excavation which is more than one and a half meter above his footing, such worker is protected by adequate piling and bracing against such bank or side;

(c)

the excavation and its vicinity is checked by a responsible person referred to in Rule 126 after every rain, storm or other occurrence carrying hazard and in case a hazard is noticed at such checking, adequate production against slides and cave-in to prevent such hazard is provided;

(d)

temporary sheet piling installed for the construction of a retaining wall after excavation is not removed except on the advice of the responsible person referred to in Rule 126 after an inspection carried out by such responsible person;

(e)

where banks of an excavation are undercut, adequate shoring is provided to support the material or article over-hanging such bank;

(f)

excavated material is not stored at least zero point six five metre from the edge of an open excavation or trench and the banks of such excavation or trench are stripped of loose rocks and other materials which may slide, roll or fall upon a building worker working below such bank;

(g)

adequate and suitable warning signs are put up at conspicuous places at the excavation work to avoid any person falling into the excavations or trenches;

(h)

the responsible person referred to in Rule 126, ensures at the excavation work that no building worker is permitted to work where such building worker may be struck or endangered by the excavation machinery or material or article used in such excavation.

183.

Piling, Shoring and Bracing in Tunneling or Excavation Work.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

plank used for sheet piling in excavation or tunneling work shall be of sound material with adequate strength; and

(b)

shores and braces used in excavation or tunneling work are of adequate dimensions and are so placed as to be effective for their intended purposes;

(c)

earth-supported shores or braces used in excavation or tunneling work bear against a footing of sufficient area and stability to prevent the shifting of such shores or braces.

184.

Safe access.

- The employer shall ensure at a construction site of a building or other construction work that ladder, staircases or ramps are provided, as the case may be, for safe access to and egress from, excavation where the depth of such excavation exceeds one point five metres and such ladders, staircases or ramps comply with the relevant national standards.

185.

Trenches.

- The employer shall ensure at a construction site of a building or other construction work that a trench or excavation is protected against falling of a person by suitable measures if the depth of such trench or excavation exceeds one and a half meter and such protection is an improved protection in accordance with the design and drawing of a professional engineer, where such depth exceeds four metres.

186.

Depth of trenches.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

where the depth of a trench requires two lengths of sheet piling, one above the other, the lower piling is set inside the bottom strings or wales of the upper piling and such sheet piling is driven down and braced as the excavation continues;

(b)

all metal sheet piles used in excavation or a trench are welded end to end and secured by other similar means.

187.

Machine Position for Tunneling or Excavation Work.

- The employer shall ensure at a construction site of a building or other construction work that any machinery used in excavation and tunneling work shall be positioned and operated in such a way that such machinery does not endanger the operator of such machinery or any other persons in the vicinity.

188.

Breathing Apparatus.

- The employer shall ensure at a construction site of a building or other construction work that building worker, while working in compressed air environment, a suitable breathing apparatus is provided for his use at excavation or tunneling work and such apparatus is kept maintained in good working order at all times.

189.

Safety measures for Tunneling Operations.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

safe precautions such as shoring, supporting shall be provided where there is a danger of falling or sliding of material from the roof face or wall of a tunnel by means of rock bolts, segments or steel sets for the safety of building workers;

(b)

the excavated areas are made safe by use of suitably designed and installed steel sets, rock bolts or similar other safe means;

(c)

the responsible person referred to in Rule 178 examines and inspects the workplaces in a tunnel before the commencement of work in such tunnel, and at regular intervals thereafter, to ensure safety of the building workers in such tunnel;

(d)

the portal areas of a tunnel with loose soil or rock, likely to cause injury to a person are adequately protected with supports.

190.

Pneumatic tools.

- The employer shall ensure at a construction site of a building or other construction work that supply lines to pneumatic tools used within a tunnel are fitted with water trap or safety chain or safety wire, as the case may be.

191.

Safety of shafts in tunnel or excavation.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

surroundings of a shaft used in excavation or tunnel work are protected from being washed away by construction of sufficient height;

(b)

where a building worker is required to enter a shaft at an excavation or tunneling work, safe means of access is provided for such entry;

(c)

every shaft at excavation or tunnel work is provided with a steel casing, concrete piping, timber, shoring or other materials of adequate strength for the safety of building workers working in such shaft;

(d)

such casing and bracing are provided to a shaft at an excavation or tunneling work upto the depth of such shaft at an excavation or tunneling work according to the appropriate design for such casing and bracing;

(e)

a reinforced concrete raft and beam is provided around the opening of a shaft at an excavation or tunneling work if the ground surroundings of such opening is unstable or unsafe.

192.

Communication system.

- The employer shall ensure at a construction site of a building or other construction work that effective communication system, telephone or walkie-talkie shall be provided by an employer at excavation or tunneling work and are maintained in good working order at following locations, namely :

(i)

working chamber at the face of an excavation;

(ii)

intervals of hundred metre along the tunnel;

(iii)

working chamber side of a man lock near the door of such man lock;

(iv)

interior of each chamber of man lock and at lock attendants station;

(v)

a compressor plant a first aid station;

(vi)

outside portal or the top of a shaft; and

(vii)

bells and whistles are also provided and available at all times at locations referred in (i) to (vi) for the safety of persons at such locations.

193.

Lift for shaft.

- The employer shall ensure at a construction site of a building or other construction work that a lift is provided for transport of articles, materials and building workers at an excavation or tunneling work required to descend more than 50 meters in a shaft.

194.

Signals.

- The employer shall ensure at a construction site of a building or other construction work that the standard audio or video signals are used in excavation or tunneling work and are conspicuously located or displayed near entrance to the workplace and in such other location as may be necessary to bring such signals to notice of all building workers employed in such excavation or tunneling work.

195.

Lateral and Overhead Clearance.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

the minimum lateral clearance of half a meter is maintained between any part of a vehicle and any fixture or any equipment used in an excavation or tunneling work after allowing the throw or swing of such fixture or equipment;

(b)

the overhead clearance for a locomotive drive at excavation or tunneling work is not less than one point one zero meters above the seat of such driver and not less than two meters above the platform where such driver stands or of any other dimension in accordance with the relevant national standard.

196.

Shelters.

- The employer shall ensure at a construction site of a building or other construction work that the adequate number of shelters for the safeguard of the building workers are provided where, in the course of working, they are liable to be struck by a moving vehicle or other material-handling equipment in a tunnel.

197.

Use of Internal Combustion Engine.

- The employer shall ensure that at construction site of a building or other construction work no internal combustion engine is used underground in excavation or tunneling work unless such engine is so constructed that the :

(a)

air entering the engine gets cleared before entry; and

(b)

no fumes or sparks are emitted by the engine.

198.

Storage of Oil and Fuel Underground.

- The employer shall ensure at a construction site of a building or other construction work that :

(i)

inflammable oil with the flash point below the working temperature that is likely to be encountered in a tunnel are not used in excavation or tunneling work;

(ii)

all oils, greases or fuels stored underground in excavation or tunneling work are kept in tightly sealed containers and in fire-resist areas at safe distances away from explosive or other flammable chemicals and such area shall be provided with appropriate flame-proof installation.

199.

Coupling and Hoses Insulation.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

only high pressure hydraulic hoses and couplings are used on hydraulic plants underground and such hoses and couplings are adequately protected against any possible damage in excavation or tunneling work;

(b)

all hydraulic lines and plants working at a temperature more than 75°C are protected by adequate insulation against accidental human contact in excavation or tunneling work;

(c)

only fire-resistant hydraulic hoses are used when hydraulically activated machinery and equipment is employed in tunnels.

200.

Use of Hazardous Substances and Gases.

- The employer shall ensure that :

(a)

petrol or liquefied petroleum gases or any other flammable substances are not used, stored inside the tunnel except with the prior approval in writing of the project engineer under Rule 177 and after use of such hazardous substances

remaining substances are removed immediately from such tunnel;

(b)

in a tunnel or a shaft in which building workers are employed does not contain any of the hazardous substances in concentrations beyond their permissible limits as specified in the Schedule 12;

(c)

no oxy-acetylene gas is used in a compressed air environment in excavation or tunneling work;

(d)

necessary test before commencement of tunneling work to ensure that permissible limits of exposure of chemicals is not exceeded shall be conducted by responsible person as record of such test is maintained for inspection to the Inspector on his demand.

201.

Water for Fire-Fighting in Excavation or Tunneling Work.

- The employer shall ensure at a construction site of a building or other construction work that:

(a)

adequate number and types of fire extinguisher and water outlets are provided by an employer on excavation or tunneling work and are made accessible throughout the tunnel for fighting work;

(b)

all air-locks are equipped with fire-fighting facilities and an audible fire alarm is provided in an excavation or tunneling work;

(c)

fire extinguishers with vapouring liquids and high pressure carbon-dioxide are not used in tunnels or other confined spaces;

(d)

the instruction regarding steps to be followed to fight outbreak of fire is understood by majority of building workers employed at such-work.

202.

Flooding.

- The employer shall ensure at a construction site of a building or other construction work that :

(i)

Watertight bulkhead doors are installed at the entrance of a tunnel to prevent flooding during a tunneling work where more than one tunnel is driven from a shaft;

(ii)

All necessary measures are taken to ensure that no building worker is trapped in any isolated section of a tunnel when any bulkhead door of such tunnel is closed;

(iii)

Where there is likelihood of flooding or water rushing into a tunnel during a tunneling work, arrangements are made for immediate starting of water pumps to take out water of such flooding or water rushing and for giving alert signals to the building workers and other persons to keep them away from danger;

(iv)

Steel curtains - The employer shall ensure at a construction site of a building or other construction work that air-tight steel curtains are provided in areas liable to flooding or tunnel work and in case of descending tunnel such curtains are provided in the top half of such tunnels to ensure the retention of pockets of air for rescue purpose.

203.

Rest Shelters.

- The employer shall ensure at a construction site of a building or other construction work that where building workers are employed in a compressed air environment in a tunnel work and are required to remain at the work site for one hour or more after de-compression from pressure exceeding one bar adequate and suitable rest-shelter facilities are provided for such building workers to rest.

204.

Quantity of Air and Ventilation.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

every working chamber at an excavation or tunneling work where compressed air is used the supply of such air is maintained not less than 0.30 cubic meter per minute per person working therein and such air is, as far as practicable be free from dust, fumes and other toxic substances;

(b)

all working areas in a free air tunnel are provided with ventilation system as approved by Chief Inspector and the fresh air supplied in such tunnel is not less than 6.0 cubic meter per minute for each building worker employed underground in such tunnel and the free air flow movement inside such tunnel is not less than 9.0 meter per minute

205.

Portable Electric Lamps.

- The employer shall ensure at a construction site of a building or other construction work that all portable electrical hand tools and inspection lamps used underground or in a confined space at an excavation or tunneling work are operated at voltage not exceeding 24 volt.

206.

Circuit breaker and transformer.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

Adequate number of differential groundfault circuit breakers are installed for every electrical distribution system and its sub-system used at an excavation or tunneling work and the sensitivity of each of circuit breaker is adjusted in accordance with the requirement set out in accordance with relevant national standards;

(b)

No semi-enclosed fuse unit is in use at an underground place at an excavation or tunneling work;

(c)

No transformer is used in any section of tunnel under compressed air unless such transformer is of the dry type and conforms with the relevant national standards.

207.

Working temperature.

- The employer shall ensure at a construction site of a building or other construction work that the temperature in any working chamber at an excavation or tunneling work where building workers are employed does not exceed 29°C and the arrangement are maintained for keeping records in which the temperature measured by dry bulb and wet bulb inside such working chamber once in every hour and to produce such records for inspection on demand to the Inspector having jurisdiction.

208.

Man-locks working in compressed air environmen.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

man-locks used at tunneling work are of adequate strength, made of sound material and designed to withstand any air pressure internal or external, to which it may be subjected to in the normal use or in an emergency;

(b)

(i)

doors of man-locks at an excavation or tunneling work are made of steel;

(ii)

man-locks used at a tunneling work are airtight and devices are provided for sealing the doors when such locks are under pressure;

(iii)

the anchorage of a man-lock used at tunneling work have adequate strength to withstand the pressure exerted by air on the man-lock;

(iv)

there is adequate room available for the building worker for working in the man-lock used at tunneling work;

(v)

where work is carried out in any compressed air tunnel, a man-lock in accordance with the relevant national standards is

used for such tunnel.

(c)

(i)

where a man-lock is used at tunneling work, safety instructions in Hindi and in local language understood by majority of building workers employed therein are displayed at conspicuous place at such tunneling work;

(ii)

except in an emergency, compression and decompression operations are carried out in a man-lock used at tunnelling work;

(iii)

in an emergency any material lock may be used at tunnelling work for compression and decompression of building workers and a record is kept in writing and produced for inspection on demand to the Inspector having jurisdiction;

(iv)

material lock is used with the permission of Chief Inspector for compression and decompression of building workers where it is impracticable to install both the man-lock and the material-lock at a tunnelling work;

(v)

de-compression of all building workers to atmospheric condition at tunnelling work is carried out in accordance with a de-compression procedure approved by the Chief Inspector;

(vi)

the man-lock at tunnelling work is not used for any purpose other than compression or de-compression of building workers;

(vii)

no de-canting of building workers at tunnelling work is carried out without prior approval of Chief Inspector, except in an emergency;

(viii)

in case a building worker collapses or is taken ill during his de-compression in a man-lock used at tunnelling work, the lock attendant of such man-lock raises the pressure in such man- lock until such pressure is equal to the maximum pressure which that building worker was exposed to in the working chamber prior to such decompression and such lock attendant immediately reports the matter relating to such collapse to the medical lock attendant and medical officer on duty at such tunnelling work;

(ix)

a building worker who had previously received training with a trained building worker to work in a compressed air environment at tunnelling work is employed to work independently in such a compressed air environment;

(x)

a building worker who had undergone three de-compressions from a pressure exceeding one bar in a period of eight hours at tunnelling work is not allowed to enter a compressed air environment except for the purpose of carrying out rescue work;

(xi)

a building worker employed in a compressed air environment for a period of eight hours in a day at tunnelling work is not employed again in such environment unless he has spent not-less than twelve consecutive hours of rest at atmospheric pressure;

(xii)

no building worker is engaged in a compressed air environment at a pressure which exceeds three bars at tunnelling work unless prior permission, in writing has been obtained from the Chief Inspector for such engagement;

(xiii)

no building worker employed in a compressed air environment for more than fourteen consecutive days in a month at tunnelling work;

(xiv)

a register of employment of all building workers employed in compressed air environment at tunnelling work, is maintained;

(xv)

an identification badge is supplied to a building worker employed in compressed air environment work;

(xvi)

the badge of a building worker referred to in sub-clause (xv) contains particulars of his name, location of the medical lock allotted to him for work, the telephone number of the Construction Medical Officer concerned for his treatment and the instructions in case of his illness of unknown and doubtful causes;

(xvii)

record of all identification badges supplied to building workers under sub-clause (xvi), is kept in a register;

(xviii)

every building worker whose name appears in the register referred to in sub-clause (xvii), wears the badge supplied to him under clause (xv) at all times during his duty hours at tunnelling work;

(xix)

suitable warning signs are displayed, in the compressed air environment at tunnelling work, for the prohibition of following, namely -

(a)

use of alcoholic drinks;

(b)

use and carrying of lighters, matches or other sources of ignition;

(c)

smoking; and

(d)

an entry to person who has consumed alcoholic drinks.

209.

Safety instruction.

- The employer shall ensure at a construction site of a building or other construction work that all building workers employed in compressed air environment at tunnelling work follow the instructions issued for their safety in the course of such employment.

210.

Air main.

- The employer shall ensure at a construction site of a building or other construction work that every air main supplying air to the working chamber, man-lock or medical-lock used at an excavation or tunnelling work is protected against accidental damage and where it is not practicable to provide such protection, a stand-by air main is provided.

211.

Bulkhead and air-locks.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

a bulkhead or air-tight diaphragms retaining compressed air, when used within a tunnel or a shaft, is constructed to withstand the maximum pressure at one point five times the maximum working pressure of such bulkhead or diaphragm and such bulkhead or diaphragm is tested before its each use by a responsible person referred to in Rule 126 to ensure that such bulkhead or diaphragm is in proper working order;

(b)

such responsible person keeps the record of each test referred to in clause (a) and such record is produced for inspection to the Inspector having jurisdiction on demand;

(c)

the bulkhead or diaphragm referred to in clause (a) are made of sound material of adequate strength and are able to withstand the maximum pressure on which they are subjected to at any time of their use;

(d)

a bulkhead anchorage and air lock is tested at its workplace at an excavation or tunnelling work immediately after their installation at such place.

212.

Diaphragms.

- The employer shall ensure at a construction site of a building or other construction work that all diaphragms which are in the form of horizontal decks across a shaft used at excavation or tunnelling work are securely anchored.

213.

Live wire sets.

- The employer shall ensure at a construction site of a building or other construction work that there is no exposed live wire in working areas at an excavation or tunnelling work which are accessible to building workers other than those authorized to work on such live times.

214.

Welding sets.

- The employer shall ensure at a construction site of a building or other construction work that all welding sets used in tunnel are of adequate capacity and of suitable type approved by Chief Inspector.

215.

Medical lock.

- The employer shall ensure at a construction site of a building or other construction work that :-

(a)

A suitably constructed medical lock is maintained at tunnelling work where building workers are employed in a working chamber at a pressure exceeding one bar;

(b)

Where more than one hundred building workers are employed in a compressed air working environment exceeding one bar at tunnelling work, one medical lock is provided for every one hundred building workers or part thereof and such medical lock is situated as near as possible to the main lock used at such tunnelling work.

216.

Health and safety policy [Section 40-2(r)].

(1)

(a)

Every establishment employing fifty or more building workers shall prepare a written statement of policy in respect of safety and health of building workers employed therein and submit such policy in triplicate to the Chief Inspector for his satisfaction.

(b)

The policy referred to in clause (a) shall contain the following, namely -

(i)

the intentions and commitments of the establishment regarding health, safety and environmental protection of building and other construction workers;

(ii)

organizational arrangements made to carry out the policy referred to in clause (a) specifying the responsibility at different levels of hierarchy;

(iii)

responsibilities of the principal employer, contractor, sub-contractor, transporter or other agencies involved in the building or other construction work;

(iv)

techniques and methods for assessment of risk to safety, health and environment and remedial measures therefor;

(v)

arrangements for training of building and other construction workers, trainers, supervisors or other persons engaged in the construction work;

(vi)

other arrangements for making the policy referred to in clause (a), effective;

(c)

The intention and commitment referred to in sub-clause (i) of clause (b) shall be taken into account in making decisions relating to plant, machinery, equipment, material and placement of building and other construction workers.

(2)

A copy of the policy referred to in clause (a) of sub-rule (1), signed by an employer shall be sent to the Inspector of area concerned or local authority.

(3)

The establishment shall revise the policy referred to in clause (a) of sub-rule (1) as often as necessary under the following circumstances, namely : -

- (i) whenever any expansion or modification having implication on safety and health of the building workers is made in such building or other construction work; or
- (ii) whenever any new building or other construction work, substances, articles or techniques are introduced having implication on health and safety of building workers.

(4) A copy of the policy referred to in sub-clause (a) of sub- rule (1) shall be displayed at the conspicuous places in Hindi and a local language understood by the majority of building and other construction workers at a construction site.

217.

Emergency action plans [Section 40-2(r)].

- The employer shall ensure at a construction site of a building or other construction work that an employer, with satisfaction of Chief Inspector, shall draw up a site emergency plan and detailed control measures for his building and other construction site in case if more than 500 building workers are employed at such construction site, and make known to the workers employed therein and to the general public living in the vicinity of the construction site in event of emergencies like -

- (i) fire and explosion;
- (ii) collapse of lifting appliances and transport equipment;
- (iii) collapse of building, sheds or structures etc.;
- (iv) gas leakage or spillage of dangerous goods or chemicals;
- (v) drowning of building workers, sinking of vessels; and
- (vi) land slides getting building workers buried, floods, storms and other natural calamities, is prepared and submitted to the Chief Inspector.

218.

Safety Committee [Section 40-2(r)].

(1) Every establishment wherein five hundred or more building workers are ordinarily employed, there shall be a Safety Committee constituted by the employer which shall be represented by equal number of representatives of employer and building workers employed in such establishment. In no case the number of representatives of the employer shall exceed the representatives of building workers. The committee shall be represented by representatives of the recognized unions, wherever such unions exist.

(2)

The main functions of the Safety Committee shall be -

- (a) to identify probable causes of accident and unsafe practices in building or other construction work and to suggest remedial measures;
- (b) to stimulate interest of employer and building workers in safety by organizing safety weeks, safety competition, talks and film shows on safety, preparing posters or taking similar other measures as and when required or as necessary;
- (c) to go round construction site with a view to check unsafe practice and detect unsafe conditions and to recommend remedial measures for their rectification including first aid medical welfare facilities;
- (d)

to look into the health hazards associated with handling different types of explosives, chemicals and other construction material and to suggest remedial measures including use of proper personal protective equipment;

(e)

to suggest measures for improving welfare amenities in the construction site and other miscellaneous aspects of safety, health and welfare in building or other construction work;

(f)

to bring to the notice of the employer the hazards associated with use, handling and maintenance of the equipment used during the course of building and other construction work.

(3)

The Safety Committee shall meet at regular intervals at least once in a month and it shall be chaired by the senior person having overall control over the affairs of the construction site.

(4)

The agenda and minutes of the meeting shall be circulated to all concerned and it shall be in the language understood by majority of the building workers and shall be produced to the Inspector on demand for inspection.

(5)

The decisions and recommendations of the Safety Committee shall be complied with by the employer within reasonable time limits.

219.

Appointment of Safety Officer [Section 40-2(r)].

(1)

In every establishment wherein five hundred or more building workers are ordinarily employed, the employer shall appoint safety officers as per the scale laid down in Schedule-VH annexed to these rules. Such safety officers may be assisted by suitable and adequate staff.

(2)

Duties, qualifications and the condition of service of safety officers appointed under sub-rule (1) shall be as provided in Schedule-VIII annexed to these rules.

(3)

Wherever number of workers employed by single employer is less than five hundred, such employers may form a group and appoint a common safety officer for such group of employers with prior permission of Chief Inspector.

Information to Bureau of Indian Standards

[Section 40-2(s)]

220.

Information to Bureau of Indian Standards.

- The employer shall ensure at a construction site of a building or other construction work that :-

(a)

Every architect and other professional like structural engineer or project engineer involved in the execution of a building or other construction project, furnishes to the Bureau of Indian Standards, the details regarding the performance of and deviations or shortcoming, if any, of the building materials, articles or process used in such building and other construction project for which the Indian Standards are already available;

(b)

Tire architect and other professional referred to in clause (1) inform to the Bureau of Indian Standards, the details of building materials, articles or processes used in the building and other construction activities for which the Indian Standards do not exist with the Bureau of Indian Standards and the performance of such materials, articles or processes along with the suggestions for their improvement to enable the Bureau of Indian Standards to consider and form necessary standards.

Medical Facilities

[Section 40-2(t)]

221.

Medical examination.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

- (i)
a building worker who is employed for a work involving such risk or hazards, inherent in such work as the Chief Inspector considers appropriate for the periodical medical examination such worker, is medically examined at such intervals as the Chief Inspector may direct from time to time;
- (ii)
every operator of a crane, winch or other lifting appliances, transport equipment or vehicle, is medically examined before employing such operator and again periodically, at such intervals as the Chief inspector may direct from time to time;
- (iii)
the medical examination referred to in sub-clause (i) and sub-clause (ii) is in accordance with Schedule-VII, annexed to these rules and is conducted by such medical officers or at such hospitals as are approved by the State Government for the purpose from time to time;
- (iv)
in case of a building worker who is exposed to special occupational health hazard owing to job or work assigned to such worker, the periodical medical examination referred to in sub-clause (i) or sub-clause (ii) includes such special investigation as may be deemed necessary by the construction medical officer examining such building worker for the diagnosis of occupational disease;
- (b)
no building worker is charged for the medical examination referred to in sub- clause (i) or sub-clause (ii) of clause (a) and the cost of such examination is borne by the employer employing such building worker;
- (c)
certificate of medical examination referred to in sub-clause (i) or sub-clause (ii) of clause (a) is issued in Form-22 annexed to these rules;
- (d)
the record of the medical examination referred to in sub- clause (i) or sub-clause (ii) of clause (a) of every building worker employed by him is maintained in a register in Form-22 annexed to these rules and such register shall be made available to the Inspector having jurisdiction, on demand;
- (e)
in case a construction medical officer examining a building worker under sub-clause (i) or sub-clause (ii) of clause (a) is of the opinion that such building worker so examined is required to be taken away from the building or other construction work at which he is employed for health protection, such medical officer shall inform the employer of such building worker accordingly and such employer shall inform such opinion to the Board where such worker is registered as a beneficiary.

222.

Duties of construction medical officers.

- (1)
The medical examination referred to in sub-clause (i) or sub-clause (ii) of clause (a) of Rule 221 shall be carried out by a construction medical officer.
- (2)
The duties and responsibilities of such construction medical officer shall be as given below, namely :-
 - (a)
medial examination of building workers;
 - (b)
first-aid care including emergency medical treatment;
 - (c)
notification of occupational diseases to the concerned authorities in accordance with these rules;
 - (d)
immunisation services;
 - (e)
medical record upkeep and maintenance;
 - (f)
health education including advisory services on family planning, personal hygiene, environmental sanitation and safety;

(g)
referral services.

223.

Occupational Health Centre.

- The employer shall ensure at a construction site of building or other construction work that :

Where building or other construction work involving hazardous processes as specified under Schedule-IX shall be provided with :

(a)
an occupational health centre, mobile or static, is provided and is maintained in good order at such site;

(b)
services and facilities as per the scale laid down in Schedule-X are provided at the occupational health centre referred to in clause (a);

(c)
a construction medical officer appointed at a occupational health centre possesses the qualification as laid down in Schedule-II.

224.

Ambulance Room.

- The employer shall ensure at a construction site of a building or other construction work that :-

(a)
in case five hundred or less workers are employed at such construction site there is an ambulance room at such construction site or an arrangement with a nearby hospital for providing an ambulance room and such ambulance room is in the charge of a qualified nurse and the service of such ambulance room is available to building worker employed at such construction site at every time when he is at work;

(b)
in case more than five hundred building workers are employed at such construction site there is an ambulance room with effective communication system and such ambulance room is in the charge of a qualified nurse and the service of such ambulance room is available to a building worker employed to such construction site at every time when he is at work, and such ambulance room is in overall charge of a construction medical officer;

(c)
an ambulance room referred to in clause (a) or clause (b) is equipped with the articles specified in Schedule (IV), annexed to these rules;

(d)
record of all cases of accidents and sickness treated at the ambulance room referred to in clause (a) or clause (b) is maintained and produced to the Inspector on demand.

225.

Ambulance van.

- The employer shall ensure at a construction site of a building or other construction work that an ambulance van is provided at such construction site or an arrangement is made with a nearby hospital for providing such ambulance van for transportation of serious cases of accidents or sickness of the building or other construction workers to the hospital promptly and such ambulance van is maintained in good repair and is equipped with standard facilities specified in Schedule-V annexed to these rules.

226.

Stretchers.

- The employer shall ensure at a construction site of a building or other construction work that sufficient number of stretchers is provided at such construction site so as to be readily available in an emergency.

227.

Occupational health services for the building workers.

(1)
The employer shall ensure at a construction site of a building or other construction work, where more than five hundred building workers are employed, that :-

(a)

a special medical service or an occupational health service is available at such construction site at all times and such service shall -

- (i)
provide first-aid and emergency treatment;
 - (ii)
conduct special medical examination for occupational hazards to such building workers before their employment and thereafter at such intervals as may be specified by the Chief Inspector from time to time;
 - (iii)
conduct training of first-aid personnel of such medical service;
 - (iv)
render advice to such employer on conditions of work and improvement required to avoid hazards to the health of such building worker;
 - (v)
promote health education, including family welfare among such building workers;
 - (vi)
co-operate with the Inspector having jurisdiction in the detection, measurement and evaluation of chemical, physical or biological factors suspected of being harmful to such building worker;
 - (vii)
undertake immunization for all such building workers against tetanus, typhoid, cholera and other infectious diseases.
- (b)
the special medical service referred to in clause (a) collaborates with the labour department or any other concerned department or service of the Government of India in matters of treatment, job, placement, accident prevention and welfare of such building workers;
- (c)
the special medical service referred to in clause (a) is headed by a construction medical officer and is provided with adequate staff, laboratory and other equipment;
- (d)
the premises of the special medical services referred to in clause (a) are conveniently accessible, comprise at least a waiting room, a consulting room, a treatment room, a laboratory and suitable accommodation for nurses and other staff of such service;
- (e)
the special medical service referred to in clause (a) maintains records pertaining to its activities referred to in sub-clause (i) to (vii) of clause (a) and sends to the Chief Inspector, once in every three months, information in writing on -
- (i)
the state of health of such building workers, and
 - (ii)
the nature and causes of occupational injuries or disease suffered by any of such building workers, treatment provided to such worker and measures taken to prevent recurrence of such injury or disease.

228.

Notice of poisoning or occupational diseases.

- The employer shall ensure at a construction site of a building or other construction work that -

- (a)
When a building worker contracts any disease specified in Schedule-II a notice in Form-23 is sent by employer without delay to the Inspector having jurisdiction and to the Board with which such building worker is registered as a beneficiary;
- (b)
If any medical practitioner or construction medical officer attends on a building worker suffering from any disease referred to in clause (a) such medical practitioner or construction medical officer sends information regarding the name and full particulars of such building worker and the disease suffered by him, to the Chief Inspector without any delay.

229.

First-aid boxes.

- The employer shall ensure at a construction site of a building or other construction work, that -

- (a)
sufficient number of first-aid boxes or cupboards are provided and maintained for providing first-aid to the building workers;
 - (b)
every first-aid box or cupboard is distinctly marked "First-Aid" and is equipped with the articles specified in Schedule-III annexed to these rules;
 - (c)
nothing except appliances or requisites for first-aid is kept in a first-aid box or cupboard and such box or cupboard is so kept as to protect it against contamination by dust or other foreign matter and against penetration of moisture and such box or cupboard is kept in the charge of a person trained in first-aid and is always readily available during working hours.
- 230.

Emergency care services or emergency treatment.

- The employer shall ensure at a construction site of a building or other construction work, that -

- (a)
essential life saving aids and appliances required to handle :
 - (i)
head injuries and spinal injuries;
 - (ii)
bleeding;
 - (iii)
fractures and dislocations of bones and joints;
 - (iv)
crush injuries;
 - (v)
shock, including electric shock;
 - (vi)
dehydration due to any cause;
 - (vii)
snake bite, insect bite, scorpion and bee stings;
 - (viii)
burns, including chemical burn;
 - (ix)
bends or divers paralysis;
 - (x)
other surgical, gynaecological, obstetric; or paediatrics emergencies;
 - (xi)
drowning;
 - (xii)
sunstroke and frost bite to building workers;
- are provided and properly maintained under the supervision of a construction medical officer.

(b)
the essential life saving aids for any emergent situation referred to in sub-clause (i) to (xii) of clause (a) are provided to an injured or a sick building worker during his transportation from such building site to a hospital and till such building worker is attended by a doctor in such hospital;

(c)
any other equipment or facilities required for emergency care or treatment to the building workers arising from special local conditions and construction processes at such building site, as specified by the State Government from time to time, are provided.

Other Provisions of Safety and Health

[Section 40-2(u)]

Construction, Repair and Maintenance of Steep Roof

231.

Work on steep roofs.

- The employer shall ensure at a construction site of a building or other construction work that all practicable measures are provided to protect the building workers against sliding when carrying out work on steep roofs.

232.

Construction and installation of roofing brackets.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

roofing brackets are constructed to fit the pitch of steep roof and such brackets are used to provide level working platform;

(b)

a roofing bracket referred to in clause (a) is secured in its place by nailing pointed metal projections attached to the underside of such bracket and securely driven into a steep roof on which it is used or secured by a rope passed over the ridge pole and tie of such roof.

233.

Crawling boards.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

all crawling boards used for work on steep roofs are of adequate strength, made of sound material and of the type approved for the purpose of their use as per relevant national standards;

(b)

crawling board referred to in clause (a) are kept in good repairs and inspected by a responsible person before being taken into use;

(c)

crawling board referred to in clause (a) is secured to a steep roof on which it is used by ridge hooks or other effective means;

(d)

a firmly fastened life line of adequate strength is strung beside each crawling board referred to in clause (a) throughout its length while using such crawling boards.

Cofferdams and Caissons

234.

General provision of cofferdams and caissons.

- The employer shall ensure at a construction site of a building or other construction work that :-

(a)

every cofferdam and caisson is -

(i)

of good construction, sound material and of adequate strength;

(ii)

provided with adequate means for building workers to reach safely at the top of such cofferdam or caisson, as the case may be, in the event of an inrush of water;

(iii)

provided with safe means of access to every place where building workers are employed in such cofferdam and caisson, as the case may be.

(b)

the work relating to construction, positioning, modification or dismantling of cofferdams or caissons is carried out under the supervision of a responsible person;

(c)

all cofferdams and caissons are inspected by a responsible person at intervals as specified by the Chief Inspector;

(d)

a building worker is allowed to work in a cofferdam or caisson after such cofferdam or caisson is inspected and found safe by responsible person within such preceding period as approved by the Chief Inspector and a record of such

inspection is maintained in a register;

(e)

the work in compressed air in a cofferdam or caisson is -

(i)

carried out in accordance with the procedure laid down in the relevant national standards;

(ii)

carried out by such building workers who have completed eighteen years of age and are medically examined as required under Rule 221;

(iii)

carried out under the supervision of a responsible person.

(f)

if the work in cofferdam or caisson is carried out in shifts, a record of the time spent by each building worker is maintained in a register with particulars of time taken for the compression of such building worker, if any;

(g)

at every work site or project in a cofferdam or caisson, where building workers are employed to work in compressed air environment, a construction medical officer assisted by a nurse or trained first-aid attendant, is available at all times at such site or project during such work;

(h)

there is one stand by reserve compressor to meet the emergency at each workplace or project in a cofferdam or caisson.

235.

Excessive noise, vibration.

- An employer shall ensure at a construction site of a building or other construction work that adequate measures are taken to protect building workers against the harmful effects of excessive noise or vibration at such construction site and the noise level in no case exceeds the limits laid down in Schedule-VI annexed to these rules.

236.

Illumination of passageways.

- The employer shall ensure that illumination sufficient for maintaining safe working conditions at a site of a building or other construction work is provided where building workers are required to work or pass and for passageways, stairways and landing, such illumination is not less than that provided in the relevant national standards.

237.

Vehicular traffic.

(1)

Whenever any building or other construction work is being carried on, or is located in close proximity to a road or any other place where any vehicular traffic may cause danger to building workers, the employer shall ensure that such building or other construction work is barricaded and suitable warning signs and lights displayed or erected to prevent such danger and if necessary, he may make a request in writing to the concerned authorities to control such traffic.

(2)

The employer shall ensure that all vehicles used at construction site of a building or other construction work comply with the requirements of the Motor Vehicles Act, 1988 (Act No. 59 of 1988) and the rules made thereunder.

(3)

The employer shall ensure that all vehicles used at construction site of a building or other construction work holds a valid driving licence under the Motor Vehicles Act, 1988 (Act No. 59 of 1988).

238.

Stability of unguarded structures.

- The employer shall ensure at a construction site of a building or other construction work that no wall, chimney or other structure or part of a structure is left unguarded in such condition that it may fall, collapse or weaken due to wind pressure, vibration or due to any other reason at a site of a building or other construction.

239.

Storage of materials.

- The employer shall ensure at a construction site of a building or other construction work that :

(a)

all building materials are stored or stacked in a safe and orderly manner to avoid obstruction of any passageway or place of work;

(b)

material piles are stored or stacked in such a manner as to ensure stability;

(c)

material or equipment is not stored upon any floor or platform in such quantity as to exceed its safe carrying capacity;

(d)

material or equipment is not stored or placed so close to any* edge of a floor or platform as to endanger the safety of persons below or working in the vicinity.

240.

Disposal of debris.

- The employer shall ensure at a construction site of a building or other construction work that -

(a)

debris are handled and disposed of by a suitable method which does not cause danger to the safety of person;

(b)

debris are not allowed to accumulate so as to constitute a hazard;

(c)

debris are kept sufficiently moist to bring down the dust within the permissible limit;

(d)

debris are not thrown inside or outside from any height of such building or another construction work;

(e)

on completion of work, left over building material, article or other substance or debris are disposed as soon as possible to avoid any danger to any traffic or a person.

241.

Numbering and marking of floors.

- The employer shall ensure that each floor or level of a building or other construction work is appropriately numbered or marked at the landing of such floor or level.

242.

Use of safety helmets and shoes.

- The employer shall ensure that all persons who are performing any work or services at a building or other construction work, wear safety shoes and helmets conforming to the national standards.

243.

Dangerous and harmful environment.

- An employer shall ensure at a construction site of a building or other construction work that :

(a)

When an internal combustion engine exhausts into a confined space or excavation or tunnel or any other workplace where neither natural ventilation nor artificial ventilation system is adequate to keep the carbon monoxide content of atmosphere below fifty parts per million, adequate and suitable measures are taken at such workplace in order to avoid exposure of building workers to health hazards;

(b)

No building worker is allowed to enter any confined space or tank or trench or excavation wherein there is given off any duct, fumes or other impurities of such nature and to such extent as is likely to be injurious or dangerous to the building worker or in which explosives, poisonous, noxious or gaseous material or other harmful articles have been carried or stored or in which dry ice has been used as a refrigerant, or which has been fumigated or in which there is a possibility of oxygen deficiency, unless all practical steps have been taken to remove such dust, fumes, or other impurities and dangers which may be present and to prevent any further ingress thereof, and such workplace or tank or trench or excavation is certified in writing by a competent person to be safe and free from dust, fumes, gas etc. for the entry of such building and other construction workers.

244.

Overhead protection.

(1)

Every employer shall ensure at the building or other construction work that overhead protection is erected along the periphery of every building under construction which shall be of fifteen metres or more in height when completed.

(2)

Overhead protection referred to in sub-rule (1) shall not be less than two metres wide and shall be erected at a height not more than five metres above the base of the building and the outer edge of such overhead protection shall be one hundred fifty millimeters higher than the inner edge thereof shall be erected at an angle of not more than twenty degrees to its horizontal sloping into the building.

(3)

The employer shall ensure at the building and other construction work that any area exposed to risk of falling material, articles or objects is roped off or cordoned off or otherwise suitably guarded from inadvertent entry of persons other than building and other construction workers at work in such area.

245.

Overhead clearance.

(a)

The employer shall provide an erected overhead protection along periphery of every building and other construction site which shall be 15.00 metre or more in height when completed.

(b)

Overhead clearance referred to in sub-rule (a) shall not be less than 2.0 metre and shall be erected at height not more than 5.0 metre above a base of building or at an angle of not more than 20 degree to its horizontal sloping into the building.

246.

Contract for execution.

- All employers, contractors and also other concerned departments of the appropriate Government shall include compliance of these rules as one of the condition of the contract for execution of building or other construction work.

247.

Slipping, drowning, tripping, falling and covering of openings.

(a)

All passageway, platform or any other places of construction work at the building or other construction work shall be kept by the employer free from accumulation of dust, debris or similar material and from other obstructions that may cause tripping.

(b)

Any sharp projections or protruding nails or similar projections which may cause any cutting hazard to a building worker at the building or other construction work shall be removed or otherwise made safe by taking suitable measures by the employer.

(c)

No employer shall allow any building worker at building or other construction work to use the passageway, or a scaffold, platform or any other elevated working surfaces which is in a slippery and dangerous condition and shall ensure that water, grease, oil or other similar substances which may cause the surface to be slippery, be removed or sanded, saw-dusted or covered with suitable material to make it safe from slipping hazard at a building or other construction work.

(d)

Wherever, building workers exposed to hazard of falling into water shall be provided with adequate equipment for saving from drowning and rescuing from such hazards and if Chief Inspector considers necessary will (sic provide) equipped boat or launch manned with trained personnel shall be provided by the employer at the site of such work.

(e)

Every open side, or opening into or through which a building worker, vehicle or lifting appliance or other equipment may fall at a building or other construction work shall be covered or guarded suitably by the employer to prevent such fall except where free access is necessary by reasons of the nature of the work.

(f)

Wherever building workers at a building or other construction work are exposed to the hazard of falling from height while

employed on such work, they shall be provided by the employer with adequate equipment or means for saving them from such hazards. Such equipment or means shall be in accordance with the national standard.

(g)

Whenever there is a possibility of falling of any material, equipment or building worker at a construction site relating to a building or other construction work, adequate and suitable safety net shall be provided by employer in accordance with the national standards.

248.

Corrosive substances.

- The employer shall ensure that corrosive substances, including alkalies and acids shall be stored and used by a person dealing with such substances at a building or other construction work in such a manner that it does not endanger the building worker and suitable protective equipment shall be provided by the employer to a building worker during handling or use of such substances at a building or other construction work and in case of spillage of such substances on the building worker, immediate remedial measures shall be taken by the employer.

249.

Head protection and other protective apparel.

(a)

Every building worker required to pass through or work within the areas at building or other construction work where there is hazard of his being struck by falling objects or materials, shall be provided by the employer with safety helmets of type and tested in accordance with the national standards.

(b)

Every building worker, when he is required to work in water or in wet concrete or in other similar work at a building or other construction work shall be provided with suitable water-proof boots by the employer.

(c)

Every building worker, when he is required to work in rain or in similar wet condition shall be provided with waterproof coat with hat by the employer.

(d)

Every building worker required to use or handle alkalies, acid or other similar corrosive substances at a building or other construction work shall be provided with appropriate protective equipment by an employer, in accordance with the national standards.

(e)

Every building and other construction worker, required to handle sharp objects or materials at a building or other construction work site which may cause hand injury shall be provided with suitable hand gloves by the employer in accordance with national standard.

250.

Responsibility of the employer [Section 44].

(a)

Every employer shall ensure, so far as reasonable and practicable, the health, safety and welfare of all workers while they are at building and other construction work.

(b)

Without prejudice to the generality of the provisions of sub-section (a), the matters to which such duty extends, shall include -

(i)

the provisions and maintenance of plant equipment and systems of construction work at construction site that are safe and without risk to health;

(ii)

the arrangements at the construction site for ensuring safety and absence or risks to health in connection with the use, handling, storage and transport of articles and substances;

(iii)

the provisions of such information, instruction, training and supervision as are necessary to ensure the health and safety of all building and other construction workers at site;

(iv)

the maintenance of all places of work at construction site in a condition that is safe and without risks to health and the provision and maintenance of such means of access to, and egress from, such places as are safe and without such risks;

(v)

the provision, maintenance or monitoring of such working environment at construction for the workers that is safe, without risk to health and adequate as regards facilities and arrangements for their welfare at work.

(c)

Except in such cases as may be prescribed, every employer shall prepare, and, as often as may be appropriate, revise, a written statement of his general policy with respect to the health and safety of the workers at work and the organization and arrangements for the time being in force for carrying out that policy, and to bring the statement and any revision thereof to the notice of all the workers in such manner as may be prescribed.

Accidents

[Section 39]

251.

Notice of accident.

(1)

Notice of any accident on the construction site which either -

(a)

causes loss of life; or

(b)

disable a building worker from working for a period of forty- eight hours or more immediately following the accident, shall forthwith be sent by telegram, telephone, fax or similar other means including special messenger within twelve hours in case of fatal accidents and seventy-two hours in case of other accidents on involving building workers, to -

(i)

The Chief Inspector having jurisdiction in the area in which the establishment in which such accident or dangerous occurrence took place is located. Such Chief Inspector shall be authority appointed under Section 39 of the Act;

(ii)

Board with which the building worker involved in accident was registered as a beneficiary;

(iii)

The District Magistrate;

(iv)

The Inspector of the region concerned;

(v)

In-charge of nearest police station.

(2)

Notice of any accident at a construction site of a building or other construction work which -

(a)

causes loss of life; or

(b)

disables such building worker from work for more than ten days following the accident, shall also be sent to -

(i)

the officer-in-charge of the nearest police station;

(ii)

the District Magistrate or if the District Magistrate by order so desires to the Sub-Divisional Magistrate.

(3)

In the case of an accident falling under clause (b) of sub- rule (1) or clause (b) of sub-rule (2), the injured building worker shall be given first-aid and immediately thereafter be transferred to a hospital or other place for medical treatment.

(4)

Where any accident causing disablement subsequently results in death of a building worker, notice in writing of such death shall be communicated to the authorities as mentioned in sub-rule (1) and sub-rule (2) within seventy-two hours of such death.

(5)

The following classes of dangerous occurrences shall be reported to the Inspector having jurisdiction, whether or not any death, disablement is caused to a building worker, in the manner prescribed in sub-rule (1), namely :

(a)

collapse or failure of lifting appliances or hoist or conveyors or breakage or failure of rope, chain, or loose gears, overturning of cranes used in building or other construction work, falling of objects from height;

(b)

collapse or subsidence of soil, any wall, floor, gallery, roof or any part of any structure, platform, staging, scaffolding or any means of access including from work;

(c)

contract work, excavation, collapse of transmission;

(d)

explosion of receiver or vessel used for storage, at a pressure greater than atmospheric pressure, of any gas or gases or any liquid or solid used as building material;

(e)

fire and explosion causing damage to any place on construction site where building workers are employed;

(f)

spillage or leakage of hazardous substances and damage to their container;

(g)

collapse, capsizing, toppling or collision of transport equipment,

(h)

leakage or release of harmful toxic gases at the construction site.

(6)

In case of failure of a lifting appliance, loose gear, hoist or building and other construction work machinery and transport equipment at a construction site of a building or other construction work, such appliances, gear, hoist machinery or equipment and the site of such occurrence shall, as far as practicable, be kept undisturbed until inspected by the Inspector having jurisdiction.

(7)

Every notice given under sub-rule (1), sub-rule (2) or sub- rule (4) shall be followed by a written report to the Inspector, authority under Section 39 of the Act, the Board and the Chief Inspector in Form 24 under proper acknowledgement.

252.

Procedure for enquiry into causes of accident or dangerous occurrence.

(1)

The enquiry under sub-section (2) or sub- section (3) of Section 39 of the Act, as the case may be, shall be conducted by the authority referred to in sub-clause (i) of clause (b) of sub-rule (1) of Rule 251 in the following manner, namely -

(a)

the enquiry shall be commenced as early as it may be; and in any case, within fifteen days of the receipt of notice of accident or dangerous occurrence under Rule 251;

(b)

the enquiry may be conducted by the authority referred to in sub-clause (i) of clause (b) of sub-rule (1) of Rule 246 himself or by an enquiry officer appointed by such authority;

(c)

the authority or enquiry officer, as the case may be, shall serve or cause to be served, notices in writing, informing the date, time and place of such enquiry to all persons entitled to appear in such enquiry and whose names and addresses are known to such authority or enquiry officer;

(d)

notwithstanding the provision of clause (b), for the purpose of notifying other persons who may in any way be concerned or be interested in such enquiry, the authority or enquiry officer, as the case may be, may publish notice of such enquiry in one or more local newspapers, informing the date, time and place of such enquiry.

(2)

The person entitled to appear at the enquiry may include :

- (a)
an Inspector or any officer of the State Government or an undertaking or public body, concerned with the enforcement or compliance of safety provisions of the Act and these rules in the concerned establishment;
- (b)
a trade union or a workers' association or an employers' association;
- (c)
the worker involved in the accident or his legal heir or authorized representative;
- (d)
the owner of the premises in which the accident took place;
- (e)
any other person, at the discretion of the authority or the inquiring officer, as the case may be, who may be interested in or be concerned with the cause of an accident or may have knowledge about such cause or is likely to give material evidence or produce a relevant document in connection with such accident or dangerous occurrence.
- (3)
In case the entitled person referred to in sub-rule (2) is a body corporate, a company, or any other organization, association, group of persons, such group may be represented through an authorized representative including a counsel or a solicitor.
- (4)
Subject to the provisions of sub-rule (5) the enquiry shall be held in public.
- (5)
In cases where -
- (a)
the State Government is of the opinion that the matter of the enquiry or any part of it are of such nature that it would be against the interests of national security to hold the enquiry in public and directs the said authority or the enquiry officer, as the case may be, to hold the enquiry in camera; or
- (b)
on an application made by any party to the enquiry, the authority or the enquiry officer, as the case may be, referred to in sub-rule (1), if it or he is of the opinion that the holding of public enquiry will lead to disclosure of information relating to a trade secret, decides to hold the enquiry of such part of it in camera, such enquiry shall not be held in public.
- (6)
Information disclosed by any person during the course of hearing or evidence in the cases covered under sub-rule (5) shall not be disclosed to any person except for the purpose of enquiry.
- (7)
The person entitled to appear under sub-rule (2), called for evidence or representing in an enquiry shall be entitled to make an opening statement, give evidence, request the enquiry officer to call for specified document or evidence, cross-examine other person to the extent and at the stage permitted by the authority or enquiry officer holding the enquiry.
- (8)
Any evidence in an enquiry may be admitted at the discretion of the authority or enquiry officer during the enquiry, who may, also direct that documents to be tendered in evidence may be inspected by any person entitled or permitted to appear at such enquiry and that facilities be afforded to such person to take or obtain copies thereof.
- (9)
The authority or the enquiry officer holding an enquiry may authorize any person, being an officer of the State Government, to assist such authority or enquiry officer where necessary, for the purpose of conducting the enquiry, and the officer so authorized may enter the premises of the concerned establishment during working hours, inspect the records relevant to such enquiry, investigate and take such evidence as may be required to conduct such enquiry.
- (10)
The findings of the enquiry along with all evidence, in original, including statements of witnesses shall be forwarded to the authority specified under Section 39 of the Act, within five days of the completion of the enquiry in cases where such enquiry was not conducted by such authority itself.
- (11)

A copy of the findings along with a brief statement of facts relating to an enquiry conducted under this rule shall be forwarded to the Chief Inspector and State Government by the authority referred to in sub-rule (1) of Rule 251.

Chapter VIII

Chief Inspector And Inspectors

[Sections 42 and 43]

253.

Power to engage experts or agencies.

(1)

The Chief Inspector may engage experts or agencies, as deemed necessary, from the fields of civil engineering, structure engineering, architecture, and other disciplines of occupational safety, health and environment as and when required for the purpose of conducting any inspection, investigation or enquiry into the cause of an accident or a dangerous occurrence or otherwise.

(2)

The experts referred to in sub-rule (1) shall -

(a)

possess a degree in the relevant field from a recognized university;

(b)

possess not less than ten years experience of working in the relevant field out of which at least five years shall be in the field of occupational safety, health and environment.

(3)

Agencies referred to in sub-rule (1) shall be of national standing in the relevant field and registered under the relevant law.

(4)

The State Government may, from time to time prepare a panel of experts and agencies referred to in sub-rule (1).

(5)

An engineer or expert or agency employed under sub-rule (1) shall be paid such travelling allowances and daily allowances as are allowed to him by his organization where he is employed or such travelling allowance and daily allowance as is admissible to officer of the rank of a Deputy Secretary to the Government of Uttar Pradesh.

(6)

In addition to travelling allowance and daily allowance referred to in sub-rule (5) to an engineer or architect or agency, they shall also be paid honorarium at the rates as may be specified by the State Government by notification in the Official Gazette from time to time.

254.

Powers of Inspector.

(1)

An Inspector may, at a construction site of a building or other construction work within local limits for which he is appointed -

(i)

examine such construction site or place or premises used or to be used for such building or other construction work;

(ii)

take on the spot or otherwise such evidence of any person which he may deem necessary for the purpose of any examination or enquiry connected with such building and other construction work directly or indirectly :

Provided that such person shall not be compelled to answer any question or give any evidence tending to incriminate him.

(iii)

take photographs, video clips, sample weight or measure or record or make such sketches as he may consider necessary for the purpose of any examination or injury under these rules.

(iv)

hold an inquiry into the cause of any accident or dangerous occurrence which he has reasons to believe was the result of any operation connected with or incidental to such building or other construction work, or of non-compliance with any of the provisions of the Act or these rules.

(2)

An Inspector may, within the local limits for which he is appointed, issue show cause notice or warning to employers regarding the safety, health or welfare of building workers provided under the Act or the rules.

(3)

An Inspector may, within the local limits for which he is appointed, file in a court having jurisdiction a complaint or other proceeding relating to an offence under the Act.

(4)

An Inspector may, within the local limits for which he is appointed, direct any contractor or any employer for getting the building workers medically examined in accordance with the provisions of these rules.

(5)

An Inspector may, within the local limits for which he is appointed, require a person having power of supervision and control of a construction site of a building or other construction work or the employer, project in-charge, site in-charge and supervisor of such construction site, as the case may be, to provide such means or assistance as may be required by such Inspector for entry, inspections, examination or enquiry for the exercise of the powers under sub-section (1) of Section 43 of the Act or these rules in relation to such construction site or project.

255.

Prohibiting order.

(1)

If it appears to the Inspector that any site or place at which any building or other construction work is being carried on, is in such condition that it is dangerous to life, safety or health of building workers or the general public, he may, in writing, serve on the employer or building workers or on the owner of the establishment or on the person in-charge of such site or place an order prohibiting any building or other construction work at such site or place until measures have been taken to remove the cause of the danger to his satisfaction.

(2)

An Inspector serving an order under sub-rule (1) shall endorse a copy to the Chief Inspector.

(3)

Such prohibition order shall be complied with by the employer forthwith.

(4)

Any person aggrieved by an order under sub-rule (1) may, within fifteen days from the date on which the order is communicated to him, prepare an appeal to the Chief Inspector or where such order is by the Chief Inspector, to the Secretary, Labour, State Government, as the case may be, who shall, after giving the appellant an opportunity of being heard, dispose of the appeal as expeditiously as possible :

Provided that the Chief Inspector or the Secretary to the Government of Uttar Pradesh in the Ministry of Labour, as the case may be, may entertain the appeal after the expiry of the said period of fifteen days if he is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time :

Provided further that the prohibiting, shall be complied with pending the decision of the Chief Inspector or the Secretary to the Government of Uttar Pradesh in the Ministry of Labour.

Chapter IX

[Section 18(1)]

The Uttar Pradesh Building And Other Construction Workers Welfare Board

256.

Constitution of the Board.

(1)

The Board shall consist of -

(i)

The Principal Secretary, Labour, Government of Uttar Pradesh, as the ex officio Chairperson;

(ii)

A member to be nominated by the Central Government;

(iii)

The Chief Inspector appointed under sub-section (2) of Section 42 of the Act, as an ex-officio Member;

(iv)

Three official members not below the rank of Special Secretary, Government of Uttar Pradesh, nominated by the State Government from the Housing Department, Finance Department and the Department engaged in building and other construction work;

(v)

Three persons, out of which one shall be a woman, representing the employers of the building and other construction industry, to be nominated by the State Government;

(vi)

Three persons, out of which one shall be a woman, representing the building workers, to be nominated by the State Government.

(2)

Where for any reason whatsoever, it appears to the State Government that it is not in a position to constitute a Board in accordance with the provisions of sub-rule (1), the State Government considers it expedient to do so it may by notification in the Official Gazette, appoint a person to be known as the Administrator for a period and exceeding six months or till the Board is duly constituted under sub-rule (1), whichever is earlier.

257.

Term of office.

- [(a) Omitted.

(b)

Each of the members of the Board, nominated by the State Government under clauses (v) and (vi) of sub-rule (1) of Rule 256, shall hold office as such for a term of three years with effect from the date of appointment as notified in the Official Gazette :

Provided that where the appointment of the successor of any member has not been notified in the Gazette on or before the expiry of the period of his office, notwithstanding the expiry of the term of his office, such member shall continue to hold such office until the appointment of his successor is notified in the Official Gazette :

Provided further that in no case the members shall continue in office beyond a period of four years from the date of their appointment.]

[Substituted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

258.

Resignation.

- A member of the Board, not being an ex-officio member or a member representing the State Government, may resign his office by a letter in writing addressed to the State Government and on such resignation being accepted by the State Government, his office shall fall vacant on the date on which such resignation is accepted.

259.

Cessation of membership.

- If any member of the Board, not being an ex-officio member or a member representing the State Government, fails to attend three consecutive meetings of the Board, without obtaining the leave of the Chairperson for such absence, he shall cease to be a member of the Board :

Provided that the State Government may, if it is satisfied that such member was prevented by sufficient cause from attending three consecutive meetings of the Board, direct that such cessation shall not take place and on such direction being made, such member shall continue to be member of the Board.

260.

Disqualification for membership.

(1)

A person shall be disqualified for being nominated and for being a member of the Board -

(i)

if he is of unsound mind and stands so declared by a competent Court, or

(ii)

if he is an undischarged insolvent; or

(iii)

if he has been or is convicted of an offence, which in the opinion of the State Government, involves moral turpitude.

(2)

Where a question arises as to whether a disqualification has been incurred under sub-rule (1), the State Government shall decide such question, whose decision, thereon, shall be final.

261.

Removal from Membership.

- The State Government may remove from office any member of the Board, if in its opinion such a member has acted contrary to the provisions of these rules or has incurred any of disqualification in Rule 6 ceased to represent the interest, which he purports to represent on the Board :

Provided that no such member shall be removed unless a reasonable opportunity is given to him of making any representation against the proposed action.

262.

Manner of Filling Vacancy.

- A member nominated to fill a casual vacancy shall hold office for the remaining period of the term of office of the member in whose place he is nominated.

263.

Officers of the Board.

(1)

The Secretary of the Board shall be the Chief Executive Officer of the Board.

(2)

The Secretary shall with the approval of the Chairperson issue notice to convene a meeting of the Board and shall keep the records of the minutes of such meetings and shall take necessary steps for carrying out the decisions of the Board.

(3)

The Board may with the prior concurrence of the State Government appoint an officer of the Government not below the rank of a Deputy Labour Commissioner as Secretary of the Board.

(4)

The Board may with the prior concurrence of the State Government appoint such other officers and employees as its staff to assist the Board in the efficient discharge of the functions of the Board under the Act.

264.

Meetings of the Board.

(1)

The Board shall meet at least once in three months at such places and at such times as may be decided by the Chairperson or as and when any matter is referred to it by the State Government for advice.

(2)

The Chairperson of such Board shall preside over every meeting of the Board in which he is present and in his absence he may nominate a member of the Board to preside over such a meeting in his place and in the absence of such nomination by the Chairperson, the member of such Board present in such meeting may choose from among themselves a member to preside over such a meeting.

265.

Notice of meeting and list of business.

(1)

Ordinarily fifteen days notice shall be given to the members of a proposed meeting.

Provided that when the Chairperson calls a meeting for considering any matter which in his opinion is urgent, notice of not less than three days shall be deemed sufficient.

(2)

No business, which is not on the list of business for a meeting, shall be considered at that meeting without the permission of the Chairperson.

266.

Quorum.

- [No business shall be transacted at any meeting unless at least 6 members are present, of whom one shall be from among those nominated under clauses (v) and (vi) of sub-rule (1) of Rule 256 :

Provided that if at any meeting less than 6 members are present the Chairperson may adjourn the meeting to another date informing members present and giving notice to the other members that he proposes to dispose of the business at

the adjourned meeting whether there is a prescribed quorum or not, and it shall thereupon be lawful for him to dispose of the business at the adjourned meeting irrespective of the member of members attending.]

[Substituted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

267.

Chairperson to preside at Meeting.

(1)

The Chairperson shall preside over every meeting of the Board in which he is present, and if, for any reason the Chairperson is unable to attend the meeting any member nominated by the Chairperson in this behalf shall preside over the meeting.

(2)

When the Chairperson is absent and no member has been nominated by the Chairperson under sub-rule (1), the members present shall elect one of them to preside over the meeting and the member so elected shall exercise all the powers of the Chairperson in conducting the meeting.

268.

Transaction of business.

- Every question considered at a meeting of the Board shall be decided by a majority of the votes of the members present and in the event of equality of votes, the Chairperson shall have and exercise a second and a casting vote.

269.

Fee and allowances.

(1)

The travelling allowance and daily allowance of an official member shall be governed by the rules applicable to him for journey performed by him on official duties and shall be paid by the authority paying his salary.

(2)

The non-official members of the Board shall be paid travelling allowance and daily allowance for attending the meeting of the Board at such rates as are admissible to Group-A officers of the State Government.

270.

Committees of Board.

- The Board may appoint such Committees as it may deem fit for the proper discharge of its duties and the members of such Committees shall be allowed travelling allowance and daily allowance at the rates and subject to the conditions specified under rule :

(1)

While constituting a Committee, the Board may nominate one of its members to be the Chairman of the Committee.

(2)

The Committee shall meet at such time as the Chairman of the said Committee may decide and the Committee shall observe such rules of procedures in regard to the transaction of business at its meeting as it may decide upon.

(3)

The recommendations of the Committees shall be placed before the Board for its decision.

271.

Minutes of the meetings.

- Every decision taken at a meeting of the Board shall be recorded in a minutes book and signed by the Chairperson. The minutes book shall be a permanent record.

272.

Powers, duties and functions of the Board.

(1)

The Board shall be responsible for the management and administration of the fund and all related matters in accordance with the Act and Rules applicable for the purpose.

(2)

Without prejudice to the generality of the powers conferred in the foregoing clause the Board shall be responsible for -

(a)

all matters connected with the administration of the fund;

(b)

preparation and submission of annual budget to the Government for sanction;

(c)

preparation and submission of the annual report to the Government on the activities of the Board;

(d)

proper maintenance of accounts;

(e)

collection of contributions to the fund and other charges;

(f)

appoint Committees for disposal of the business of the Board or for advice in various matters pertaining to the objects of the Board;

(g)

hear and deal with the complaints;

(h)

secure the fulfillment of any contract and agreement entered into;

(i)

authorize any person to enter into negotiations and execute contracts and to rescind and vary all such contracts;

(j)

open account with the Bank and authorize officers of the Board to operate on them as well as draw, accept, endorse and execute cheques, bills of exchange etc. on behalf of the Board;

(k)

lay down rules for affixation and safe custody of common seal of the Board;

(l)

invest the fund money and deposits within Nationalized Banks, Government securities or in institutions wholly owned by the Government;

(m)

delegate from time to time all or any of its powers to the Secretary or any other officer of the Board as may be necessary for the efficient administration of the affairs of the Board.

273.

Powers and functions of the Secretary.

(1)

As the Chief Executive Officer of the Board, the Secretary shall be responsible to conduct the activities of the Board.

(2)

The Secretary shall exercise such administrative and financial powers as are authorized to him from time to time by the Board.

(3)

The Board may from time to time delegate, subject to such conditions as it may deem fit, administrative and financial powers to any other officer under its control and supervision to the extent considered necessary for its efficient functioning.

274.

The Uttar Pradesh Building and Other Construction Workers Welfare Fund.

(1)

The Board may as soon as may be after the coming into force of these rules, constitute a Fund by the name "The Uttar Pradesh Building and Other Construction Workers 'Welfare Fund' " in accordance with the provisions of the Act and the rules made under the Act.

(2)

The fund shall vest in and be administered by the Board.

(3)

There shall be credited to the Fund -

(a)

grant or loan advances if any, made by the Government of India or by the State Government or any Government body or local authority;

(b)

the contribution paid by the beneficiaries under these rules;

(c)

all sums received by the Board from such other sources as may be decided by the State or State Government.

Registration of Building Workers as Beneficiaries

[Section 12]

275.

Eligibility of Registration.

- Every building worker who has completed eighteen years of age, but has not completed sixty years of age, and who has been engaged in any building or other construction work for not less than ninety days during the preceding twelve months and who is not registered as a beneficiary in any other Welfare Fund established under any law for the time being in force, shall be eligible for registration as the beneficiary of the fund.

276.

Application for registration of beneficiary.

- [(1) An application for registration of beneficiary shall be submitted in one copy in Form-25 to the office of the beneficiary registering officers of the area authorized by the Board under sub-section (2) of Section 12 of the Act, by the applicant with two copies of photographs or through online on department website of Government of Uttar Pradesh.

(2)

Every application shall be accompanied by Bank Draft/Bankers Cheque or cash of Rs. 20 (Rs Twenty only) as registration fee payable to the Board. The Registration Officer shall provide counter foil of the form prepared by the Secretary of the Board forthwith to the applicant as receipt acknowledging the payment.

(3)

Every application for registration as a beneficiary shall be accompanied by self-attested copy of Aadhaar card and blank passbook. The application shall also be accompanied by a proof from the employer or contractor that the applicant is a construction worker. Such certification may also be issued by the Inspector of the area concerned.

(4)

Where the beneficiary registering officer authorized by the Board is satisfied that the applicant fulfils the conditions of such building or other construction worker, he shall be registered as a beneficiary within a period not exceeding fifteen working days and register of beneficiary to be maintained in Form-26. The registering officer may grant or refuse to grant or object to grant or amend registration otherwise the registration shall be deemed to be granted.

Application may submit his application on departmental web-portal along with required documents and paying the fees, provided that if such application is complete and the applicant is eligible for such registration would automatically be granted by departmental web-portal within three days. The Registering Officer may grant or refuse to grant or object to grant or amend registration otherwise the registration shall be deemed to be granted:

Provided if registration is obtained by misrepresentation or concealment of facts or on the basis of forged documents, such registration shall be deemed null and void and may be cancelled and legal action may be taken against applicant.

Registration certificate shall be sent to applicant through e-mail and its copy shall be given to applicant at once.

The particulars of beneficiary shall be recorded in relevant register and forms.]

[Substituted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

277.

Beneficiary Identity Card.

- (i) The registering officer of beneficiary shall issue an identity card to the beneficiary with his photograph duly affixed thereon in Form-27.

(ii)

Where identity card issued under sub-rule (1) is, lost or accidentally destroyed a duplicate identity card may be issued on payment of Rupees Five to the Board.

278.

Register of employment of beneficiary.

- The details of employment of beneficiaries employed in building or other construction work shall be maintained by an employer in a register on Form-28.

279.

Contribution to the Fund.

- [(1) A beneficiary under this Act shall until the age of 60 years make yearly contribute to Rs. 20 (Rs Twenty only) to the fund either by cash or as bank draft. This contribution shall be paid in advance.

Provided aforesaid contribution may be deposited at one time for the maximum period of three years.

(2)

If a beneficiary commits default in the payment of contribution continuously for a period of one year, he shall cease to be a beneficiary of the fund. However, with the permission of the registering/authorised officer, the membership may be resumed on repayment of Rs. Five per month penalty subject to the maximum of two hundred rupees with the condition that such resumption shall not be allowed more than twice up to the age 60 years.]

[Substituted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

280.

Maintenance and production of records and registers.

(1)

Every employer shall maintain such records and registers showing the particulars of the building workers and the beneficiaries among them as may be directed by the Board from time to time.

(2)

Every employer shall produce the record and registers and make them available for inspection and scrutiny whenever so required by the Secretary or any other officer authorized by him.

Chapter X

Assistance And Benefits

[Section 22]

281.

[Assistance and Benefits.

[Substituted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

(1)

The money payable by way of an assistance or a benefit, enumerated in the table given below, shall be credited into the Bank Account of, as the case may be, the beneficiary or other eligible recipient, maintained in a Nationalised Bank, a Regional Rural Bank or a District Central Cooperative Bank.

Benefit

Minimum number of years for which a beneficiary should have contributed to the fund for becoming eligible for the benefit

(1)

(2)

3. [Financial Assistance for purchase or construction of house.

[Substituted by Notification No. 82/36-2-2018-10(G)-2017, dated 16.1.2018 (w.e.f. 4.2.2009).]

One years and having five years of service for superannuation]

9. Financial assistance of education of children of beneficiaries

One year or as may be prescribed in the scheme, whichever is less

10. Financial assistance for marriage of children of beneficiaries

One year or as may be prescribed in the scheme, whichever is less.]

(2)

Subject to the provisions of the Act and these rules, the Board may extend all or any of the assistance's of benefits specified in Column I of the Table specified in sub-rule (1) above, to the beneficiaries (including in appropriate cases, to their dependants), who have contributed to the Fund for the minimum period specified in Column 2 of the Table

specified in sub-rule (1) above.

(3)

In computing the period of contribution for the purposes of sub-rule (2), any period for which the Board may have waived payment of contribution under proviso to sub-section (1) of Section 16 of the Act, shall be excluded.

(4)

[The State Government may change the minimum number of years for which for which a beneficiary should have contributed to the Fund for becoming eligible for the assistance or benefit as prescribed in the Column 2 of the table of sub-rule (1), if such change is proposed by the Board.]

[Inserted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

282.

Board to notify schemes, laying down procedural and other residual matters regarding assistance and benefits.

- The Board shall draw up and with the previous approval of the State Government, notify, in respect of each assistance or benefit or group of assistance or benefits, specified in Rule 281, schemes and all other residuary matters not expressly provided in the Act and these rules, which shall include -

(i)

rates at which various benefits shall be payable;

(ii)

procedure and Form for making application;

(iii)

procedure for and authority competent to grant sanction;

(iv)

procedure for disbursement; and

(v)

any other incidental matters.

283.

Other welfare activities.

- In addition to granting benefits referred to in Rules 281 and 282 to individual beneficiaries, the Board may undertake the following activities with a view to promoting general welfare of building workers, namely -

(i)

commissioning surveys, studies etc. to ascertain pattern of employment, skills, income, wages and working conditions of building workers, and the impact of various programmes of the Government and the Board meant for their welfare.

(ii)

spreading awareness among them about their statutory rights, procedure of enforcing those rights, redressing grievances, and availing of various welfare and development schemes;

(iii)

promoting health of women and children, the small family norm, and elimination of social evils like drinking, dowry, child marriage etc.;

(iv)

organizing sports, cultural and recreational activities for building workers, and study tours for groups of beneficiaries;

(v)

establishment of educational institutions for children of beneficiaries; and

(vi)

any other activities, with the prior approval of the State Government aimed at promoting welfare of building workers as a whole.

(vii)

[Conduct G.I.S. or survey through any other modern technology to identify constructions and assess the amount of cess payable by these constructions, so that cess can be collected from each eligible construction and amount of cess so collected may be utilised for welfare activities of construction workers.]

[Inserted by Notification No. 83/XXXVI-2-18-10(G)-17, dated 16.1.2018 (w.e.f. 4.2.2009).]

284.

[Power of the Board to modify certain formats.

[Inserted by Notification No. 989/XXXVI-2-2017, dated 23.8.2017, (w.e.f. 4.2.2009).]

- The Board may modify any format prescribed in these rules regarding registration of establishments or workers, application for assistance or benefits or any other purpose:

Provided that such modifications would not effect the basic structure of the formats and this would be done for the simplification of general purpose and process.]

I

[See Rules 112(a) and 126(a)]

Manner of test and examination before taking lifting appliance, lifting gear and wire rope into use for the first time.

Test Loads :

(1)

Lifting appliance. - Every lifting appliance with its accessory gear, shall be subjected to a test load which shall exceed the safe working load (SWL) as specified in the following table :

TABLE

Safe working load

Test load

Up to 20 tonnes

25 per cent in excess of safe working load.

20 to 50 tonnes

5 tonnes in excess of safe working load

Over 50 tonnes

10 per cent in excess of safe working load

(2)

Lifting gear. - (a) Every ring, hook, chain, shackle, swivel, eye-bolt, plate clamp, triangular plate or pulley block (except single sheave block) shall be subjected to a test load which shall not be less than the load as specified in the following table :

TABLE

Safe working load (in tonnes)

Test load (in tonnes)

Up to 25

2 x safe working load

above 25

$(1.22 \times \text{safe working load}) + 20$

(b)

In the case of a single sheave block, the safe working load shall be the maximum load which can safely be lifted by the block when suspended by its head fitting and the load is attached to a rope which passes around the sheave of the block and a test load not less than four times the proposed safe working load shall be applied to the head of the block.

(c)

In the case of a multi-sheave block, the test load shall not be less than the load as specified in the following table.

TABLE

Safe working load (in tonnes)

Test load (in tonnes)

Up to 25

2 x safe working load)

25 to 160

$(0.9933 \times \text{safe working load}) + 27$

above 160

1.1 x safe working load.

(d)

In the case of hand-operated pulley blocks used with pitched chains and rings, hooks, shackles or swivels, permanently attached thereto, a test load not less than 50 per cent in excess of the safe working load shall be applied.

(e)

In the case of a pulley block fitted with a bucket, the bucket shall be tested and the load applied to the bucket when testing that block will be accepted as test load of the bucket.

(f)

In the case of a sling having two legs, the safe working load shall be calculated when the angle between the legs is 90 degree. In case of multilegged slings the safe working load shall be calculated as per national standards.

(g)

Every lifting beam, lifting frame, container spreader, bucket, tub, or other similar devices shall be subjected to a test load which shall not be less than the load as specified in the following table :

TABLE

Safe working load (in tonnes)

Test load (in tonnes)

Up to 10

2 x safe working load

10 to 160

$(1.04 \times \text{safe working load}) + 9.6$

above 160

$1.1 \times \text{safe working load}$

(h)

Wire ropes. - In the case of wire ropes a sample shall be tested to destruction. The test procedure shall be in accordance with recognised national standards. The safe working load of the rope is to be determined by dividing the load at which sample broke by a co-efficient of utilisation, determined as specified in the following table :

TABLE

Item

Co-efficient of utilisation

(1)

(2)

(a) Wire rope forming part of sling. Safe working load of the sling : Safe working load up to and equal to 10 tonnes : Safe working load above 10 tonnes and up to and equal to 160 tonnes
 $510/(8.85 \times \text{SWL}) + 1910$

Safe working load above 160 tonnes

3

(b) Wire rope as integral part of a lifting appliance : SWL. of the lifting appliance : Safe working load up to and equal to 160 tonnes

$1010/(8.85 \times \text{SWL}) + 1910$

Safe working load above 160 tonnes

3

(i)

Before any test is carried out, a visual inspection of the lifting appliance, or lifting gear involved shall be conducted and any visible defective gear shall be replaced or renewed.

(j)

After being tested, all the lifting gears shall be examined to see whether any parts have been injured or permanently deformed by the test.

Procedure for Testing :

(3)

Derricks. - (a) A derrick shall be tested with its boom at the minimum angle to the horizontal for which the derrick is designed (generally 15 degrees) or at such greater angle as may be agreed. The angle at which the test has been carried out shall be mentioned in the test certificate, The test load shall be applied by hoisting movable weights. During the test, the boom shall be swung with the test load, as far as practicable, in both directions.

(b)

A derrick boom, designed to be raised with power, with the load suspended, shall, in addition to the tests at (a), be raised (with the load suspended) to its maximum working angle to the horizontal and the two outermost positions.

(c)

While test loading of a heavy lift derrick, the competent person responsible for tests using movable weights shall ascertain from the owner of the vessel or floating platform that the stability of the vessel or platform is adequate for the test.

(4)

The derricks tested under clause (3) shall not be used in union purchase rig unless. - (a) The derricks rigged in union purchase are tested with the test load appropriate to the SWL in union purchase (at the designed headroom and with the derrick booms in their approved working positions).

(b)

The safe working load of that derrick in union purchase rig has also been specified by a competent person in a report in Form V;

(c)

Any limitations or conditions specified in the said report are complied with; and

(d)

The two hoist ropes are coupled together by a suitable swivel assembly.

Note. - The safe working loads of derricks (for each method of rig including union purchase) shall be shown on the certificate of test and marked on the derrick booms.

(5)

Lifting appliances. - (a) The test load shall be lifted and swung, as far as possible, in both directions. If the jib or boom of the crane has a variable radius, it shall be tested with test loads at the maximum and minimum radii. In case of hydraulic cranes when owing to the limitation of pressure, it is impossible to lift a test load in accordance with table under item (I), it will be sufficient to lift the greatest possible load which shall be more than safe working load.

(b)

The test shall be performed at maximum, minimum and intermediate radius points as well as such points in the area of rotation, as the competent person may decide. The test shall consist of hoisting, lowering breaking and swinging and swinging through all positions and operations normally performed. An additional test shall be made by operating the machinery at maximum working speed with the safe working load suspended.

(6)

Use of spring or hydraulic balances, etc. for test loading. - All tests Shall normally be carried on with the help of dead weights. In case of periodical test, replacements or renewals, test load may be applied by means of suitable springs or hydraulic balances. In such case, test load shall be applied with the boom, as far out as practicable, in both directions. The test shall not be taken as satisfactory unless the balance has been certified for accuracy by the competent authority within 2.0 per cent and the pointer of the machine has remained constant at the test load for a period of at least five minutes.

(7)

Testing machines and dead weights. - (a) A suitable testing machine shall be used for testing of chains, wire ropes and other lifting gears.

(b)

Testing machines and balances to be used in test loading, testing and checking shall not be used unless they have been certified for accuracy at least once in the preceding twelve months by the competent authority;

(c)

Movable weights used for the test loading of the lifting appliances having a safe working load not exceeding twenty tonnes shall be checked for accuracy by means of suitable weighing machine of certified accuracy.

(8)

Thorough examination after testing or test loading. - After being tested or test loaded, every lifting appliance and associated gear shall be thoroughly examined to see that no part has been damaged or permanently deformed during the test. For this purpose, the lifting appliance or gear shall be dismantled to the extent considered necessary by the competent person.

II

Notifiable Occupational Diseases in Building and Other Construction Work

[See Rule 228(a)]

1. Occupational dermatitis.
2. Occupational cancer.
3. Asbestosis.
4. Silicosis.
5. Lead poisoning including poisoning by any preparation or compound of lead or their sequelae.
6. Benzene poisoning, including poisoning by any of its homologues, their nitro or amino derivatives or its sequelae.
7. Occupational asthma.
8. Pesticide poisoning,
9. Carbon monoxide poisoning.
10. Toxic jaundice.
11. Toxic anaemia.
12. Compressed air illness (Caissons disease).
13. Noise-induced hearing loss.
14. Isocyanates poisoning.
15. Toxic nephritis.

III

Contents of a first-aid box

[See Rule 229(b)]

(i)

A sufficient number of eye wash bottles filled with distilled water or suitable liquid clearly indicated by a distinctive sign which shall be visible at all times.

(ii)

4 per cent xylocaine eye drops, and boric acid eye drops and soda bicarbonate eye drops.

(iii)

Twenty-four small sterilised dressings.

(iv)

Twelve medium size sterilised dressings.

(v)

Twelve large size sterilised dressing.

(vi)

Twelve large size sterilised burn dressings,

(vii)

Twelve (fifteen cm.) packets of sterilised cotton wool.

(viii)

(Two hundred ml.) bottle of certimide solution (1 per cent) or suitable antiseptic solution.

(ix)

One (two hundred ml.) bottle of mercurochrome (2 per cent) solution in water.

(x)

One (one hundred twenty ml.) bottle of salvolatile having the doses and mode of administration indicated on the label.

(xi)

One pair of scissors.

(xii)

One roll of adhesive plaster (six cm. x one metre).

(xiii)

Two rolls of adhesive plaster (two cms. x one metre).

(xiv)

Twelve pieces of sterilised eye pads in separate sealed packets.

(xv)

A bottle containing hundred tablets (each of three hundred twenty-five mg.) of aspirin or any other analgesic.

(xvi)

Twelve roller bandages ten cms. wide.

(xvii)

Twelve roller bandages five cms. wide.

(xviii)

One tourniquet.

(xix)

A supply of suitable splints.

(xx)

Three packets of safety pins.

(xxi)

Kidney tray.

(xxii)

A snake bite lancet.

(xxiii)

One (thirty ml.) bottle containing potassium permanganate crystals.

(xxiv)

One copy of first-aid leaflet issued by the Directorate-General.

(xxv)

Six triangular bandages.

(xxvi)

Two pairs of suitable, sterilised, latex hand gloves.

IV

[See Rule 224(a)]

Articles for ambulance room :

(i)

A glazed sink with hot and cold water always available.

(ii)

A table with a smooth top at least 180 cm. x 105 cm.

(iii)

Means for sterilising instruments.

(iv)

A couch.

(v)

Two stretchers.

(vi)

Two buckets or containers with close-fitting lids.

(vii)

Two rubber hot water bags.

(viii)

A kettle and spirit stove or other suitable means of boiling water.

(ix)

Twelve plain wooden splints 900 cm. x 100 cm. x 6 cm.

(x)

Twelve plain wooden splints 350 cm. x 75 cm. x 6 cm.

(xi)

Six plain wooden splints 250 cm. x 50 cm. x 12 cm.

(xii)

Six woollen blankets.

(xiii)

Three pairs of artery forceps.

(xiv)

One bottle of spiritus annemiae aremations (120 ml.).

(xv)

Smelling salt (60 gms.).

(xvi)

Two medium size sponges.

(xvii)

Six hand towels.

(xviii)

Four kidney trays.

(xix)

Four cakes of toilet, preferably antiseptic soap.

(xx)

Two glass tumblers and two wine glasses.

(xxi)

Two clinical thermometers.

(xxii)

Two tea spoons.

(xxiii)

Two graduated (120 ml.) measuring glasses.

(xxiv)

Two minimum measuring glasses.

(xxv)

One wash bottle (1000 cc.) for washing eyes.

(xxvi)

One bottle) (one litre) carbolic lotion 1 to 20.

(xxvii)

Three chairs.

(xxviii)

One screen.

(xxix)

One electric hand torch.

(xxx)

Four first-aid boxes or cupboards stocked to the standards prescribed in the Schedule VII.

(xxxi)

An adequate supply of tetanus toxide.

(xxxii)

Injections - morphia, pethidine, atrophine, adrenaline, coramine, novocaine (6 each).

(xxxiii)

Cramine liquid (60 ml.).

(xxxiv)

Tablets - antihistaminic antispasmodic (25 each).

(xxxv)

Syringes with needles - 2 cc., 5 cc, and 500 cc.

(xxxvi)

Three surgical scissors.

(xxxvii)

Two needle holders, big and small.

(xxxviii)

Suturing needles and materials.

(xxxix)

Three dissecting forceps.

(xi)

Three dressing forceps.

(xli)

Three scalpels.

(xlii)

One stethoscope and a B.P. apparatus.

(xliii)

Rubber bandage-pressure bandage.

(xliv)

Oxygen cylinder with necessary attachments.

(xiv)

Atropine eye ointments.

(xlv)

I.V. Fluids and sets 10 nos.

(xlvii)

Suitable, foot-operated, covered, refuse containers.

(xlviii)

Adequate number of sterilised, paired, latex hand gloves.

V

[See Rule 225]

Contents of Ambulance Van or Carriage

The Ambulance Van shall have equipments prescribed as under :

(a)

General. - A portable stretcher with folding and adjusting devices with the head of the stretcher capable of being tilted upward. Fixed suction unit with equipment. Fixed oxygen supply with equipment. Pillow with case, sheets, blankets, towels, emergency bag, bed pan, urinal glass.

(b)

Safety equipment. - Flaros with life of three thousand minutes, floor lights, flash lights, fire extinguishers (dry power type), insulated guntlets.

(c)

Emergency care equipment. - (i) Resuscitation - Portable suction unit, portable oxygen unit, bagvalve mask, hand-operated artificial ventilation unit, airways, mouthgag tracheostomy adapters, short spine board, I.V. Fluids with administration unit, B.P. manometer, cuff stethoscope.

(ii)

Immobilisation. - Long and short padded boards, wire ladder splints, triangular bandage, long and short spine boards.

(iii)

Dressing - Gauze pads. - 100 mm. x 100 mm. universal dressing 250 mm. x 1000 mm. roll of aluminium foils - soft roller bandages 150 mm. x 5 mm. yards adhesive tape in 75 mm, roll safety pins, bandage sheets, burn sheets.

(iv)

Poisoning. - Syrup of Ipecac, activated charcoal pre-packeted dose, snake bite kit, drinking water.

(v)

Emergency medicines. - As per requirement (under the advice of construction Medical Officer).

VI

Permissible Exposure in Cases of Continuous Noise

[See Rule 235]

Total time of exposure (continuous or a number of short-term exposures) per day (in hours)

Sound pressure level (in dBA)

1

2

8
90
6
92
4
95
3
97
2
100
11/2
102
1
105
3/4
107
1/2
110
1/4
115

Notes. - (1) No exposure in excess of 115 dBA is to be permitted.

(2)

For any period of exposure falling in between any figure and the next higher or lower figure as indicated in column (1), the permissible sound pressure level is to be determined by extrapolation on a proportionate basis.

VII

[See Rule 81(iv) and 221(a)(iii)]

Periodicity of Medical Examination of Building Workers

1. The employer shall arrange a medical examination of all the building workers employed as drivers, operators of lifting appliances and transport equipment before employing, after illness or injury, if it appears that the illness or injury might have affected his fitness and, thereafter, once in every two years up to the age of forty and once in a year, thereafter.

2. Complete and confidential records of medical examination shall be maintained by the employer or the physician authorised by the employer.

3. The medical examination shall include -

(a)

full medical and occupational history,

(b)

clinical examination with particular reference to-

(i)

General Physique;

(ii)

Vision - Total visual performance using standard orthorator like litmus Vision Tester should be estimated and suitability for placement ascertained in accordance with the prescribed job standards.

(iii)

Hearing - Person with normal hearing must be able to hear a forced whisper at twenty-four feet. Person using hearing aids must be able to hear a warning shout under noisy working conditions.

(iv)

Breathing - Peak flow rate using standard peak flow meter and the average peak flow rate determined out of these readings of the test performed. The results recorded at pre-placement medical examination could be used as a standard for the same individual at the same altitude for reference during subsequent examination.

(v)

Upper Limbs - Adequate arm function and grip (both arms).

(vi)

Lower Limbs - Adequate leg and foot function.

(vii)

Spine - Adequately flexible for the job concerned.

(viii)

General - Mental alertness and stability with good eye, hand and foot coordination.

(c)

Any other tests which the examining doctor considers necessary.

VIII

[See Rules 219(1) and 219(2)]

Number of Safety Officers, Qualification, Duties etc.

Appointment of Safety Officers

Number of Safety Officers. - Within six months of coming into operation of these rules, every establishment employing more than five hundred building workers and every other employer of building worker shall appoint safety officers, as laid down in the scale given below :

1.

Up to 1000 building workers

- one safety officer.

2.

Up to 2000 building workers

- two safety officers.

3.

Up to 5000 building workers

- three safety officers.

4.

Up to 10,000 building workers

- four safety officers.

For every additional 5000 building workers or part thereof

- one safety officer.

Any appointment, when made shall be notified to the Inspector having jurisdiction in the area, giving full details of the qualifications, terms and conditions of service of such safety officer.

Qualification. - (a) A person shall not be eligible for appointment as a safety officer unless he :

(i)

possesses a recognised degree in any branch of engineering or technology or architecture and had a practical experience of working in a building or other construction work in a supervisory capacity for a period of not less than two years or possesses a recognised diploma in any branch of engineering or technology and has had practical experience of building or other construction work in a supervisory capacity for a period of not less than five years;

(ii)

possesses a recognised degree or diploma in industrial safety with at least one paper in construction safety (as an elective subject);

(iii)

has adequate knowledge of the language; spoken by majority of building workers from the construction site in which he is to be appointed.

(b)

Notwithstanding the provision contained in clause (a), any person who -

(i)

possesses a recognised degree or diploma in engineering or technology or architecture and has had experience of not less than five years in the field, dealing with the Administration of Factories Act, 1948 or the Dock Workers (Safety, Health and Welfare) Act, 1986 or the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996.

(ii)

possesses a recognised degree or diploma in engineering or technology and has had experience of not less than five years or has undergone training in education, consultancy or research in the field or accident prevention in industry, port, or in any institution or an establishment dealing with building or other construction work,

shall also be eligible for appointment as a safety officer.

Provided that, in case of a person who has been working as safety officer in industry or port, institution or an establishment dealing with building or other construction work for a period of not less than three years on the date of commencement of these rules, the Director-General may, subject to such conditions that he may specify, relax all or any of the above said qualification.

Condition of Service. - (a) Where number of safety officers appointed exceeds one, one of them shall be designated as Chief Safety Officer and shall have the status higher than the others. The Chief Safety Officer shall be in overall charge of the safety functions as envisaged in sub-clause (iv) and also other safety officers working under his control.

(b)

The Chief Safety Officer or Safety Officer, where only one safety officer is appointed, shall be given the status of a Senior Executive and he shall work directly under the control of his Chief Executive. All other safety officers shall be given appropriate status to enable them to dispatch their functions effectively.

(c)

The scale of pay and allowances to be granted to the safety officers including the Chief Safety Officer and the other conditions of their service shall be the same as those of the officers of corresponding status of the establishment in which they are employed.

Duties of Safety Officer. - (a) The duties of a safety officer shall be to advise and assist the employer in the fulfilment of his obligations, statutory or otherwise, concerning prevention of personal injuries and maintaining a safe working environment. These duties shall include the following, namely :

(i)

to advise the building workers in planning and organizing measures necessary for effective control of personal injuries;

(ii)

to advise on safety aspects in a building or other construction work and to carry out detailed safety studies of selected activities;

(iii)

to check and. evaluate the effectiveness of action taken or proposed to be taken to prevent personal injuries;

(iv)

to advise purchasing and ensuring quality of personal protective equipment conforming to national standards;

(v)

to carry out safety inspections of building or other construction work in order to observe the physical conditions of work and the work practices and procedures followed by building workers and to render advice on measures to be adopted for removing unsafe physical conditions and preventing unsafe actions by building workers;

(vi)

to investigate all fatal and other selected accidents;

(vii)

to investigate the cases of occupational diseases contracted and reportable dangerous occurrences;

(viii)

to advise on the maintenance of such records as are necessary with regard to accidents, dangerous occurrences and occupational diseases;

(ix)

to promote the working of safety committees and to act as an advisory to such committees;

(x)

to organize, in association with concerned departments, campaigns, competitions, contests and other activities which will develop and maintain the interest of building workers in establishing and maintaining safe conditions of work and procedures;

(xi)

to design and conduct, either independently or in collaboration with other agencies, suitable training and educational programmes for prevention of accidents to building workers;

(xii)
to frame safe rules and safe working practices in consultation with senior officials of the establishment;

(xiii)
supervise and guide safety precautions to be taken in building and other construction work of the establishment.
Facilities to be provided to safety officers. - The employer shall provide each safety officer with such facilities, equipment and information that are necessary to enable him to discharge his duties effectively.
Prohibition of performance of other duties. - No safety officer shall be required or permitted to do any work which is unconnected to, inconsistent with or detrimental to the performance of the duties prescribed in this Schedule.
Exemptions. - Director-General may, in writing, exempt any employer or group of employers from any or all of the provisions of these rules subject to compliance with such alternative arrangements as may be approved and notified by him in the order of such exemption.

IX
(See Rule 223)
Hazardous process :

- (1)
Roof work
- (2)
Steel erection
- (3)
Work under and over water
- (4)
Demolition
- (5)
Work in confined spaces

X
(See Rule 223)
Services and facilities to be provided in occupational health centres. - (1) One full-time construction medical officer for building or other construction work, employing workers up to one thousand and one additional construction medical officer for every additional one thousand workers or part thereof.

(2)
The staff, including one nurse, one dresser-cum-compounder, one sweeper-cum-ward boy with each construction medical officer for full work hours.

(3)
The occupational health centre with a floor area of minimum fifteen square metres constituting two rooms with smooth walls and intern service, adequately illuminated and ventilated.

(4)
Adequate equipment for day-to-day treatment.

(5)
Necessary equipment to manage any medical emergency.

XI
[See Rule 223(c)]
Qualification of construction medical officer. - (1) MBBS degree from a medical institute recognised by the Medical Council of India; and

(2)
Diploma in Industrial Health or equivalent post-graduate certificate of training in industrial health or health.

(3)
A medical officer having working experience in organisation establishments involved in policy, execution and advice and safety and health of workers employed in mines, ports and docks, factories and building and other construction work, for a period of not less than three years may, subject to the satisfaction of the Director-General, not be required to possess the training referred to in item (2) above.

(4)

Tire syllabi of the courses leading to the above certificates and the organisation conducting such courses shall be approved by the Central Government who may also from time-to-time prepare a panel of such organisations.

(5)

Complete particulars including name, qualification and experience of the construction medical officer will be intimated to the Inspector having jurisdiction.

XII

[See Rule 200(d)]

Permissible Levels of Certain Chemical Substances in the Work Environment

Sl. No.

Substance

Permissible limit of exposure

Time-weighted average concentration(TWA) (8 hrs.)

Short-term exposure limit (STEL)[(15 min)]

[Line free as measured by the vertical elutriator cotton dust sampler.]

ppm

mg/m³**

ppm

mg/m³**

1

2

3

4

5

6

1

Acetaldehyde

100

130

150

270

2

Acetic Acid

10

25

15

37

3

Acetone

750

1700

1000

2375

4

Acrolein

0.1

0.25

0.3

0.8

5

Acrylonitrile-Skin (S.C.)

2

4.5

-

-

6

Aldrin-Skin

-

0.25

-

-

7

Allyl chloride

1

3

2

6

8

Ammonia

25

18

35

27

9

Aniline-Skin

2

10

-

-

10

Anisidine (O-p-isomers)-Skin

0.1

0.5

-

-

11

Arsenic and soluble compounds (as As)

-

0.2

-

-

12

Benzene (S.C.)

10

30

-

-

13

Beryllium and Compound (as Be) (S.C.)

-

0.002

-

-

14

Boron trifluoride

1

3

-

-

15

Bromine

0.1

0.7

0.3

2

16

Butane

800

1900

-

-

17

2-Butanone (Methyl Ethyl Ketone-MBK)

200

590

300

950

18

n-Butyl acetate

150

710

200

950

19

n-Butyl alcohol-Skin-C

50

150

-

-

20

Sec/tert. Butyl acetate

200

950

-

-

21

Butyl mercaptan

0.5

1.5

-

-

22

Cadmium Dust and Salts (as Cd)

-
0.05
-
-
23
Calcium oxide
-
2
-
-
24
Carbaryl (Sevin)
-
5
-
-
25
Carbofuran (Furadan)
-
0.1
-
-
26
Carbon disulphide-Skin
10
30
-
-
27
Carbon monoxide
50
55
400
440
28
Carbon Tetrachloride - Skin (S.C.)
5
30
-
-
29
Chlordane - Skin
-
0.5
-
-
30
Chlorine
1
3
3

9

31

Chlorobenzene

75

350

-

-

(Monochlorobenzene)

32

Chloroform (S.C.)

10

50

-

-

33

Bis (Chloromethyl) ether (H.C.)

0.001

0.005

-

-

34

Chromic acid and chromates (as Cr)

-

0.05

-

-

(water soluble)

35

Chromous salts (as Cr)

-

0.5

-

-

36

Copper fume

-

0.2

-

-

37

Cotton dust raw

-

0.2*

-

-

38

Cresol all isomers - Skin

5

22

-

-

39

Cyanides (as CN) - Skin

-

1

-

-

40

Cyanogen

10

20

-

-

41

DDT (Dichlorodiphenyl trichloroethane)

-

1

-

-

42

Demeton - Skin

0.01

0.1

-

-

43

Diazinon - Skin

-

0.1

-

-

44

Dibutyl phthalate

-

5

-

-

45

Dichlorvos (DDVP) - Skin

0.1

1

-

-

46

Dieldrin - Skin

-

0.25

-

-

47

Dinitrobenzene (all isomers) - Skin

0.15

1

-

-

48

Dinitrotoluene - Skin

-

1.5

-

-

49

Diphenyl (Biphenyl)

0.2

1.5

-

-

50

Endosulfan (Thiodan) - Skin

-

0.1

-

-

51

Endrin-Skin

-

0.1

-

-

52

Ethyl acetate

400

1400

-

-

53

Ethyl alcohol

1000

1900

-

-

54

Ethylamine

10

18

-

-

55

Fluorides (as F)

-

2.5

-

-

56

Fluorine

1

2

2

4

57

Formaldehyde (S.C.)

1.0

1.5

2

3

58

Formic acid

5

9

-

-

59

Gasoline

300

900

500

1500

60

Hydrazine - Skin (S.C.)

0.1

0.1

-

-

61

Hydrogen chloride - C

5

7

-

-

62

Hydrogen cyanide - Skin - C

10

10

-

-

63

Hydrogen fluorine (as F) - C

3

2.5

-

-

64

Hydrogen peroxide

1

1.5
-
65
Hydrogen sulphide
10
14
15
21
66
Iodine - C
0.1
1
-
-
67
Iron Oxide Fume (Fe O) (as Fe)
-
5
-
-
68
Isoamyl acetate
100
525
-
-
69
Isoamyl alcohol
100
360
125
450
70
Isobutyl alcohol
50
150
-
-
71
Lead inorg. dusts and fumes (as Pb)
-
0.15
-
-
72
Lindane - Skin
-
0.5
-
-
73

Malathion - Skin

-

-

10

-

74

Manganese dust and compounds (as Mn) - C

-

5

-

-

75

Manganese fumes (as Mn)

-

1

-

-

76

Mercury (as Hg) - Skin

(i)

Alkyl compounds

-

0.01

-

0.03

(ii)

All forms except alkyl vapour

0.05

-

-

(iii)

Atyl and inorganic compounds

0.1

-

-

77

Methyl alcohol (Methanol) - Skin

200

260

250

310

78

Methyl collosolve (2-Methoxy ethanol) - Skin

5

16

-

-

79

Methyl Isobutyl Ketone

50

205

75
 300
 80
 Methyl isocyanate - Skin
 0.02
 0.05
 -
 -
 81
 Naphthalene
 10
 50
 15
 75
 82
 Nickel carbonyl (as Ni)
 0.05
 0.35
 -
 -
 83
 Nitric acid
 2
 5
 4
 10
 84
 Nitric oxide
 25
 30
 -
 -
 85
 Nitrobenzene-Skin
 1
 5
 -
 -
 86
 Nitrogen dioxide
 3
 6
 5
 10
 87
 Oil mist Mineral
 -
 5
 -
 10
 88

Ozone

0.1

0.2

0.3

0.6

89

Parathion - Skin

-

0.1

-

-

90

Phenol - Skin

5

19

-

-

91

Phorate (Thimet) - Skin

-

0.05

-

0.2

92

Phosgene (Carbonyl chloride)

0.1

0.4

1

1

93

Phosphine

0.3

0.4

1

1

94

Phosphoric acid

-

1

-

3

95

Phosphorus (yellow)

-

0.1

-

-

96

Phosphorus pentachloride

0.1

1

-
 -
 97
 Phosphorus trichloride
 0.2
 1.5
 0.5
 3
 98
 Pieric acid-Skin
 -
 0.1
 -
 0.3
 99
 Pyridine
 5
 15
 -
 -
 100
 Silane (Silicon tetrahydride)
 5
 7
 -
 -
 101
 Sodium hydroxide-C
 -
 2
 -
 -
 102
 Styrene monomer (Phenylethylene)
 50
 215
 100
 425
 103
 Sulphur dioxide
 2
 5
 5
 10
 104
 Sulphur hexafluoride
 1000
 6000
 -
 -
 105

Sulphuric acid

-

1

-

-

106

Tetraethyl lead as (Pb)-Skin

-

0.1

-

-

107

Toluene (Toluol)

100

375

150

560

108

O-Toluidine-Skin (S.C.)

2

9

-

-

109

Tributyl phosphate

0.2

2.5

-

-

110

Trichloroethylene

50

270

200

1080

111

Uranium natural (as U)

-

0.2

-

0.6

112

Vinyl chloride (H.C.)

5

10

-

-

113

Welding fumes

-

5

-

-

114

Xylene (O-m P-isomers)

100

435

150

655

115

Zinc oxide

(i) Fume

-

5.0

-

(ii) Dust (Total dust)

-

10.0

-

116

Zirconium compounds (as Zr)

-

5

-

10

ppm Parts of vapour or gas per million parts of contaminated air by volume at 25°C and 760 mm. of Hg.

mg/m³ milligram of substance per cubic metre of air.

* Not more than 4 times a day with at least 60 min interval between successive exposures.

** mg/m³ = $\frac{\text{Molecular weight}}{24.45} \times \text{ppm}$

C denotes Ceiling Limit.

Skin denotes potential contribution to the overall exposure by the cutaneous route including mucous membranes and eye.

S.C. denotes Suspected Human Carcinogen.

H.C. denotes confirmed Human Carcinogen.

Substance

Permissible time-weighted average concentration (TWA) (8 Hrs)

Silica, SiO₂

(a) Crystalline

(i) Quartz-

{

(i) In terms of dust count $\frac{10}{6000} \times \text{Quartz} + 10$ mmpcm

|

|

(2) In terms of respirable dust $\frac{10}{100} \times \text{respirable Quartz} + 2$ mg/m³

|

|

(3) In terms of total dust $\frac{30}{100} \times \text{Quartz} + 3$ mg/m³

|

| (ii) Cristobalite

| Half the limits given against quartz.

|

| (iii) Tridymite

| Half the limits given against quartz.

|-

| (iv)Silica, fused

| Same limits as for quartz.

|-

| (v)Tripoli

| Same limits as in formula in item (2) given against quartz.

|-

| (b) Amorphous Silicates

| 10 mg/m³, total dust.

|-

| Asbestos (H.C.)

| *2 fibres/ml, greater than 5 µm in length and less than 3 µm in breadth with length to breadth ratio equal to or greater than 3.

:1.

|-

| Portland Cement

| 10mg/m³, Total dust containing less than 1% quartz.

|-

| Coal Dust

| 2 mg/m³, respirable dust fraction containing less than 5% quartz.

|-

| mmpcm

| Million particles per cubic metre of air, based on impinger samples counted by lightfield techniques.As determined by the membrane filter method at 400-450 x magnification (4 mm. objective) phase contrast illumination.

|}

Respirable Dust :

Fraction passing a size-selector with the following characteristics :

Aerodynamic Diameter (µm) (Unit density sphere)

% passing selector

<2

90

2.5

75

3.5

50

5.0

25

10

00

Form No. 1

[See Rule 23(1)]

Application for Registration of establishments employing building workers

1. Name and location of the establishment where building or other construction work is to be carried on :

2. Postal address of the establishment :

3. Full name and permanent address of the establishment, if any :

4. Full name and address of the Manager or person responsible for the supervision and control of the establishment :

5. Nature of building or other construction work carried/is to be carried on in the establishment :
 6. Maximum number of building workers to be employed on any day :
 7. Estimated date of commencement of building or the other construction work :
 8. Estimated date of completion of the building or other construction work :
 9. Particulars of demand draft, enclosed (name of the Bank, amount, demand draft no. and date) :
- Declaration by the employer :

(i)

I hereby declare that the particulars given above are true to the best of my knowledge and belief.

(ii)

I undertake to abide by the provisions of the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996 and the Rules made thereunder.

Principal Employer

Seal and Stamp

Office of the Registering Officer appointed under the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996 and Central Rules made thereunder.

Date of Receipt of application :

Form No. 2

[See Rule 24(1)]

Certificate of Registration

Picture

Department of Labour

Government of Uttar Pradesh

No.

Date

Office Of The Registering Officer

A Certificate of Registration is hereby granted under sub-section (3) of Section 7 of the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996 and the rules made thereunder, to M/s.....having the following particulars subject to conditions laid down in the Annexure :

1. Postal Address/location where building or other construction work is to be carried on by the employer.
2. Name and address of employer including location of the building and other construction work.
3. Name and permanent address of the establishment.
4. Nature of work in which building workers are employed or are to be employed
5. Maximum number of building workers to be employed on any day by the employer.
6. Probable date of commencement and completion of work.
7. Other particulars relevant to the employment of building workers.

Signature of Registering Officer with Seal

Annexure

The registration granted here in above is subject to the following conditions, namely :

(a)

the certificate of registration shall be non-transferable;

(b)

the number of workmen employed or building workers in the establishment shall not, on any day, exceed the maximum number specified in the certificate of registration;

(c)

save as provided in these rules, the fees paid for the grant of registration certificate shall be non-refundable;

(d)

the rates of wages payable to building workers by the employer shall not be less than the rates prescribed under the Minimum Wages Act, 1948 (

11 of 1948

) for such employment where applicable, and where the rates have been fixed by agreement, settlement or award, not less than the rates so fixed; and

(e)

the employer shall comply with the provisions of the Act and the rules made thereunder.

Form No. 3

[See Rule 25 (2)]

Registration of Establishment

Sl. No.

Registration no. and date

Name and address of construction site where a
building or other construction work is to be carried on

Name of the employer and his address

Nature of building or other construction work

name and permanent address of establishment

probable date of commencement of work

Maximum no. of building workers to be employed on
any day

Probable duration of building or other
construction work and probable date of completion

Remarks

1

2

3

4

5

6

7

8

9

10

Form No. 4

[See Rules 27(3) and 46(i)]

Written Notice of Commencement/Completion of the Building or Other Construction Work

1. (i) Name and address (permanent) of the establishment :

(ii)

Name of the employer and address :

2. Name and situation of place where the building and other construction is proposed to be carried on :

3. No. and date of certificate of registration :

4. Name and address of the person incharge of the construction work :

5. Address to which the communications relating to building or other construction work may be sent :

6. Nature of work involved and the facilities including plant or machinery provided :

7. The arrangement and storage of explosives, if any, to be used in building or other construction work :

8. In case the notice is for commencement of work, the approximate duration of work :

I/We hereby intimate that the building or other construction work (Name of work) having registration no dated is likely to
commence/is likely to be completed with effect from (date)/[on (date)].

Signature of the Employer

To,

The Inspector

.....

.....

Form No. 5

(See Rule 39)

Register of Overtime

Sl. No.

Name of building worker

Father's/ Husband's name

Sex

Designation/ Nature of employment

Date on which overtime worked

Total hours of overtime worked or production in
case of piece-rated

Normal rates of wages

Overtime rate of wages

Overtime earnings

Date on which overtime wages paid

Remarks

1

2

3

4

5

6

7

8

9

10

11

12

Form No. 6

[See Rule 47]

Register of Building Workers Employed by the Employer

Name and address of establishment where building and other construction work is to be carried on

Name and permanent address of establishment

Name and location of work.....

Sl. No.

Name of workers

Father's/Husband's name

Name of Employment/ Designation

Date of commencement of employment

Signature or thumb impression of workers

Date of termination of employee

Reasons for termination

If the building worker is/was beneficiary, the
date of registration as a beneficiary, the registration no. and
the name of Welfare Board

Remarks

1

2

3

4

5

6

7

8

9

10

Form No. 7

[See Rule 48(a)]

Muster Roll

Name and permanent address of the establishment

Name and address of establishment where building or other
construction work is carried on/is to be carried on

Nature of building or other construction work

Name and address of employer

For the Month.....

Sl. No.

Name of the building worker

Father's/Husband's Name

Sex

Dates

Remarks

1

2

3

4

5

6

1

1

2

2

3

3

4

4

5

5

Form No. 8

[See Rule 48(a)]

Register of Wages

Name and address of the establishment where building or other
construction work is carried on

Name and permanent address of establishment

Name of building or other construction work

Name and address of the employer

Wage period Monthly

Sl. No.

Name of workers

Designation/nature of work done

No. of days worked

Daily rate of wages/piece rate

1

2

3

4

5

Amount of wages earned

Basic wages

Dearness allowances

Overtime

Others

Other cash payment (Nature of payment to be indicated)

Total

6

7

8

9

10

11

Deductions, if any (Indicate nature)

Net amount paid

Signature/Thumb impression of worker

Initial of employer or his representative

12

13

14

15

Form No. 9

[See Rule 48(a)]

Form of Register of Wages-cum-Muster Roll

Name and address of the establishment where building or other construction work is carried on/is to be carried on.

Nature of building or other construction work

Name and permanent address of establishment

Sl. No.

Sl. No. in Register of building workers

Name of employee

Designation/ nature of work

Daily attendance/ units worked

1

2

3

4

5

Amount of wages earned

Wages piece rate

6

7

8

9

10

Form No. 10

[See Rule 48(b)]

Register of Deductions for Damage or Loss

Name and address of establishment where building or other construction work is carried on/is to be carried on

Name and permanent address of building workers

Name and permanent address of the employer

Nature of building or other construction work

Sl. No.

Name of worker

Father's/Husband's name

Designation/ nature of employment

Particulars of damage or loss

Date of damage or loss

Whether building worker showed cause against deduction

Name of person in whose presence building worker's explanation was heard

Amount of deduction imposed

No. of instalments

Date of recovery

First Instalment

Last Instalment

1

2

3

4

5

6

7

8

9

10

11

12

Form No. 11

[See Rule 48(b)]

Register of Fines

Name and address of establishment where building or other construction work is carried on/is to be carried on

Name and permanent address of establishment

Nature of building or other construction work

Name and permanent address of the employer

Sl. No.

Name of building worker

Father's/ Husband's name

Designation Nature of employment

Act/ Omission for which fine imposed

Date of offence

Whether building worker showed cause against fine

Name of person in whose presence building worker's explanation was heard

Wage periods and wages payable

Amount of the fine imposed

Date on which fine realised

Remarks

1
2
3
4
5
6
7
8
9
10
11
12

Form No. 12

[See Rule 48(b)]

Register of Advances

Name and address of establishment where building or other
construction work is carried on/is to be carried on

Name and permanent address of establishment

Nature of building or other construction work

Name and permanent address of the employer

Sl. No.

Name of building worker

Father's/ Husband's name

Designation/ Nature of employment

Wage period and wages payable

Date and amount of advance given

Purpose (s) for which advance given

No. of instalments by which advance to be repaid

Date and amount of each instalment repaid

Date on which last instalment was repaid

Remarks

1
2
3
4
5
6
7
8
9
10
11

Form No. 13

[See Rule 50(a)]

Wage Book

Name and address of the employer

Name and permanent address of establishment

Name and address of establishment where building or other
construction work is carried on

Nature of building or other construction work

For the Week/Fortnight/Month ending.....

1. No. of days worked.....
2. No. of units worked in case of piece-rate workers.....
3. Rate of daily/monthly wages/piece-rate.....
4. Amount of overtime wages.....
5. Gross wages payable.....
6. Deductions, if any, on account of the following :
 - (a)
fines
 - (b)
damage or loss
 - (c)
loans and advances
 - (d)
subscription towards provident fund
 - (e)
subscription towards the Building Workers Welfare Fund
 - (f)
any other deductions e.g. subscription to co-operative society on account of loans from co-operative society/housing loan or contribution to any relief fund as per provision of clause (p) of sub-section (2) of Section 7 of the Payment of Wages Act or for payment of any premium of Life Insurance Corporation.
7. Net amount of wages paid.....

Initials of the Employer or his Representative

Form No. 14

[See Rule 50(b)]

Service Certificate

Name and permanent address of establishment

Name and Address/Location where the building or other construction work is carried on/is to be carried on

Name and location of work

:

Name and address of the workman

:

Age or Date of Birth

:

Identification Marks

:

Father's/Husband's name

:

Sl. No.

Total period for which employed

Nature of work done

Rate of wages (with particulars of unit in case of piece work)

If the building worker was a beneficiary his

Registration No., date and the name of the Board

Reasons/ grounds on which the employee terminated

Remarks

From

To

1

2

3
4
5
6
7

Signature

Form No. 15

(See Rule 53)

Annual Returns

Annual Return of employer to be sent to the Registering Officer year ending 31st December

1. Full name and address of the establishment of the building and other construction work (Place, Post., Distt.).
2. Name and permanent address of the establishment.
3. Name and address of the employer.
4. Nature of building and other construction work carried on.
5. Full name of the manager or person responsible for supervision and control of the establishment.
6. Number of building workers ordinarily employed.
7. Total number of days during the year on which building workers were employed.
8. Total number of man-days worked by building workers during the year.
9. Maximum number of building workers employed on any days during the year.
10. The number of accidents that took place during the year as under:

(a)

The total number of accidents

(b)

The number of accidents resulting in disablement of building workers for less than 48 hours, the number of building workers involved and the number of man-days lost

(c)

The number of accidents resulting in disablement of building workers beyond 48 hours but not resulting in any permanent total disablement, the number of building workers involved and the number of man-days lost on account of such accidents.

(d)

The number of accidents resulting in permanent partial or total disablement, the number of building workers involved and the number of man-days lost on account of such accidents.

(e)

The number of accidents resulting in deaths of building workers and the number of resultant deaths.

The Chief Inspector or Inspector appointed by a State Government under the Act shall direct the owners of establishments registered under this Act, to send the copies of Annual Returns submitted by the employers of registered establishments in respect of the concerned State Government or appropriate Government to the Director-General of Inspections by virtue of provisions of Section 60 of the Act.

The Chief Inspector or Inspector appointed under this Act by State Government shall direct the owners of such establishments as are registered under this Act by Registering Officers appointed by concerned State Government to send copies of the Annual Returns to the Director-General by virtue of provisions of Section 60 of the Act.

Change, if any, in the management of the establishment, its location, or any other particulars furnished to the Registering Officer in the application for Registration indicating also the dates.

Place.....

Date.....

Signature of Employer

Form No. 16

[See Rule 129]

Register of Periodical Test-Examination of Lifting Appliances and Gears etc.

Part-I Initial and periodical load test of lifting appliances and their annual thorough examination

"Thorough examination" means a visual examination, supplemented, if necessary, by other means such as a hammer

test, carried out as carefully as the conditions permit, in order to arrive at a reliable conclusion as to the safety of the parts examined, and if necessary, for such examination parts of the lifting appliances and gear shall be dismantled.

(A)

Initial and periodical load tests of lifting appliance

Situation and description of lifting appliances

tested with distinguishing number of marks, if any

No. of certificate of test and examination of

competent person

I certify that on the date on which I have

appended by signature the lifting appliance shown in column (1)

was tested and no defects affecting its safe working condition

were found other than those shown in column (5)

Remarks (to be signed and dated)

Date and signature with seal

Date and signature with seal

1

2

3

4

5

1.

2.

(B)

Annual thorough examination

I certify that on the date to which I have appended my signature, the lifting appliance shown in column (1) was thoroughly examined and no defects affecting its safe working conditions were found other than those shown in column

(12)

Date and signature with seal

Date and signature with seal

Date and signature with seal

Date and signature with seal

Date and signature with seal

Date and signature with seal

Date and signature with seal

6

7

8

9

10

11

12

1.

2.

Note. - If all the lifting appliances are thoroughly examined on the same date it will be sufficient to enter in column (1) "All lifting appliances". If not, the parts which have been thoroughly examined on the dates must be clearly indicated.

Part-II Initial and periodical load test of loose gears and annual thorough examination

List of loose gear :

The following clauses of loose gears namely -

1. Chains made of malleable cast iron;

2. Plate link chains;

3. Chains, rings, hooks, shackles and swivels made of steel;

4. Pitched chains;
5. Rings, hooks, shackles and swivels permanently attached to pitched chains, pulley blocks, containers, spreaders, trays, slings, baskets, etc. and any other similar gear :
6. Hooks and swivels having screw-threaded parts or ball-bearings or other case-hardened parts; and
7. Bordeaux connections.

Initial Test and periodical load test of loose gears

Distinguishing no. or marks

Description of loose gear tested and examined

No. of certificates of test and examination of
competent person

I certify that on the date to which I have
appended my signature the loose gears shown in columns (1) and
(2) were tested and no defects affecting the safe working
condition were found other than those shown in column (6)

Date and Signature with seal

Date and Signature with seal

1

2

3

4

5

1.

2.

3.

4.

5.

Annual thorough examination of loose gears

Remarks (to be signed and dated)

I certify the that on the date to which I have
appended my signature the loose gears show . in columns (1) and
(2) were thoroughly examined by me and no defects affecting their
safe working condition were found other than those shown in
column (10)

Date and signature with seal

Date and signature with seal

Date and signature with seal

Remarks (to be signed and dated)

6

7

8

9

10

1.

2.

3.

4.

5.

Part-III Annealing of Chains, Rings, Hooks, Shackles and Swivels
(Other than those exempted)

(See Part II)

12.5 mm. and smaller chains, rings, hooks, shackles and

swivels in general use.

If used with lifting appliance driven by power, must be annealed once at least in every six months. If used solely with lifting appliance worked by hand, must be annealed once at least in every twelve months

Other chains, rings, hooks, shackles and swivels in general use.

If used with lifting appliance driven by power, must be annealed once at least in every six months. If used solely with lifting appliance worked by hand, must be annealed once at least in every two years.

Note. - It is recommended that annealing should be carried out in a suitably constructed furnace heated to temperature between 1100 degree Fahrenheit or 600 degree and 700 degree Centigrade, for a period between 30 and 60 minutes.

Distinguishing no. or mark

Description of gear annealed

No. of the certificate of test and examination

I certify that on the date to which I have appended my signature, the gear described in Cols. 1 and 2 was effectually annealed under my supervision: that after being so annealed every article was carefully inspected and that no defects affecting its safe working condition were found other than those shown in Col. 7.

Remarks (To be signed and dated)

Date and signature with seal

Date and signature with seal

Date and signature with seal

1
2
3
4
5
6
7

Form No. 16-A

[See Rule 129(b)(1)(a)]

Test and Examination of winches, derricks, and their accessory gear

Test Certificate No.

Name of the construction site where lifting appliances are fitted/ installed/ located :

1. Situation and description of lifting appliances and gear with distinguishing number or marks (if any), which have been tested, thoroughly examined.
2. Angle to the horizontal of derrick boom at which test load applied (In Degrees).
3. Test load applied (In Tonnes).
4. Safe working load at the angle shown in (2) (In Tonnes).
5. Name and address of public service, association, company, or firm or testing establishment making the test and examination.
6. Name and position of the competent person of public service, association, company or firm or testing establishment.

I certify that on the.....date of 20.....the lifting appliance shown in (1) together with its necessary gear was tested in the manner set forth overleaf in my presence, that a careful examination of the said lifting appliance after the test showed that it had withstood the test load without injury or permanent deformation; and that the safe working load of the said lifting appliance and accessory gear is as shown in (4).

Signature of the Competent Person

.....

Seal

Registration/Authority number of the Competent Person

Place.....

Date

Form No. 17

[See Rule 129(b)(i)(b)]

Test and Examination of Hoist or Cranes and their accessory gear

Test Certificate No.

Name of the construction site where cranes or hoists are fitted/installed/ located :

1. Situation and description.
2. For jib cranes radius at the test load was applied (Metres).
3. Test load applied (Tonnes).
4. Safe working load for jib cranes at radius shown in (2) (Tonnes).
5. Name and address of public service, association or firm or testing establishment making the test and examination.
6. Name and position of competent person of public service, association or firm or testing establishment.

I certify that on the.....day of 20....the above lifting appliance together with its accessory gear, was tested in the manner set forth overleaf; that a careful examination of the said lifting appliance and gear after the test showed that it had withstood the test load without injury or permanent deformation; and the safe working load of the said lifting appliance and gear is as shown in (4).

Signature of the Competent Person

.....

Seal

Registration/Authority number of the Competent Person

Place.....

Date.....

Form No. 18

[See Rule 129(b)(iv)]

Test and examination of loose gears

Test Certificate No.

Name of the construction site where loose gears are fitted/installed/located :

1. Distinguishing number or mark.
2. Description, dimension and material of gear/device.
3. Number tested.
4. Date of test.
5. Test load applied (Tonnes).
6. Safe working load (SWL) (Tonnes).
7. Name and address of manufacturer or suppliers.
8. Initial test and examination, certificate no. and date (only in case of periodical test and examination).
9. Name and address of public service association, company or firm or testing establishment making the test and examination.
10. Name and position of competent person in public service, association, company or firm or testing establishment.

I certify that on the.....date of 20..... the above gear was tested and examined in the manner set forth overleaf, the examination showed the said gear/device withstood the test load without injury or deformation and that the safe working load of the said gear/device is as shown in (6).

Signature of the Competent Person

.....

Seal

Registration/Authority number of the Competent Person

Place.....

Date.....

Form No. 19

[See Rule 129(b)(iii)]

Test and Examination of the Wire Rope before being taken

Test Certificate No.....

1. Name and address of maker/supplier :

2. (a) Circumference/diameter of rope :

(b)

Number of strands :

(c)

Number of wires per strand :

(d)

Lay :

(e)

Core :

3. Quality of wire (e.g. best plough steel) :

4. (a) Date of test of sample or rope :

(b)

Load at which sample broke (In tonnes) :

(c)

Safe working load of rope (In tonnes) :

(d)

Intended use :

5. Name and address of Public Service, Association, Company or testing establishment making the test and examination :

6. Name and position of Competent Person in Public Service, Association, Company or Firm testing establishment making the test and examination :

I certify that the above particulars are correct and the test examinations were carried out by me and no defects affecting its Safe Working Load (SWL) were found.

Signature of the Competent Person

.....

Seal

Registration/Authority number of the Competent Person

Place.....

Date.....

Form No. 20

[See Rule 127(c)]

Heat Treatment and Examination of Loose Gears

Test Certificate No.....

Name of the construction site where loose gears are fitted/installed/located :

1. Distinguishing number or mark :

2. Description of gear :

3. Number of the certificate of test and examination :

4. Number annealed :

5. Date of annealing :

6. Defects found at careful inspection after annealing :

7. Name and address of Public Service Association, Company or Firm or testing establishment carrying out the annealing and inspection :

8. Name and position of the Competent Person of Public Service Association, Company or Firm or testing establishment :

I certify that on the date shown in (5) the gear described in (1) to (4) was effectually annealed under my supervision that after being so annealed every article was carefully inspected; and that no defects affecting its safe working condition

were found other than those indicated in (6).

Signature the Competent Person

.....

Seal

Registration/Authority number of the Competent Person

Place.....

Date.....

Form No. 21

[See Rule 142]

Examination or test of pressure vessel or plant

1. Name of the employer (or establishment).....

2. Address of construction site.....

3. Name, description and distinctive number of pressure vessel or plant.....

4. Name and address of manufacturer and reference to their test certificate or certificates of Competent Person.....

5. Nature of process in which pressure vessel or plant is used.....

6. Particulars of pressure vessel of plant :.....

(a)

Date of construction.....

(b)

Thickness of walls.....

(c)

Date in which the pressure vessel or plant was first taken into use.....

(d)

Maximum permissible working pressure recommended by the manufacturer.....

(e)

Design pressure, if known.....

(f)

The history should be briefly given and the examiner should state whether he has seen the last previous report.

7. Date of last hydrostatic test, if any, and pressure applied.....

8. Is the pressure vessel or plant in open or otherwise exposed to weather or to damp?

9. What parts (if any) were inaccessible?.....

10. What examination and tests were made?

Specify pressure if hydrostatic test was carried out.....

11. Condition of pressure vessel of plant external (State any defects materially affecting the maximum permissible working pressure of the safe working of the pressure vessel of plant).....Internal

12. Are the required fittings and appliances provided in accordance with the rule.....

13. Are all fittings and appliances properly maintained and in good condition? Have the pressure settings been checked and corrected?

14. Repairs (if any) required, and period within which they should be executed and any other condition which the person making the examination thinks it necessary to specify for securing safe working.....

15. Maximum permissible working pressure, calculated from dimensions and from the thickness, and other data ascertained by the present examination, due allowance being made for conditions of working if unusual or exceptionally severe (state minimum thickness of walls measured during the examination).....

16. Where repairs affecting the maximum working pressure are required, state the working pressure :

(a)

Before the expiration of the period specified in item 14.

(b)

After the expiration of such period if the required repairs have not been completed.

(c)

After the completion of the required repairs.....

17. Other observations.....

I certify that on the.....day of 20.....the pressure vessel or plant described above was thoroughly cleaned and (so far as its construction permits) made accessible for thorough examination and for such tests as were necessary for thorough examination and that on the said date, I thoroughly examined this pressure vessel or plant including its fittings and that the above is a true report of my examination.

Signature of the Competent Person

Seal

Date.....

Form No. 22

[See Rule 216(d)]

Certificate of Medical Examination

1. Certificate Serial No.....

Date

Date

2. Name.....

Identification marks : (1)

(2)

3. Father's Name.....

4. Sex.....

5. Residence.....Son/daughter.....

6. Date of Birth, if available

and/or certificate age

7. Physical Fitness :

I hereby certify that I have personally examined (Name)..... son/daughter/wife of.....residing.....at.....who is desirous of being employed in.....building and construction work and that his/her age as nearly as can be ascertained from my examination is.....years and that he/she is fit for employment in.....adult/adolescent.

8. Reason for :

(1)

refusal of certificate.....

.....

(2)

certificate being revoked.....

.....

Signature with SealConstruction Medical Officer.

Signature/left hand thumbimpression of building worker

Note : (1) Exact details of cause of physical disability should be clearly stated.

(2)

Functional/productive abilities should also be stated if disability is stated.

Form No. 23

[See Rule 228(a)]

Notice of poisoning or occupational diseases

1. Name and address of the employer. :.....

2. Name of the building worker and his work no., if any :.....

3. Address of the building worker :.....

4. Sex and age :.....

5. Occupation.....:

6. State exactly what the patient was doing at the time of contracting the disease :.....

7. Nature of poisoning or disease from which the building worker is suffering from :.....

Date :.....

Signature of the Employer/Construction Medical Officer

Note. - When a building worker contracts any disease specified in Schedule-II, a notice in this Form shall be sent

forthwith to the Director General.

Form No. 24

[See Rule 251(7)]

Notice of Accidents and Dangerous Occurrences

1. Name of the project/work :

2. Location and address of construction work :

3. Stage of construction work :

4. Particulars of Employer :

(a) Main contractor Firm/Co. :

(b) Sub-contractor's particulars :

Name

Name

Address

Address

Phone Nos.

Phone Nos.

Nature of business

Nature of business

5. Particulars of injured person :

(a) Name

(First)

(Middle)

(Surname)

(b) Home Address :

(c) Occupation :

(d) Status of the worker :

Casual

Permanent

(e) Sex : Male/Female :

(f) Age :

(g) Experience :

(h) Marital status : Married/Unmarried/Divorced

6. Particulars of accident :

(a)

Exact place where accident occurred

(b)

Date

(c)

Time

(d)

What the injured person was doing at the time of accident?

(e)

Weather condition

(f)

How long employed by you for this particular job?

(g)

Particulars of equipment/machine/tool involved and condition of the same after the accident occurred.

7. Nature of injuries :

(a) Fatal

(b) Non-fatal

(c) If non-fatal, slate precisely the nature of injuries

(Describe in detail the nature of injury, for instance
fracture of right arm, sprain etc.)

(a) First Aid :

Given :

Not Given :

(b) If not, give the reasons

(c) Name and designation of the person by whom first aid was
given :

(d) If admitted to hospital,

Name of the Doctor :

Name of the hospital :

Address of the hospital :

Phone No. :

8. Mode of transport used :

Ambulance

Truck

Tempo

Taxi

Private Car

9. (a) How much time was taken to shift the injured person? If very late, state the reasons :

(b)

How the reporting was made? :

Telephone

Telegram

Special Letter

Messenger

(c)

Who visited the accident site first and what action was proposed by him? :

(d)

What are the actions taken for the investigation of the accident by the employer? (Describe about photographs/video
film/measurement taken etc.)

10. Particulars of the person given witness :

(a)

Name Address Occupation

1.

2.

3.

4.

5.

(b)

Whether Temporary/Permanent

Particulars in case of fatal :

11. Date :

Time :

Whether, registered with building and other Construction Workers Welfare Board

If yes, give Reg. No.

I certify that to the best of my knowledge and belief, the above particulars are correct in every respect.

Place :

Signature of employer/Responsible

Person/Supervisor

Date :

Designation

c.c. forwarded for information and follow-up action :

- 1.
- 2.
- 3.

Note. - If more than one person is involved, then for each person, information is to be filled up in separate forms.

Notice of Dangerous Occurrences

1. Name and address of the establishment :
2. Location and address of construction site :
3. Name of the employer :
4. Name of the Supervisor or responsible person :
5. Nature of construction work :
6. Exact place where the dangerous occurrence took place :
7. Date and time of occurrence :
8. Nature of dangerous occurrence (State exactly what happened) :

I certify that to the best of my knowledge and belief, the above particulars are correct in every respect.

Place :

Signature of Employer/Responsible
Person/Supervisor

Date :

Designation

Form No. 25

[See Rule 276(1)]

Application for Registration of Beneficiaries

1. Name :
2. Address :
3. Name of father :
4. Marital status : (Married, unmarried or widow)
5. Date of Birth :
6. Name, address and registration No. of the establishment where the applicant is working :
7. Nature of job/employment :
8. ESI/PF No. :
9. Name and address of employer :
10. Total service :
11. Rate of subscription : Rs. 50
12. Name of Bank and Branch where subscription is to be paid :
13. If the applicant is already a member of any other Welfare Board, the name of such boards and registration no. of the applicant :

I certify' that to the best of my knowledge and belief, the above particulars are correct in every respect.

Place :

Signature of Beneficiaries

Date :

Designation

Form No. 26

[See Rule 276(4)]

Register of Beneficiaries

Sl. No.

Name and address of beneficiaries

Age

Registrati on no. of beneficiary

Registration fee details

Remarks

Signature of Registering Officer

Name of Bank

Draft No. and date

Amount (Rs.)

1

2

3

4

5

6

7

8

9

Form No. 27

[See Rule 277(1)]

Beneficiaries' Identity Card

Page-I

Photo

Signature, date and official designation of the registering
authority (with office seal)

Page-II

Name of Member

:

Address

:

Male/Female

:

Name of job

:

Registration No.

:

District

:

Date of Registration

:

Name of Bank and Branch in which subscription is to be paid

:

Subscription rate

:Rs. 20

Page III

Date of birth

:

Completed age

:

Date of retirement

:

Marital Status

:(Married, unmarried or widow)

Name of wife/husband

:

Address

:

Whether wife/husband, a member of this Board

:Yes/No

If so, name and registration No.

:

Name of Nominees

:

Relationship with the member

:

Signature/thumb impression of the member

:

Official designation and signature of registering authority.

:

Form No. 28

[See Rule 278]

Register of Employment of Beneficiaries

Name and address of establishment :

Month

Sl. No.

Name and address of Beneficiaries

Age of Beneficiaries

Registration No.

Details of contribution/ Arrears

Remarks

Draft No.

Amount (Rs.)

1

2

3

4

5

6

7

Signature of Employer

Form No. 29

[See Rule 281]

Application for Maternity Benefit

1. Name and address of applicant :

2. Registration No. :

3. Age and date of birth :

4. Name of husband :

5. Date of confinement

6. Have you applied for this benefit earlier :

7. If so how many times and give details :

8. Date of registration :

9. Date of payment of 1st subscription and amount :

10. Date of payment of last subscription :

11. Name of bank and place :

12. List of documents submitted :

(a)

Copy of Challans or Copy of Pass Book

(b)

Medical Certificate in original :

The facts furnished above are true to my knowledge and information.

Place :

Name and Signature of applicant

Date :

Form of Medical Certificate

(To be obtained from a Medical Officer not below the rank of an Assistant Surgeon)

I have examined Smt.....age wife of Sri..... She is pregnant running.....month. She had delivered a child on

Place :

Name of Doctor

Date :

Seal

Form No. 30

[See Rule 283(1)]

Application for Pension

1. Name and address of applicant :

2. Registration No. :

3. Date of completion of 60 years :

4. Date of payment of first subscription amount and name of Bank :

5. Default if any and reasons thereof :

6. Date of payment of last subscription amount, date and name of Bank :

7. List of documents -

(a)

Identity Card :

(b)

Pass Book :

(c)

Challans :

8. Address to which pension is to be sent :

9. Any other information (Details of benefit if any, from other Welfare Boards) :

The facts mentioned above are true to my knowledge and information.

Place :

Name and Signature of applicant

Date :

Form No. 31

[See Rule 283(6)]

Register of Payment of Pension

P.P.O. No.

Name and address of the pensioner with Membership

No. in the U.P.B.Q.C.W.W. Board

Date of Birth

Date of retirement

Total service

No. and date of order of sanctioning authority

Date of commencement of pension

Monthly Rate of pension (Rs.)

Dated initials of

Remarks

Date of entry in the scheme

Secretary

Officer

Order on cancellation of pension etc. may, be
noted herewith reason and date of effect under initials of
Secretary/Officer.

1

2

3

4

5

6

7

8

9

10

11

Details of Pension Paid

Month/ Year

Amount of pension (Rs.)

Date of sending of Money Order

Dated initials of C.E.O./Officer

Remarks (Details of undelivered H.O. etc. may be
noted here)

12

13

14

15

16

Form No. 32

[See Rule 284(1)]

Application for Advance for Purchase or Construction of House

1. (a) Name of the applicant -

:

(b) Permanent Address

:

(c) Present Address

:

2. Date of birth

:

3. Date of retirement

:

4. (a) Register Number

:

(b) Date of Registration

:

(c) Rate of remittance

:

(d) Date of first remittance

:

(e) Date of last remittance

- :
- (f) Total amount remitted
- :
- (g) Whether the membership has ever been revived, if so details
- :
- (h) Details of revival
- :
5. Purpose of advance (new construction/maintenance/purchase of land with building):
6. Whether the applicant has a house of his own (Give details):
7. Amount of advance required

- :
8. Details of land property -
- :

(a) Panchayat/Town

:

(b) Village

:

(c) Taluka

:

(d) District

:

(e) Area

:

(f) Survey No.

:

(g) Valuation of the property

- :
9. Whether the applicant has received any other loan for HBA, give details:
10. Estimate for construction/maintenance of building as per plan:
11. Details of the amount raised apart from the loan:
12. Whether the applicant has received loan previously from this Board:

Declaration

I hereby declare that the above statements are true and correct to the best of my knowledge and belief.

Place :

Signature :

Date :

Name :

Details of documents to be produced :

1. Plan and estimate (approved) :
2. Encumbrance Certificate of 14 years :
3. Location Certificate :
4. Land tax receipt :
5. Original document :
6. Attested copy of ration card (page 2, 4) for maintenance application :
7. Ownership of the building (for maintenance only):
8. Terminal benefit declaration :

9. Attested copies of identity card and passbook :
10. Title clearance certificate :
11. Age certificate of the building (for maintenance only) :
12. Valuation certificate of the property :
13. No objection certificate from the authorities for construction :
14. Declaration from the applicant that neither he/she/nor his/her spouse/children own a house (for new construction) :

Form No. 33

[See Rule 285(2)]

Application For Disability Pension

1. Name and Address of Applicant :
2. Age and Date of Birth :
3. Registration :
4. Date of payment of first subscription, amount and name of Bank and Branch :
5. Date of payment of last subscription amount and name of Bank :
6. Total amount of subscription :
7. Details of disease/accidents :
8. Nature of disability due to disease/accident :
9. Details of treatment in Government hospitals, date of admission and date of discharge :
10. Whether the patient was in plaster? If so, for how many days? :
11. Amount spent for treatment (should be supported by medical bills countersigned by treating doctor) :
12. List of documents submitted :
13. Details of benefits received, if any before :
14. Details of benefits received, if any from Government or any other institutions, for the above treatment :

The above facts are true to best of my knowledge and information.

Place :

Signature :

Date :

Name :

Form No. 34

[See Rule 286]

Application for Funeral Expense

1. Name and Address of Applicant :
2. Relationship of applicant with the worker :
3. Name and address of worker :
4. Registration No. :
5. Date of registration :
6. Date of payment and first subscription, amount and name of Bank, Branch :
7. Date of payment of last subscription, amount, name of Bank, Branch :
8. Duration of membership
9. Whether membership was live? :
10. Date of death of the worker :
11. Reason for death :
12. Whether applicant is the nominee of the worker :
13. If not, whether the applicant has submitted dependence certificate :
14. Name, age and date of birth of the nominee :
15. If nominees are minor, name of guardian and his relationship :
16. Whether consent letters from other nominees submitted? (Where the no. of nominees is more than one) :
17. Whether certificate of guardianship submitted by the minor children :
18. Amount of benefit, applied for :

The above facts are true to best of my knowledge and information.

Place :

Signature :

Date :

Name :

Form No. 35

[See Rule 287(2)]

Application for Death Benefit

1. Name and address of applicant :

2. Relationship with the worker :

3. Name and address of worker

4. Registration No. :

5. Age and date of birth :

6. Worker whether married :

7. Nature of death (Give details) :

8. Details of documents submitted :

9. Amount of financial assistance applied for :

The above facts are true to best of my knowledge and information.

Place :

Name and Signature

Date :

Form No. 36

[See Rule 287(5)]

Register of Death Benefit

Sl. No.

Date of receipt of application

Name and registration no. of worker

Period of remittance

Date of death

Order No. and date

Name and address of nominee with relationship to

Amount of death benefit

Refund of amount

Total

Initial

1

2

3

4

5

6

7

8

9

10

11

Form No. 37

[See Rule 288]

Application for Cash Award

1. Name of examination passed :

2. Name of student :

3. Address :

4. Year of study -

Month and year of passing of examination :

Regn. No. :

5. Age and date of birth :

6. Whether SC/ST :

7. Marks obtained in the examination :

Subject

Marks obtained

Maximum Marks

Total :

8. Name of parent :

9. Address :

10. Regn. No. in the U.P.O.C.W.W. Board :

11. Date of payment of first subscription, amount, name of bank, branch :

The above facts are true to best of my knowledge and information.

Place :

Name and Signature

Date :

Affidavit of the Parent

I,.....(name and address) am a member of U.P. Building and Other Construction Workers Welfare Board and my Registration No. is.....Sri/Km.....is my son/daughter. The facts mentioned in the application are true, If they are found to be not true later, all the money received from the Board in this account will be remitted back. I hereby agree that the decision taken by the Secretary in this regard will be final.

Place :

Name and Signature

Date :

(2)

Enquiry Report of the District Executive Officer

Sri/Smt.....(Name and address) is a member of U.P. Building and Other Construction Workers Welfare Board Registration No..... He has been regularly paying subscription from.....to.....I recommend/reject this application (reason for rejection).

District Executive Officer

Form No. 38

[See Rule 290]

Application for Medical Assistance

1. Name and address of Applicant :

2. Age and Date of Birth :

3. Registration No. :

4. Date of payment of 1st Subscription (Amount and name of Bank) :

5. Date of payment of last subscription (Amount and name of Bank) :

6. Total amount remitted :

7. Details regarding disease/surgery :

8. Disability if any, due to disease or surgery :

9. Period of treatment as inpatient in Government Hospital (Date of admission in the Hospital and date of discharge) :

10. List of documents submitted :

11. Details of medical benefits received, if any, before :

The above facts are true to my best of knowledge and information.

Place :

Name and Address of Applicant

Date :

Form No. 39

[See Rule 291]

Application for Educational Assistance

Name of Course :

Year

1. Name of Student :

2. Male/Female :

3. (a) SC/ST :

(b)

Whether proof is attached :

4. Name of College and affiliated :

5. Name and year of course :

6. Date of admission to the course :

7. Age and Date of birth of the student :

8. Details of qualifying examination passed :

Name of Exam

Name of affiliated University/Board/State

Month and Year of passing qualifying examination

Total :

9. Marks scored in qualifying examination : Maximum marks

Subject

Marks scored

Maximum marks

Maximum marks Percentage

Total :

10. (a) Name of Parent of applicant :

(b)

Registration no. :

(c)

Date of payment of first subscription :

(d)

Date of payment of last subscription :

(e)

No. of instalments paid :

Total subscription paid

(f)

Permanent address :

(g)

Has the membership been : Yes/No

revived [] if so, period of revival

The facts mentioned above are true to my knowledge. If selected for the scholarship, I promise that I will abide by the condition stipulated in the Scheme.....

Place :

Name and Signature of the Student

Date :

Affidavit of the Parent of the Student

I,.....(Name and address) S/o or D/o.....(Name and Address) solemnly affirm the following :

1. My son/daughter Sri/Smt.....is studying for.....name and years of course).

2. I am a member of the Board since.....(Year) with Registration No.

3. Subscription has been paid up to.....

4. If any of the above facts are found to be wrong later, the scholarship amount granted to the student will be remitted back by me. The decision of Secretary in this regard will be applicable to me and it will be final and I agree with this.

5. I also agree to recover any amount of default due from me.

Place :

Name and Signature

Date :

(To be signed before MLA/MP/Panchayat President/Gazetted Officer of State or Central)

I certify that Smt./Sri.....who has signed above has put the signature in my presence.

Place : (Office Seal)

Attesting Officer

Date :

Name

Official Designation

I,Head of.....(Name of Institution) hereby certify that Smt./Sri.....is.....a.....year student of course. I have examined the application submitted by the student and I am convinced that it is correct. This institution is affiliated to the.....University/Board.

Place : (Office Seal)

Attesting Officer

Date :

Name

Official Designation

Form No. 40

[See Rule 292]

Application for Marriage Assistance

1. Name and address of Applicant :

2. Address :

3. Registration No. :

4. Age and Date of Birth

5. Date of payment of first subscription, Amount and name of Bank and Branch :

6. Date of payment of last subscription, Amount and name of Bank and. Branch :

7. Duration of membership :

8. Is membership live? :

9. If application is for the marriage of son/daughter -

(1)

Whether husband or wife, a member of this Board :

(2)

If so, has he/she applied for the financial assistance :

(3)

Date of birth of the son/daughter :

(4)

Address of the bride or bridegroom :

(5)

Date and place of marriage :

(6)

Date and No. of the certificate of marriage :

Name and address of the authority who issued the certificate :

(7)

Have you applied for financial assistance for the marriage of any other son, daughter; if so details of the same :

10. If application is for the marriage of self (for women worker only) - :

(1)

Name and address of husband/bridegroom :

(2)

Date and place of marriage :

(3)

No. and date of marriage certificate :

Name of authority who issued the certificate :

11. Are you in receipt of any financial assistance for the purpose from Government or any other institution :

The above facts are true to my best of knowledge and information.

Place :

Name and Signature of Applicant

Date :

Form No. 41

[See Rule 293]

Application for Family Pension

1. Name and Address of applicant :

2. Address of the pensioner/worker :

3. Relationship with worker :

4. Date of death of worker :

5. Monthly pension received by the worker :

6. Whether applicant is receiving pension from Government/Semi-Government or any other institution? :

If yes, details thereof

7. Whether applicant is receiving salary from Government/Semi- Government/ Private Institution? :

If yes, details thereof

8. List of documents submitted :

The above facts are true to the best of my knowledge and information.

Place :

Name and Signature of Applicant

Date :

List of documents to be submitted along with application

1. Death certificate of the worker :

2. Village Officer's Certificate showing relationship between the applicant and the worker :

3. Village Officer's certificate stating that the applicant is not receiving any pension from Government/Semi-Government/Private Institution :

4. Village Officer's Certificate stating that the applicant is not receiving any salary from Government/Semi-Government/Private Institution :

Notification

English translation of Shram Anubhag-2, Notification. No. 1411/XXXVI-2-2009, dated 20.11.2009, published in the U.P. Gazette, Extraordinary, Part 4 (Kha), dated 20.11.2009

In exercise of the powers under sub-rule (2) of Rule 256 of the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Rules, 2009, the Governor is pleased to appoint the Principal Secretary, in the Department of Labour, Government of Uttar Pradesh as 'Administrator' with effect from the date of publication of this notification in the Gazette for a period of six months or till the constitution of Uttar Pradesh Building and Other Construction Workers Welfare Board under sub-rule (1) of Rule 256, whichever is earlier and to direct that the 'Administrator' appointed as such shall exercise all powers and shall perform all duties and functions as are envisaged in the Rules 272 and 274 of the rules mentioned hereinabove.

Related AI tags, queries and research notes

Translation